

CONTRACT AGREEMENT

THIS CONTRACT AGREEMENT is dated [insert] (the Signature Date).

BETWEEN

(1) TECHCO Company, a single-shareholder closed joint stock company incorporated under the laws of the Kingdom of Saudi Arabia, pursuant to commercial registration number 102030405060 and having its registered address at TECHCO Building 1234 - MAKKAH 21232, , Kingdom of Saudi Arabia (the “Employer”, which expression shall include its successors in title and permitted assignees); and

(2) [●], duly licensed under the laws of [insert], pursuant to licence number [●] and whose address is [●] (the “Service Provider”),

each a “Party” and together the “Parties”.

WHEREAS

(A) The Employer is the developer of the Project.

(B) The Employer invited tenders for the performance of the Services and the Employer has accepted the Service Provider’s offer for the performance of the Services on the terms set out in this Contract.

(C) This Contract sets out the terms and conditions upon which the Employer and the Service Provider will perform their respective obligations required for the performance of the Services.

(D) The Parties agree that, in addition to the Employer’s stated objectives for the Services as set out in the Contract, the following are the Parties’ mutual objectives for the Services:

(i) acting in a manner that is consistent with the philosophy of TECHCO, including facilitating the acceleration of human progress, promoting sustainability and liveability, protecting the environment and maximising the use of advanced technology;

(ii) co-ordination and cooperation between the Service Provider and Other Contractors; and

(iii) ensuring that the Services are performed to the standards prescribed in the Contract.

THE PARTIES HAVE AGREED AS FOLLOWS:

1. DEFINITIONS

In the Contract, unless the context otherwise requires, capitalised terms have the meaning given in the Conditions.

2. PRIORITY OF DOCUMENTS

2.1 The following documents are deemed to form and shall be read and construed as part of the Contract:

- (a) this Contract Agreement;
- (b) Appendix 1 (Contract Data);
- (c) Appendix 2 (Conditions);
- (d) Schedule 2 to the Conditions (Scope of Work);
- (e) Schedule 3 to the Conditions (Mobilisation Plan);
- (f) Schedule 5 to the Conditions (Employer's Procedures);
- (g) Schedule 4 to the Conditions (Employer's Requirements);
- (h) Schedule 1 to the Conditions (Services Fee); and
- (i) the remaining Schedules and Annexures.

2.2 The documents forming the Contract are to be taken as mutually explanatory of one another and shall be read as a whole. For the purposes of interpretation, the priority of documents forming the Contract shall be in accordance with the descending order of priority of documents listed in Paragraph 2.1.

2.3 If either Party discovers an ambiguity, inconsistency or discrepancy, error or defect of a technical nature, in or between the documents forming the Contract, that Party shall immediately inform the Employer's Representative who shall issue any necessary clarification or instruction, which shall be implemented by both Parties without delay. The Service Provider shall not be entitled to any relief from its obligations under this Contract, or any additional Cost arising from or in relation to any such clarification or instruction.

2.4 Notwithstanding the priority of documents listed in Paragraph 2.1, if there is any ambiguity, inconsistency, omission or discrepancy in or between the documents listed in Paragraph 2.1 in regard to the obligations or requirements for the standard or quality of work, the Service Provider agrees to the higher or more stringent obligation or requirement.

3. COMMENCEMENT AND TERM

3.1 This Contract shall commence on [the Signature Date] OR [insert date] (the Commencement Date) and shall expire [five (5) years] after the anniversary of the O&M Start Date, unless otherwise terminated earlier or extended in accordance with the terms of this Contract (the Term).

3.2 The Employer may, on no more than [three (3) occasions], upon service to the Service Provider of at least one [(1) month's] notice prior to the Term Expiry Date, extend the Term by successive periods of [twelve (12)] months.

3.3 Notwithstanding and in addition to the Employer's rights under Paragraph 3.2, either Party may, no less than twelve (12) months and no more than eighteen (18) months prior to the Term Expiry Date, give notice to the other Party that it wishes to convene a meeting to discuss a possible extension of the Term, including any amendments to this Contract.

3.4 Following a notice under Paragraph 3.3, the Parties shall meet to discuss the possible extension of the Term, however, neither Party shall be obligated to offer or to accept such extension of the Term. Nothing in this Contract gives rise to any representation on the part of the Employer that this Contract will be extended.

4. SERVICES

The Service Provider shall perform the Services in accordance with the terms set out in this Contract.

5. SERVICES FEE

5.1 In consideration of the Service Provider's satisfactory performance of the Services, the Employer shall pay the Service Provider the Services Fee in the manner and at the times stipulated in this Contract.

5.2 In consideration of the payments to be made by the Employer to the Service Provider as set out in the Contract, the Service Provider hereby covenants with the Employer to perform the Services, and to otherwise perform all of its obligations in accordance with the Contract and accepts all risks and all costs (whether or not capable of ascertainment on the Signature Date) of performing the Services and otherwise complying with its obligations under the Contract, except to the extent the Contract expressly provides otherwise.

6. GOVERNING LAW

This Contract and any disputes between the parties arising out of or in connection with it, its subject matter or formation (whether contractual or non-contractual in nature) shall be governed by and be construed in accordance with the laws of KSA. [change to England if using laws of England]

Executed as an agreement

TECHCO Company

Name: _____

Signature:

Title: _____

Stamp:

Duly authorised to sign this Contract for and on behalf of the Employer

In the presence of:

Signature (witness)

Name

Address

Occupation

[Service Provider]

Name: _____

Signature:

Title: _____

Stamp:

Duly authorised to sign this Contract for and on behalf of the Service Provider

In the presence of:

Signature (witness)

Name

Address

Occupation

APPENDIX 1

CONTRACT DATA

Item Description	Clause No.	Data
------------------	------------	------

Contract Title	N/A	[Insert]
----------------	-----	----------

Contract Number	N/A	[Insert]
-----------------	-----	----------

Services Fee 11.1

The Services Fee is calculated and payable in accordance with Schedule 1 (Services Fee).

Service Provider's Representative 1.1

[Insert name of Service Provider's Representative]

Address: [Insert]

Tel: [insert]

Email: [insert]

Employer's Representative 1.1

[Insert name of Employer's Representative]

Address: [Insert]

Tel: [insert]

Email: [insert]

Facilities 1.1

[Insert description of Facilities here]

Guarantor 1.1

[Insert name of Guarantor]

Project 1.1

[Insert description of project here]

Address for service of notices, communications, etc. 1.3

Employer:

TECHCO Company

Attention: [insert representative name]

PO Box [insert], Riyadh, KSA

Tel: [insert]

Service Provider:

[insert name of Service Provider]

Attention: The Service Provider's Representative

Address: [Insert]

Tel: [insert]

Email: [insert]

Design Review Services Start Date 8.2

[Drafting Note: if no Design Review Services are required, insert "Design Review Services are not included in the Scope of Services", otherwise select from the options below]

[the Commencement Date] OR [insert date]

Mobilisation Services Start Date 1.1

[insert] days prior to the scheduled O&M Start Date

[Where Mobilisation Services consist of multiple stages insert instead: The Service Provider shall commence each of the Mobilisation Services in accordance with the timetable set out in Schedule 3 (Mobilisation Plan)]

O&M Start Date 1.1

[insert]

Performance Bond 4.2

Ten percent (10%) of the Services Fee for the period covered by the Performance Bond

Parent Company Guarantee 4.2

[Yes/No]

Novation of the Prior Services Contracts 4.7

The Service Provider consents to the novation from the Employer to the Service Provider, of each of the Prior Services Contracts specified below:

[insert name of Prior Services Contract]

[insert name of Prior Services Contract]

KPI Deductions Cap 8.8(e)

The total amount of KPI Deductions shall not exceed [[insert fixed amount] OR [[insert percentage]% of the aggregated Services Fees for the Operations Phase]. [delete as applicable]

Time period for conducting the Handover Audit 14.4

Not less than [twenty-four (24) months] and not more than [twenty-seven (27) months] to the scheduled Term Expiry Date.

Limitation of Liability 15.5

Subject to Clause 15.5(c) (Limitation of Liability), the Service Provider's liability shall not exceed [insert eg an amount equal to [12] months x anticipated Services Fee].

APPENDIX 2

CONDITIONS

TABLE OF CONTENTS

Appendix 1 Contract Data v

Appendix 2 Conditions vii

1. Defined Terms and Interpretation 1

1.1 Definitions 1

1.2 Interpretation 7

1.3 Communications 8

1.4 Language 9

1.5 Joint and Several Liability 9

1.6 Entire Agreement 10

1.7 Assignment and Novation 10

1.8	Confidential Details	10
1.9	Compliance with Laws	11
2.	The Employer	12
2.1	Permits	12
2.2	Employer's Personnel	13
2.3	Employer's Audit Rights	13
3.	Employer's Representative	14
3.1	Employer's Representative's Duties and Authority	14
3.2	Delegation by the Employer's Representative	14
3.3	Instructions to the Service Provider	15
3.4	Replacement of the Employer's Representative	15
3.5	Determinations	16
3.6	Employer's Representative's Overtime	16
4.	The Service Provider	16
4.1	Service Provider's General Obligations	16
4.2	Performance Bonds and PCG	17
4.3	Service Provider's Representative	18
4.4	Co-operation	19
4.5	Safety Procedures	19
4.6	Sufficiency of the Services Fee	19
4.7	EHSQ Plan	20
4.8	Novation of Prior Services Contractors	20
4.9	Employer's Requirements and Employer's Procedures	21
4.10	Prohibited Materials	21
4.11	Registered or Licensed	21
4.12	Prohibited Acts	21
4.13	Data Protection	21

4.14	Systems, Platform and Applications	21
4.15	Maintaining Cybersecurity Resilience	22
4.16	Environmental Attributes	22
4.17	Local Content	22
5.	Subcontracting	22
5.1	Subcontractors Generally	22
5.2	Nominated Subcontractors	23
5.3	Content of all Subcontracts	23
5.4	Payments to Subcontractors	24
5.5	Termination of Subcontracts	24
5.6	Assignment of Benefit of Subcontract	25
6.	Staff and Labour	25
6.1	Engagement of Staff and Labour	25
6.2	Rates of Wages and Conditions of Labour	25
6.3	Persons in the Service of Employer	26
6.4	Labour Laws	26
6.5	Facilities for Staff and Labour	26
6.6	Health and Safety	26
6.7	Service Provider's Personnel	26
6.8	Disorderly Conduct	27
6.9	Epidemics and Pandemics	27
7.	The Facilities, Site and Access	28
7.1	Access Licence	28
7.2	Access Licence Terms	28
7.3	Other Land	29
7.4	Facilities and Site Condition	29
7.5	Electricity, Water and Gas	29

7.6	Security of the Site	29
7.7	Service Provider's Operations on Site	30
7.8	Security Interest	30
8.	Services	31
8.1	Service Standards	31
8.2	Design Review Services	31
8.3	Mobilisation Services	32
8.4	O&M Services	32
8.5	Operating and Maintenance Procedures	32
8.6	Quality Assurance	33
8.7	Continuous Improvement	34
8.8	KPIs	34
8.9	Periodic and other Reports	35
8.10	Services Review Group	35
8.11	Coordination	36
8.12	Training	36
9.	Employer Financing	36
10.	Variations and Adjustments	37
10.1	Variations	37
10.2	Value Engineering	39
10.3	Adjustments for Changes in Legislation	39
10.4	Adjustments for Changes in Cost	40
10.5	Adjustments to the Services Fee	40
11.	Services Fee and Payment	41
11.1	The Services Fee	41
11.2	Payment Applications and Certificates	42
11.3	Issue of Payment Certificates	44

11.4	Payment	45
11.5	Services Completion Certificates	45
11.6	Discharge	46
11.7	Cessation of Employer's Liability	46
11.8	Payments to Employer	46
11.9	Variations	47
11.10	Set-Off	47
12.	Termination by Employer	47
12.1	Notice to Correct	47
12.2	Termination by Employer	47
12.3	Valuation at Date of Termination	48
12.4	Payment after Termination	48
12.5	Employer's Termination for Convenience	48
13.	Termination by Service Provider	49
13.1	Termination by Service Provider	49
13.2	Cessation of Work	49
13.3	Payment on Termination	49
14.	Demobilisation Services	50
14.1	Demobilisation Services	50
14.2	Duty to Co-operate	50
14.3	Transfer of responsibility	50
14.4	Handover Audit	50
15.	Risk and Responsibility	51
15.1	Indemnities	51
15.2	Employer's Risks	51
15.3	Consequences of Employer's Risks	51
15.4	Intellectual and Industrial Property Rights	52

15.5	Limitation of Liability	54
15.6	Employer's Step-in Rights and Additional Remedies	54
16.	Insurance	55
16.1	Service Provider's Insurances	55
16.2	General Requirements	56
16.3	Disclosure and Compliance	56
17.	Force Majeure	56
17.1	Definition of Force Majeure	56
17.2	Notice of Force Majeure	57
17.3	Duty to Minimise Delay	58
17.4	Consequences of Force Majeure	58
17.5	Force Majeure Affecting Subcontractor	58
17.6	Optional Termination, Payment and Release	58
17.7	Special COVID-19 and Epidemic/Pandemic Provisions	59
18.	Claim and Dispute Resolution	60
18.1	Service Provider's Claims	60
18.2	Employer's Claims	62
18.3	Amicable Settlement	62
18.4	Arbitration	62
18.5	Miscellaneous	64
19.	Miscellaneous Provisions	64
19.1	Warranties as to Capacity	64
19.2	Warranties as to Solvency	64
19.3	Severability	65
19.4	Counterparts and Electronic Signatures	65
19.5	Independent Contractor	65
19.6	Privity	65

19.7	Waiver	65
19.8	Imports and Customs	66
19.9	Rights Cumulative	66
19.10	No Variation	66
19.11	Costs	66
19.12	Further Documentation	66
19.13	Obligations Continuing	66
SCHEDULE 1	Services Fee	67
SCHEDULE 2	Scope of Work	102
SCHEDULE 3	Mobilisation Plan	104
SCHEDULE 4	Employer's Requirements	105
SCHEDULE 5	Employer's Procedures	106
SCHEDULE 6	Subcontracting	107
SCHEDULE 7	Key Personnel	108
SCHEDULE 8	Key Performance Indicators	109
SCHEDULE 9	Insurance	110
SCHEDULE 10	Local Content	112
Annexure 1	Form of Performance Bond	113
Annexure 2	Form of Parent Company Guarantee	116
Annexure 3	Forms of Novation Agreement	121
Annexure 4	Form of Subcontractor Collateral Warranty	129
Annexure 5	Form of Occupancy Agreement	131
Annexure 6	Form of Services Completion Certificate	148

1. Defined Terms and Interpretation

1.1 Definitions

In this Contract:

Access Licence has the meaning given to it in Clause 7.1 (Access Licence).

Accounting Principles means the generally accepted accounting principles applicable from time to time in KSA.

Affiliate means, in relation to any party, any other party that directly or indirectly controls or is controlled by or is under common control with such party. For the purposes of this definition control means that a person possesses, directly or indirectly, the power to direct or cause the direction of the management and policies of the other party, whether through the ownership of voting shares, by contract or otherwise, and controls and controlled shall be interpreted accordingly.

Approved Subcontractor means a Subcontractor listed in Schedule 6 (Subcontracting) as being an 'Approved Subcontractor'.

Authority means any local, regional, territorial, free zone, municipal government, ministry, government department, commission, board, bureau, agency, instrumentality, executive, judicial or administrative body having jurisdiction within KSA over the Project, the Services, the Service Provider, the Employer or any of their Affiliates.

Beneficiaries means any one or more of the following:

- (a) any Financing Parties;
- (b) any purchaser or transferee taking or intending to take an interest in the whole or any part of the Facilities at any time;
- (c) any tenant or lessee taking or intending to take an interest in the whole or any part of the Facilities at any time;
- (d) any operator occupying or intending to occupy the whole or any part of the Facilities; or
- (e) any owner of the whole or any part of the Facilities where the Employer is not the owner at the Signature Date.

Clause means a clause in these Conditions.

Commencement Date means the date specified in the Contract Agreement.

Conditions means the conditions of contract in this Appendix 2 to the Contract Agreement comprising Clauses 1 to 19 (Miscellaneous Provisions) (inclusive).

Contract means the agreement between the Employer and the Service Provider comprising the documents listed in Paragraph 2.1 of the Contract Agreement.

Contract Data means the completed pages entitled 'Contract Data' appended as Appendix 1 to the Contract Agreement.

Cost means all expenditure reasonably and necessarily incurred by the Service Provider in performing the Services in accordance with the Contract, whether on or off the Site, excluding overheads, mark-up, margin or profit and also excluding any expenditures or costs disallowed under Schedule 1 (Services Fee).

COVID-19 means the coronavirus disease caused by severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2), as recognised as a Pandemic by the World Health Organization on 11 March 2020, and such term shall include mutations of the same.

day means a Gregorian calendar day, and year means three hundred and sixty-five (365) days.

Delegated Assistants has the meaning given to it in Clause 3.2(a) (Delegation by the Employer's Representative).

Demobilisation Services means the Service Provider's Obligations under Clause 14 (Demobilisation Services).

Dealings has the meaning given to it in Clause 1.6(a).

Design Review Services means those design review services described in the Scope of Work in Schedule 2 (Scope of Work) to be provided by the Service Provider in accordance with Clause 8.2 (Design Review Services).

Design Review Services Start Date means the date stated in the Contract Data for the Commencement of the Design Review Services.

Direct Agreement means the agreement contemplated in Clause 9(d) (Employer Financing).

Dispute has the meaning given to it in Clause 18.3(a) (Amicable Settlement).

Document Retention Period has the meaning given to it in Clause 2.3(a) (Employer's Audit Rights).

Draft EHSQ Plan has the meaning given in Clause 4.7(a)(i) (EHSQ Plan).

EHSQ Plan has the meaning given in Clause 4.7(c) (EHSQ Plan).

Emission Reductions means all emission (including, without limitation, gas, chemical, pollutant or other substance) reductions, avoidances, displacement, and/or removals created by, arising from or related to the Project and/or the Facilities.

Employer's Permits means those Permits which are expressly stated in the Employer's Procedures and the Scope of Work as being the responsibility of the Employer to obtain but excludes the Service Provider's Permits.

Employer's Personnel means the Employer's Representative, all Delegated Assistants and all other staff, labour and other employees of the Employer and of the Employer's Representative, and any other personnel notified to the Service Provider by the Employer or the Employer's Representative as the Employer's Personnel.

Employer's Representative means the person appointed by the Employer to act as the Employer's Representative for the purposes of the Contract and named in this position in the Contract Data, or such other person appointed from time to time by the Employer and notified to the Service Provider under Clause 3.4 (Replacement of the Employer's Representative).

Employer's Requirements means the document entitled "Employer's Requirements", included in Schedule 4 (Employer's Requirements) which includes the Employer's requirements with respect to cashflow, planning and scheduling and includes any additions and modifications to such documents in accordance with the Contract.

Encumbrance means any mortgage, lien, pledge, claim, charge, retention of title, lease, security or encumbrance of any kind.

Environmental Attributes means:

(a) all existing and future rights and benefits of any kind arising from or related to Renewable Energy Certificates, Green Gas Certificates, Energy Efficiency Certificates, Emission Reductions including, without limitation, any credits, allowances, offsets, certificates, or other units of any kind whatsoever, and any other property right or attribute of any kind whatsoever, whether or not tradeable, howsoever arising whether under international agreement, Law, any voluntary program or trading system or otherwise; and

(b) all revenues, entitlements, benefits and other proceeds arising from or related to any of the foregoing.

Epidemic means the occurrence in a community or region of cases of an illness, specific health-related behaviour, or other health-related events clearly in excess of normal expectancy within the community or region and the period in which the cases occur being precisely specified, or as the term may otherwise be defined by the World Health Organisation from time to time.

Epidemic/Pandemic FM Notice has the meaning given to it in Clause 17.7(a)(ii) (Special COVID-19 and Epidemic/Pandemic Provisions).

Existing COVID-19 Laws has the meaning given to it in Clause 17.7(a)(i) (Special COVID-19 and Epidemic/Pandemic Provisions).

Exception Items means any minor outstanding Services or defects in the Services which:

- (a) will not affect the use or safety of the Facilities for their intended purpose;
- (b) can be completed or rectified promptly by the Service Provider without causing inconvenience or nuisance to the Employer or any third parties; and
- (c) do not cause any restriction under any applicable Laws or under any direction of any Authority for the use and occupation of the Facilities.

Facilities means the facility or facilities described in the Contract Data.

Financing Agreements means the documents and arrangements relating to the provision of credit, finance and other financial accommodation or facilities to the Employer in connection with the Facilities and/or the Project or the provision of security for such credit, finance or other financial accommodation or facilities.

Financing Parties means the persons providing credit, finance or other financial accommodation or facilities, or receiving security, in connection with the financing of the Facilities and/or the Project under the Financing Agreements.

Force Majeure has the meaning given to it in Clause 17 (Force Majeure).

Founding Law means the founding law for TECHCO.

Goods means any and all supplies of goods, materials, plant, apparatus, machinery or vehicles necessary for, or otherwise intended for use in, the Facilities and the Service Provider's performance of the Services.

Green Gas Certificates means certificates created from green gases such as green hydrogen, biogas etc., arising from or related to the Project and/or the Facilities (unit: per volume or energy content).

Guarantor means the entity so named in the Contract Data.

Handover Audit has the meaning given to it in Clause 14.4(b) (Handover Audit).

Handover Conditions means the minimum condition for each of the relevant components of the Facilities as described in the Employer's Procedures and the Scope of Work.

Insolvency Event means an event whereby a party becomes or is deemed to be insolvent or bankrupt, enters into liquidation, whether voluntary or compulsory (other than for solvent reconstruction), passes a resolution for its winding up, has a receiver, manager or administrator, trustee or similar officer appointed over the whole or any part

of its assets, makes any composition or arrangement with its creditors or takes or suffers any similar action in consequence of its debt.

Intellectual Property Rights includes patents, inventions, copyrights and related rights, trademarks, trade names, service marks and domain names, goodwill, rights to sue for passing off, design rights, database rights, rights in know-how and confidential information, trade secrets, moral rights, proprietary rights and any other intellectual property rights, in each case whether registered or unregistered, and including all applications or rights to apply for such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.

IP Materials has the meaning given to it in Clause 15.4(b) (Intellectual and Industrial Property Rights).

IT/OT Systems and Platforms has the meaning given in to it in Clause 4.14 (Systems, Platform and Applications).

Joint Venture has the meaning given to it in Clause 1.5 (Joint and Several Liability).

Key Performance Indicators means key performance indicators set out in Schedule 8 (Key Performance Indicators).

Key Personnel means those persons named in Schedule 7 (Key Personnel), or their replacements from time to time, as authorised under Clause 6.7 (Service Provider's Personnel).

KPI Deductions means the liquidated damages to be deducted from payments due to the Service Provider (or otherwise recovered from the Service Provider) in accordance with this Contract in respect of KPI Failures and calculated as set out in Schedule 8 (Key Performance Indicators).

KPI Deductions Cap means the maximum aggregate amount of KPI Deductions that may become payable by the Service Provider as set out in the Contract Data.

KPI Failure means a failure by the Service Provider to achieve a Performance Level.

KPI Report has the meaning given in Clause 8.8(b) (KPIs).

KSA means the Kingdom of Saudi Arabia.

Laws means all legislation, statutes, ordinances, laws, treaties, decrees, codes, resolutions, acts, rules, orders, directives, regulations, standards, decisions, judgments, injunctions, authorisations, by-laws and any other legal requirements of any Authority.

Local Content Requirements has the meaning given in Schedule 10 (Local Content).

Mobilisation Period means the period on and from the Mobilisation Services Start Date until the O&M Start Date.

Mobilisation Plan means the plan attached as Schedule 3 (Mobilisation Plan).

Mobilisation Services means the mobilisation and other preparatory work and services undertaken by the Service Provider in accordance with the Contract, including the Mobilisation Plan.

Mobilisation Services Start Date means the date stated in the Contract Data for the Commencement of the Mobilisation Services.

New Epidemic/Pandemic Laws has the meaning given to it in Clause 17.7(a)(i) (Special COVID-19 and Epidemic/Pandemic Provisions).

New Service Provider has the meaning given to it in Clause 14.2 (Duty to Co-operate).

Nominated Subcontractor means a Subcontractor:

- (a) listed in Schedule 6 (Subcontracting) as being a 'Nominated Subcontractor'; or
- (b) whom the Employer's Representative, under Clause 5.2 (Nominated Subcontractors) instructs the Service Provider to employ as a Subcontractor.

Notice of Dispute has the meaning given to it in Clause 18.3(a) (Amicable Settlement).

O&M Manuals has the meaning given to it in Clause 8.5(a) (Operating and Maintenance Procedures).

O&M Services means all of the Service Provider's operation and maintenance obligations under this Contract from the O&M Start Date, including the Operation Management Requirements.

O&M Start Date means the date stated in the Contract Data for the commencement of the O&M Services.

Occupancy Agreement means an agreement substantially in the form set out in Annexure 5 (Form of Occupancy Agreement) between an accommodation provider approved by the Employer and the Service Provider.

Official Gazette means Um Al-Qura, the official newspaper of the Government of KSA, as issued from time to time.

Operation Management Requirements means the set of procedures and requirements, provided by the Employer, included in the Employer's Procedures and the Scope of Work for the proper implementation of the Services.

Other Contractor means any person, other than the Service Provider and its Subcontractors, appointed to undertake works or services under a contract with the Employer as part of the Project.

Pandemic means the worldwide spread of a new disease and recognised as such by the World Health Organisation, or as such term shall be defined by the World Health Organisation from time to time, and includes COVID-19.

Paragraph means a paragraph in the Contract Agreement.

Parent Company Guarantee means the parent company guarantee procured by the Service Provider from the Guarantor in accordance with Clause 4.2(f) (Performance Bonds and PCG) in the form set out in Annexure 2 (Form of Parent Company Guarantee).

Party means the Employer or the Service Provider, as the context requires.

Payment Application means a payment application issued by the Contractor under Clause 11 (Services Fee and Payment).

Payment Certificate means a payment certificate issued under Clause 11 (Services Fee and Payment).

Payment Period has the meaning given to it in Clause 11.2 (Payment Applications and Certificates).

Performance Bond means the performance bond required under Clause 4.2 (Performance Bonds and PCG).

Performance Levels means the minimum standards of performance to be met by the Service Provider in the performance of the Services as set out in Schedule 8 (Key Performance Indicators).

Permits means all permits, licences, consents, authorisations, approvals, exemptions, clearances, permissions, notifications, applications, filings, registrations, lodgements, deeds, certificates, directives, declarations, no objection certificates, grants and similar decisions of any kind required by applicable Laws or any Authority relating to the performance of the Services, and comprise the Employer's Permits and the Service Provider's Permits.

Prior Services Contract means each contract specified in the Contract Data or otherwise notified by the Employer to the Service Provider on or before the Signature Date comprising the execution of certain prior works related to the Project that have commenced prior to the Signature Date that have been, or are to be, novated by the Employer to the Service Provider.

Prior Services Contractor means a counterparty to the Employer under a Prior Services Contract.

Prohibited Act means any one or more of the following:

- (a) directly or indirectly offering to, or giving to, or accepting from (or agreeing to offer, give or accept from) any person retained or employed by or on behalf of the Employer, an Affiliate of the Employer, or any Authority, any bribe, gift, gratuity, commission or consideration of any kind as an inducement or reward;
- (i) for doing or not doing (or agreeing to do or not do the same) any act in relation to the obtaining, or performance, of the Contract, or any other agreement or arrangement relating to the Facilities, the Project or business with the Employer or an Affiliate of the Employer; or
- (ii) for showing or not showing favour or disfavour to any person in relation to the Contract or any other agreement or arrangement relating to the Facilities or the Project;
- (b) acting fraudulently or dishonestly, including committing any offence under any applicable Laws relating to fraudulent or dishonest acts, or defrauding or attempting to defraud or conspiring to defraud the Employer, an Affiliate of the Employer or any Authority; or
- (c) any act or omission which is reasonably likely to, or in fact does, cause damage to the reputation of the Employer.

Prohibited Materials means any Goods which:

- (a) affect or put at risk the health or safety of any person who may come into contact with the Facilities, save where such materials are used and handled in accordance with the safety plan developed in accordance with Clause 4.5 (Safety Procedures);
- (b) either by themselves or as a result of their use in a particular situation or in combination with other Goods, would or are likely to have the effect of reducing the normal life expectancy or performance of any other material or structure in which they are incorporated or to which they are affixed; or
- (c) the use of such Goods in the Services is prohibited in the Employer's Procedures or by applicable Law.

Project means the TECHCO project described in the Contract Data.

Reasonable and Prudent Service Provider means in respect of the Service Provider, its acting in good faith to perform its contractual obligations hereunder and, in so doing and in the general conduct of its undertaking hereunder, exercising that degree of skill, diligence, prudence, safety, environmental responsibility, and foresight which would

reasonably and ordinarily be expected from a skilled and internationally experienced operator complying with World Best Practice, engaged in the same or a similar type of undertaking, in the same or similar circumstances and conditions and any references herein to the standard of a Reasonable and Prudent Service Provider shall be construed accordingly.

Records includes the Service Provider's Documents, all books, construction logs, records, daily reports, accounts, schedules, health and safety records, payroll records, receipts, statements, electronic files, correspondence, documents, recordings, agreements, notes, minutes of meetings, site diaries and site supervisors' reports, invoices, receipts and vouchers, timesheets, payroll information, subcontractors, files (including proposals of successful and unsuccessful bidders, bid recaps and negotiation notes), original bid estimates, estimation worksheets, variation files, information detailing cash, trade discounts and volume rebates earned, insurance rebates and dividends.

Renewable Energy Certificates means certificates generated from renewable energy sources, arising from or related to the Project and/or the Facilities (unit: per energy generated).

SAR means Saudi Arabian Riyals.

Scope of Work means the document entitled "Scope of Work", included in Schedule 2 (Scope of Work) that contains a description of the Services and the scope of the Service Provider's obligations in performing the Services, and includes any additions and modifications to such document in accordance with the Contract.

Security Interest includes any bill of sale, as defined in any law, mortgage, charge, lien, pledge, assignment, hypothecation, title retention arrangement, trust or power, as, or having effect as, a security for the payment of any monetary obligation or the observance of any other obligation.

Service Provider's Permits means all Permits which are required for the performance of the Services and the Service Provider's other obligations under the Contract, including all Permits required by applicable Laws and by or with any Authority, but excludes the Employer's Permits.

Service Provider's Personnel means the Service Provider's Representative, Key Personnel and all other personnel whom the Service Provider utilises on or off the Site, who may include staff, labour and other employees of the Service Provider and of each Subcontractor, and any other personnel assisting the Service Provider in the performance of the Services.

Service Provider's Representative means the person named in this position by the Service Provider in the Contract Data or who is appointed in this position from time to time by the Service Provider and approved by the Employer under Clause 4.3 (Service Provider's Representative), who acts on behalf of the Service Provider under the Contract.

Services means the Design Review Services, the Mobilisation Services, the O&M Services, and the Demobilisation Services.

Services Completion Certificate means a certificate in the form set out in Annexure 6 (Form of Services Completion Certificate) issued to the Service Provider in accordance with Clause 11.5 (Services Completion Certificates)

Services Fee means the fee due to the Service Provider for the performance of the Services as described in the Contract Data and calculated and payable in accordance with Schedule 1 (Services Fee).

Services Review Group is the services review group referred to in Clause 8.10 (Services Review Group).

Signature Date means the date on which the Contract was executed by the Employer and the Service Provider as set out at the start of the Contract Agreement.

Site means the site(s) on which the Facilities sit and where the Services are to be performed.

Solvency Warranties has the meaning set out in Clause 19.2 (Warranties as to Solvency).

Subcontractor means any person named in the Contract as a subcontractor, or any person appointed by the Service Provider as a subcontractor (including a Nominated Subcontractor, or a supplier or manufacturer), for any part of the Services, and the legal successors in title to each of these persons and any subcontractor, supplier or manufacturer of each of these persons.

Subcontractor Solvency Warranties has the meaning given to it in Clause 5.3(a)(vi) (Content of all Subcontracts).

Tax means any tax (including any personal, Zakat, corporate value added or withholding tax), levy, impost, duty (including customs duty), registration fee or other charge or withholding of a similar nature (including any penalty payable in connection with any failure to pay or any delay in paying any of the same) whether levied by the Government of KSA or any government outside KSA.

Term is defined in the Contract Agreement.

Term Expiry Date means the last day of the Term.

Unilateral Variation Order means a notice instructing a Variation (or part of a Variation) which is issued by the Employer in accordance with Clause 10.1(f) (Variations).

Variation means any alteration, amendment, omission, addition or other variation to the Services (including those circumstances set out more particularly in Clause 10.1(i) (Variations)) agreed or determined in accordance with Clause 10.1 (Variations).

Variation Notice means a notice requesting a Variation which is issued by the Employer in accordance with Clause 10.1(a) (Variations).

Variation Order means a notice instructing a Variation which is issued by the Employer in accordance with Clause 10.1(d) (Variations) or Clause 10.1(e) (Variations), as the case may be.

Variation Proposal means a notice proposing a Variation which is issued by the Service Provider in accordance with Clause 10.1(a) (Variations).

VAT means a value added tax, sales tax or any other tax of a similar nature imposed or levied, directly or indirectly, by an Authority.

World Best Practice means the highest accepted practices, methods of working and standards which are generally recognised, exercised and adhered to as markers of excellence, by reputable international service providers experienced in providing services of a similar complexity, scope, type, nature, and purpose as the Services and in accordance with the requirements of all applicable Laws.

1.2 Interpretation

In this Contract, except where the context requires otherwise:

- (a) words indicating one gender include all genders;
- (b) words indicating the singular also include the plural and words indicating the plural also include the singular;
- (c) provisions including the word “agree”, “agreed” or “agreement” require the agreement to be recorded in writing;
- (d) “written” or “in writing” means hand-written, type-written, printed or electronically made, and resulting in a permanent record;
- (e) references to the word “including” or “includes” means “including, but not limited to”;

- (f) if a period of time is specified and commences on the day on which an event occurs, then the period of time shall be calculated exclusive of the day on which that event occurred;
- (g) a reference to any Law includes any statutory modification or re-enactment of, or legislative provisions substituted for, and any substituted legislation issued under, that Law;
- (h) a reference to specific standards, codes of practice and guidelines includes any modification, supplement and any substitution of such standards, codes of practice and guidelines;
- (i) unless the context otherwise applies, a reference to a paragraph is to a Paragraph in the Contract Agreement, a reference to a clause is to a Clause of these Conditions, a reference to an Appendix is to an Appendix to the Contract Agreement and a reference to a Schedule and an Annexure is to a Schedule and an Annexure to these Conditions;
- (j) a reference to a person includes, where appropriate, an individual, an unincorporated body of persons or association, a firm, partnership, joint venture, trust, a company, corporation or other body corporate or Authority;
- (k) the phrases “to the extent” and “to the extent that” are used to indicate an element of degree and are not synonymous with the word “if”;
- (l) subject to Clause 1.7, any reference to a Party includes the successors and assigns (immediate or otherwise) of that Party;
- (m) specific words indicating a type, class or category of thing do not restrict the meaning of general words following such specific words, such as general words introduced by the word other or a similar expression. Similarly, general words followed by specific words shall not be restricted in meaning to the type, class or category of thing indicated by such specific words;
- (n) a reference to a specific Authority includes any successor to such Authority which takes over the function or responsibilities of such Authority;
- (o) a reference to a specific agreement includes any permitted modification, supplement and substituted agreement;
- (p) headings shall not be taken into consideration in the interpretation of this Contract; and
- (q) the terms “reasonable endeavours”, “all reasonable endeavours” and “best endeavours” shall have the meaning given by English law. [Delete (q) if the contract is governed by English law. If the contract is governed by KSA law, just delete this note]

1.3 Communications

(a) Subject to Clause 1.3(b), wherever this Contract provides for the giving or issuing of approvals, certificates, consents, determinations, notices and requests, these communications shall be transmitted using any of the agreed systems of electronic transmission as specified in the Employer's Requirements or the Employer's Procedures. Such communications are deemed received on the date of notification specified by such electronic transmission system.

(b) All invoices issued in connection with the Services, all notices issued in connection with Clause 8 (Services), Clause 12 (Termination by Employer), Clause 13 (Termination by Service Provider) and any other form of claim issued by one Party against the other shall be transmitted using any of the agreed systems of electronic transmission as specified in the Employer's Requirements or the Employer's Procedures, with a copy to be sent by email, at the addresses set out in the Contract Data.

(c) In the event the agreed systems of electronic transmission as stated in the Employer's Requirements or the Employer's Procedures are unavailable, then these communications shall be:

(i) in writing and delivered by hand or sent by courier (in which case service is deemed against receipt); and

(ii) delivered or sent to the address for the recipient's communications as stated in the Contract Data.

However:

(iii) if the recipient gives notice of another address, communications shall thereafter be delivered accordingly; and

(iv) if the recipient has not stated otherwise when requesting an approval or consent, it may be sent to the address from which the request was issued.

(d) Unless expressly stated otherwise in this Contract, approvals, certificates, consents and determinations shall not be unreasonably withheld or delayed by the Employer. When a certificate is issued to a Party, the certifier shall send a copy to the other Party. When a notice is issued by one Party to the other Party, a copy of that notice shall be sent to the Employer's Representative. When a notice is issued by the Service Provider to the Employer's Representative, a copy of that notice shall be sent to the Employer.

1.4 Language

(a) If there are versions of any part of the Contract which are written in more than one language, the version which is in English shall prevail.

(b) The language for communications shall be English.

1.5 Joint and Several Liability

If the Service Provider is comprised of more than one person in a joint venture, consortium or other unincorporated grouping of two (2) or more persons (Joint Venture):

(a) these persons shall be jointly and severally liable to the Employer for all obligations and liabilities of the Service Provider under the Contract, and (without limiting or prejudicing Clause 1.7) in the event that any one of the said persons ceases to be a member of the Joint Venture or suffers an Insolvency Event, then the surviving person(s) shall have the obligation to continue to perform the Services in full accordance with the Contract and shall be empowered to use all resources furnished by any person to the Joint Venture and shall be entitled to have any applicable subcontracts assigned to it, subject to the Employer's termination rights under Clause 12.2 (Termination by Employer);

(b) the Employer may proceed against any or all of these persons for failure of the Service Provider to comply with any obligation arising under or in connection with the Contract or under any Law;

(c) the Service Provider shall notify the Employer in writing as to which of these persons (if not each of them) shall have the authority to bind the Service Provider and in the absence of such written notification the Employer shall be entitled to rely upon each of these such persons as having the authority to bind the Service Provider (and each of these persons) for all the purposes of the Contract;

(d) subject to the Employer's rights under Clause 1.5(e) below, the Service Provider shall keep the Employer informed promptly of any changes in the Joint Venture whether in relation to any incorporated entity and/or its constituent entities or the entities forming an unincorporated joint venture including: change in legal status; dissolution; amalgamation; demerger; merger; deterioration in financial condition; deratings; receiverships; liquidations; winding-up petitions; major legal claims and suits; and any other matter or circumstance that could reasonably be deemed to be of concern to the Employer; and

(e) the Service Provider shall not alter its composition or legal status without the prior consent of the Employer.

1.6 Entire Agreement

(a) The Contract constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior arrangements, statements, representations, communications, negotiations, agreements and contracts (whether written or oral) made between or entered into by the Parties prior to the Signature Date (Dealings).

(b) Neither Party shall seek to rely on any Dealings other than those that are expressly contained in the Contract.

1.7 Assignment and Novation

(a) The Service Provider shall not, without the prior written consent of the Employer, assign, novate or transfer the whole or any part of the Contract or any benefit, right, interest or any obligation of the Service Provider under the Contract.

(b) The Employer may assign, and the Service Provider hereby consents to the assignment of, the whole or any part of the Employer's benefit, right or interest under the Contract to any third-party including Affiliates of the Employer and any Beneficiary.

(c) The Employer may novate or transfer, and the Service Provider hereby consents to the novation or transfer of, the whole or any part of the Employer's rights and obligations under the Contract to:

(i) any Affiliate of the Employer or to a Beneficiary; or

(ii) any third party whose financial standing is, in the reasonable opinion of the Employer, satisfactory to carry out the obligations as 'Employer' under the Contract,

and the Service Provider shall execute a novation agreement in the relevant form set out in Annexure 3 (Forms of Novation Agreement) to effect such transfer. Such transfer shall become effective on the date of execution of such novation agreement.

1.8 Confidential Details

(a) The Service Provider shall, to the extent that it is permitted to do so by applicable Law and not prevented from doing so pursuant to a duty of confidentiality to a third party in respect of such information, disclose all such confidential and other information as the Employer's Representative may reasonably require in order to verify the Service Provider's compliance with the Contract and applicable Laws.

(b) All information and documentation obtained by the Service Provider or the Service Provider's Personnel in the course or conduct of the Contract performance of the Services shall be held confidential.

(c) Subject to Clause 1.8(d) below, all such information and documentation shall not, without the prior consent of the Employer, be divulged by the Service Provider, Service

Provider's Personnel or its Subcontractors to any third party, save to the extent necessary to effect the execution of the Contract and then only on the basis that the recipient of such information shall be bound by similar confidentiality obligations to those undertaken by the Service Provider.

(d) The obligation in Clause 1.8(b) above shall not apply to information and documentation which:

- (i) is required by the rules of any Authority or securities exchange on which securities of the Service Provider or Affiliate are listed; or
- (ii) is required by any court or arbitral tribunal of competent jurisdiction, tax authority or any competent judicial, governmental, supervisory or regulatory body; or
- (iii) becomes part of the public domain otherwise than in consequence of a breach of the Service Provider (or the Service Provider's Personnel or Subcontractors) of its obligations under this Clause 1.8 (or breach of a recipient of such confidential information of its separate confidentiality commitment).

The Service Provider may also disclose the information obtained under Clause 1.8(b) to its Affiliates or subsidiaries, employees, lenders and Subcontractors in each case to the extent necessary to perform its obligations under this Contract, provided that the Service Provider shall procure that each recipient is made aware of and complies with the Service Provider's obligations of confidentiality under this Contract as if the recipient was a party to this Contract.

(e) Without limiting Clause 1.8(b), the Service Provider must not (and shall procure that the Service Provider's Personnel and all Subcontractors do not) advertise or issue any information, publication, document or article (including photographs or film) for publication or media release or other publicity relating to the Facilities, the Contract, the Site (including the water boundaries offshore), any Service Provider's Personnel's accommodation, any labour issues, the appointment of Subcontractors, the Employer's business and activities or any matter relating to the Facilities or the Services without the prior written approval of the Employer.

(f) The Service Provider must refer to the Employer any enquiries from the media concerning the Facilities, the Services, the Contract, the Site (including the water boundaries offshore), any Service Provider's Personnel's accommodation, any labour issues, the appointment of Subcontractors, the Employer's business and activities or any matter relating to the Services.

(g) The Service Provider acknowledges that due to the nature and profile of the Project, certain classes of information in relation to the Project may require more extensive security and access control. At the request of the Employer, the Service

Provider must comply with the Employer's document security processes in relation to both hard and soft copies of various documents, as notified by the Employer from time to time.

(h) Without limiting the foregoing, the Service Provider must handle and store all the Service Provider's Documents, the Scope of Work, the Mobilisation Plan, the Employer's Procedures and the Employer's Requirements and other documents made by or on behalf of the Employer and all confidential information and other documents relating to the Services, the Facilities and the Project that are in its possession or control, strictly in accordance with the provisions of the Employer's Procedures.

(i) The Service Provider must ensure that all the Service Provider's Personnel, Subcontractors and all personnel of their Affiliates are bound by similar obligations to those undertaken by the Service Provider under this Clause 1.8, and the Service Provider must enforce such obligations.

(j) This Clause 1.8 shall remain binding on the Service Provider notwithstanding the termination of the Contract or the issue of the Services Completion Certificate.

1.9 Compliance with Laws

(a) The Service Provider shall, in performing its obligations under the Contract, comply, and shall ensure compliance by all Service Provider's Personnel and Subcontractors, with applicable Laws, the requirements of all Authorities and, in relation to the performance of any part of the Services outside KSA by the Service Provider, Service Provider's Personnel or any Subcontractor, the laws of the country(ies) in which that part of the Services are carried out.

(b) The Service Provider shall do all things necessary to enable all Authorities to fulfil their duties and functions in relation to the Services.

(c) The Service Provider must promptly give the Employer's Representative:

(i) copies of all notices, orders or directions given to or received by it or Subcontractors by any Authorities in connection with the Project pursuant to any Law; and

(ii) copies of all documents given by it or its Affiliates or Subcontractors to an Authority in connection with the Project pursuant to any Law.

(d) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims damages, losses and expenses (including legal fees and expenses) resulting from the Service Provider's failure (or any failure of any Subcontractors) to comply with any of the obligations under this Clause 1.9.

2. The Employer

2.1 Permits

(a) The Employer shall obtain the Employer's Permits.

(b) The Service Provider shall obtain the Service Provider's Permits, and the Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims, damages, losses and expenses (including legal fees and expenses) arising from any failure to do so.

(c) The Service Provider has satisfied itself as to the nature of all the Service Provider's Permits required for the performance of the Services and the performance of its other obligations under the Contract. The Service Provider must:

(i) in a timely manner apply for, and obtain all the Service Provider's Permits;

(ii) obtain any signatures required from the Employer and notify the Employer of, and arrange and attend, any meetings which the Parties or any Authorities reasonably determine is required for a Service Provider's Permit;

(iii) give all notices, pay all fees, taxes and duties, effect all insurances, provide bonds and undertakings, and otherwise comply with, carry out and fulfil all conditions and requirements imposed under or in connection with all the Service Provider's Permits;

(iv) comply with the requirements of all Authorities for processing and determining applications for all the Service Provider's Permits;

(v) maintain and renew all the Service Provider's Permits; and

(vi) perform its obligations and carry out the Services so as to comply with and not to cause a breach of the terms of any Permits in effect from time to time.

(d) The Service Provider must provide to the Employer's Representative:

(i) any applications for a Service Provider's Permit requiring signature from the Employer;

(ii) a copy of each Service Provider's Permit as soon as practicable after the Service Provider's Permit has been received by the Service Provider; and

(iii) copies of all documents given by the Service Provider, or Subcontractor, to any Authority in connection with obtaining or maintaining each Service Provider's Permit.

(e) The Service Provider shall (and shall procure that all Subcontractors shall), wherever practicable, utilise any relevant Authority's office located at or near the Site for all permitting matters associated with the Services.

(f) The Employer shall, where it is in a position to do so, provide reasonable assistance to the Service Provider, at the request of the Service Provider, for the Service Provider's applications for any Service Provider's Permits:

- (i) which are required by applicable Laws;
- (ii) for the delivery of Goods, including clearance through customs; and
- (iii) for the export of the Service Provider's Equipment when it is removed from the Site.

(g) For any Permits that are required to be in the Employer's name and/or signed and/or stamped by the Employer, the Service Provider shall prepare all necessary paperwork required by any relevant Authorities and by all Laws for such Permits. The Service Provider shall provide this to the Employer for signature and/or stamping.

(h) The Costs associated with the Service Provider complying with all obligations under this Clause 2.1 are deemed included the Services Fee.

(i) No failure by the Employer to provide such assistance shall absolve the Service Provider of its obligations under the Contract.

2.2 Employer's Personnel

The Employer shall procure that the Employer's Personnel and any Other Contractors on the Site:

- (a) co-operate with the Service Provider's efforts under Clause 4.4 (Co-operation); and
- (b) take actions required for it to:
 - (i) comply with applicable safety Laws;
 - (ii) comply with the requirements placed on the Employer in the Employer's Procedures whilst on the Site or at the Service Provider's premises;
 - (iii) take care for the safety of all persons entitled to be on the Site;
 - (iv) not place unnecessary obstruction within the Site or the Facilities to avoid danger to these persons; and
 - (v) carry out its obligations under the Contract in an environmentally responsible manner and in accordance with the Employer's Procedures and all environmental Laws, the Employer's environmental management requirements.

2.3 Employer's Audit Rights

(a) The Service Provider shall maintain full and detailed Records as may be necessary for the proper management and verification of its performance under the Contract, to substantiate any claim made by the Service Provider under the Contract including under Clause 18 (Claim and Dispute Resolution) and as required by applicable Laws. Such Records shall be prepared and maintained in accordance with the Accounting Principles and shall be retained and made available to the Employer at any time from the Signature Date to the date which is the later of the date:

(i) which the Service Provider is required to retain such Records in accordance with applicable Laws; and

(ii) which is the earlier of, seven (7) years after:

(A) the Term Expiry Date; or

(B) the date of termination of the Contract,

(the Document Retention Period).

(b) The Employer may require an audit of the Records to be undertaken at any time during the Document Retention Period. The right to audit shall include the Records of the Service Provider, the Service Provider's Personnel and Subcontractors and the Service Provider shall incorporate these rights into contracts with all Subcontractors.

(c) For the duration of the Document Retention Period, the Service Provider shall, within twenty-one (21) days' notice from the Employer, permit the Employer, the Employer's Personnel and/or their nominated representatives, or any representative of an Authority, to enter the Site and any other place where the Records are retained for the purposes of reviewing all Records and interviewing employees of the Service Provider as required for the execution of the audit review.

(d) The Employer may review any Records related to the Contract and interview any current or former employees of the Service Provider and Subcontractors.

(e) The Service Provider shall provide the Employer with adequate and appropriate working space, with access to photocopying machines, computers and internet, to audit such Records in order to confirm (amongst other matters):

(i) that all Costs claimed by the Service Provider, all Subcontractors (and their subcontractors and suppliers down the supply chain) have been properly and rightfully claimed and incurred in accordance with the Contract; and

(ii) that the Service Provider has otherwise complied with all other necessary procedures and other requirements of the Contract, including the Employer's Procedures and all applicable Laws.

(f) If any interview or audit contemplated under Clauses 2.3(b) to 2.3(d) (inclusive) demonstrates that the Employer has paid to the Service Provider any Costs or other amounts in circumstances where the Service Provider has not:

- (i) properly and rightfully claimed for any Costs; or
- (ii) otherwise complied with the necessary procedures and other requirements of the Contract,

then the Service Provider shall repay to the Employer all such amounts that have not been properly and rightfully claimed and which have already been paid to it. If such Costs exceed SAR 100,000 (in a single instance or in the aggregate), the Service Provider shall reimburse the Employer for the Employer's reasonable actual costs of such interview or audit, in both cases within thirty (30) days of a written request from the Employer.

3. Employer's Representative

3.1 Employer's Representative's Duties and Authority

(a) The Employer shall appoint an Employer's Representative who shall carry out the duties assigned to it under the Contract together with such additional duties as the Employer may require from time to time. The Employer's Representative shall exercise the authority attributable to the Employer's Representative as provided under the terms and conditions of the Contract and as may in addition be conferred on the Employer's Representative by the Employer in writing from time to time.

(b) Subject to Clause 3.1(c), the Employer's Representative may exercise all of the authority attributable to the Employer under the Contract.

(c) Notwithstanding Clause 3.1(b):

- (i) the Employer's Representative has no authority to relieve either Party of any duties, obligations or responsibilities under the Contract; and
- (ii) any approval, review, check, certificate, consent, examination, inspection, instruction, notice, proposal, request, test, or similar act by the Employer's Representative (including absence of disapproval or approval, review, check, certificate, consent, examination, inspection, instruction, notice, proposal, request, test, or similar act by the Employer's Representative) does not relieve the Service Provider from any responsibility it has under the Contract, including responsibility for errors, omissions, discrepancies and non-compliances.

(d) The Employer undertakes not to impose further constraints on the Employer's Representative's authority without prior notice to the Service Provider.

3.2 Delegation by the Employer's Representative

(a) Subject to the Employer's approval, the Employer's Representative may from time to time assign duties and delegate authority to assistants (Delegated Assistants) and may also revoke such assignment or delegation. These Delegated Assistants may include a resident engineer, and/or independent inspectors appointed to inspect the Services and the Facilities. The assignment, delegation or revocation shall be in writing and shall not take effect until copies have been received by both Parties. However, unless otherwise agreed by both Parties, the Employer's Representative shall not delegate the authority to determine any matter in accordance with Clause 3.5.

(b) Delegated Assistants shall be suitably qualified persons, who are competent to carry out these duties and exercise this authority, and who are fluent in the language for communications defined in Clause 1.4 (Language).

(c) Each Delegated Assistant shall only be authorised to issue instructions to the Service Provider to the extent defined by the delegation. Any approval, check, certificate, consent, examination, inspection, instruction, notice, proposal, request, test, or similar act by a Delegated Assistant, in accordance with the delegation, shall have the same effect as though the act had been an act of the Employer's Representative. However:

(i) any failure to disapprove any services shall not constitute approval, and shall therefore not prejudice the right of the Employer's Representative to reject the Services; and

(ii) if the Service Provider questions any determination or instruction of an assistant, the Service Provider may refer the matter to the Employer's Representative, who shall promptly confirm, reverse or vary the determination or instruction.

3.3 Instructions to the Service Provider

(a) The Employer or the Employer's Representative may issue to the Service Provider (at any time) instructions which may be necessary for the performance of the Services in accordance with the Contract.

(b) The Service Provider shall only take instructions from the Employer, the Employer's Representative or any delegated assistant. Any instruction by a delegated assistant that may, or does, lead to a claim by the Service Provider for additional Cost must be confirmed in writing by the Employer or the Employer's Representative. If an instruction constitutes a Variation, Clause 10 (Variations and Adjustments) shall apply; however, if there is no written instruction from the Employer, the Employer's Representative or any delegated assistant (confirmed in writing by the Employer or the

Employer's Representative as above), the Service Provider shall not be entitled to any additional Cost.

(c) The Service Provider shall forthwith comply with all instructions given by the Employer, the Employer's Representative or any delegated assistant on any matter related to the Contract. Instructions shall be given in writing, however, in emergencies, the instruction may be given verbally and the Service Provider must forthwith (and within forty-eight (48) hours of the verbal instruction) confirm its understanding of the verbal instruction by issuing a written acknowledgement to the Employer's Representative. Subject to Clause 3.3(e), if the Service Provider incurs Cost from complying with the Employer's Representative's instructions under this Clause 3.3 which it considers to be a Variation (but no Variation is issued by the Employer), the Service Provider shall be entitled to claim, subject to Clause 18.1 (Service Provider's Claims) payment of any such Cost to the extent permitted under Clause 10.5 (Adjustments to the Services Fee), which shall be included in the Services Fee.

(d) The Service Provider shall be obliged to comply with the requirements of the instruction pending determination of the Service Provider's claim, unless otherwise instructed by the Employer's Representative.

(e) The Service Provider shall not be entitled to any relief from its obligations under this Contract or any additional Cost where an instruction is issued requesting the Service Provider to comply with its obligations under the Contract.

3.4 Replacement of the Employer's Representative

The Employer may replace the Employer's Representative at any time. In such circumstance, the Employer shall, before the intended date of replacement, give notice to the Service Provider of the name, address, date of commencement of such appointment, and the duties of the intended replacement Employer's Representative. For the avoidance of doubt, the replacement of the Employer's Representative shall not require a formal amendment to this Contract and the serving of the abovementioned notice on the Service Provider will suffice.

3.5 Determinations

(a) Whenever the Contract requires the Employer's Representative to proceed in accordance with this Clause 3.5 to determine any matter, the Employer's Representative shall consult with each Party in an endeavour to reach agreement. Any such agreement reached will be documented in writing by the Employer's Representative and signed by the Parties. If agreement is not achieved, within ten (10) days (or such other time frame as may be agreed by the Parties), the Employer's Representative shall proceed in accordance with this Clause 3.5.

(b) The Employer's Representative shall give notice to both Parties of each agreement or determination with reasons and supporting particulars. Each notice of determination shall be given within thirty (30) days of the expiry of the time period referred to in Clause 3.5(a) above or such other time period as may be agreed between the Parties. Each Party shall give effect to each determination unless and until revised under Clause 18 (Claim and Dispute Resolution). Any amount determined to be due to:

(i) the Employer shall be due and payable from the date of such determination and must be paid within thirty (30) days of such determination; or

(ii) the Service Provider, may be included in the next Payment Application submitted in accordance with Clause 11.2(a) (Payment Applications and Certificates).

(c) Notwithstanding any other provision in the Contract, the Employer and the Employer's Representative are not bound to seek agreement or make any determination unless the Service Provider has first complied with Clause 18.1 (Service Provider's Claims), if applicable.

(d) The Employer's Representative shall correct any error of an arithmetical or clerical nature in either an agreement or determination, within seven (7) days of any such error being either identified by the Employer's Representative or notified to the Employer's Representative by one of the Parties, by issuing a replacement agreement or determination giving effect to such correction. Subject to Clause 18 (Claim and Dispute Resolution), the Parties shall give effect to such replacement agreement or determination.

3.6 Employer's Representative's Overtime

(a) If the Employer's Representative or any Delegated Assistant appointed pursuant to Clause 3.2 is obliged, as a result of any act or omission of the Service Provider or its Subcontractors which is negligent or in breach of the Contract, to supervise the Service Provider's operations in excess of the Employer's Representative's or Delegated Assistant's normal working hours as specified in the Employer's Requirements, the cost of such overtime shall be agreed between the Employer and the Service Provider or failing such agreement, shall be determined by the Employer's Representative in accordance with Clause 3.5 and shall be paid by the Service Provider to the Employer in accordance with Clause 3.6(b).

(b) The Employer shall pay the overtime costs of the Employer's Representative and each delegated assistant referred to in Clause 3.6(a) above and will deduct the agreed (or determined) amount of such costs for which the Service Provider is responsible from monies certified in any Payment Certificate as being otherwise due to the Service Provider.

4. The Service Provider

4.1 Service Provider's General Obligations

(a) The Service Provider shall perform the Services to the standard of the Reasonable and Prudent Service Provider and in accordance with and so as to achieve any performance requirements specified in the Contract including the Scope of Work and all instructions.

(b) The Service Provider shall undertake all services which are necessary to satisfy the Scope of Work and the Employer's Procedures and all other works which (although not expressly mentioned in the Contract) are necessary for the safe and proper operation of the Facilities and performance of the Services and shall supply all accessories and other items essential for the proper performance of the Services in accordance with the Employer's Procedures and the Employer's Requirements.

(c) Without restricting any other rights or remedies available to the Employer (including its rights under Clause 7 (The Facilities, Site and Access) whether at Law or otherwise, the Service Provider shall be liable for the consequences of errors, omissions or negligence on its part. The approval of the Employer's Representative or any Delegated Assistant shall in no way absolve or relieve the Service Provider from any such obligation, responsibility or liability.

4.2 Performance Bonds and PCG

(a) On or prior to the date falling thirty (30) days prior to the O&M Start Date, and at least thirty (30) days prior to the date of each anniversary of the O&M Start Date until the end of the Term, the Service Provider shall procure (at its cost) and deliver a Performance Bond for the proper performance of the Services under the Contract in the amount and in the currency specified in the Contract Data.

(b) The first Performance Bond must be valid for a period of twelve months from the O&M Start Date and each subsequent Performance Bond (or extended Performance Bond) must be obtained prior to the expiry of the previous Performance Bond and must be valid for a further period of twelve months from the previous Performance Bond.

(c) Notwithstanding any other provisions of the Contract, the Service Provider shall not be entitled to any payments under this Contract unless and until a Performance Bond has been delivered to the Employer in accordance with this Contract and a Performance Bond is current and valid.

(d) If the Service Provider fails to extend a Performance Bond or provide the Employer with a replacement Performance Bond as required under this Clause 4.2, the Employer may immediately call the outstanding balance of the Performance Bond (required to be extended or replaced) and hold the proceeds as security for compliance

by the Service Provider with its obligations and liabilities in respect of the Contract. The Employer may make deductions against the proceeds so held in respect of any claim for which it would have been entitled to bring in relation to the Performance Bond (which should have been extended or replaced). If the Service Provider subsequently provides an extended or replacement Performance Bond as required (and for the amount required under the Contract less the total of any deductions made by the Employer under this Clause 4.2), the Employer shall return the balance of the proceeds (without any interest to the Service Provider).

(e) For each Performance Bond:

(i) the Service Provider shall ensure that such Performance Bond is an unconditional bank guarantee in the relevant form provided in Annexure 1 (Form of Performance Bond) and that it is issued by a Saudi Arabian bank or financial institution or an international bank or financial institution with a branch located in KSA, in each case approved by the Employer and shall have a long term unsecured credit rating at least equivalent or higher than "A-" (Standard & Poor's) or "A3" (Moody's);

(ii) in addition to the Employer's rights above to call on a Performance Bond, the Employer shall be entitled to make a claim under a Performance Bond in accordance with the terms of the relevant Performance Bond, including where such right is provided elsewhere under the Contract and/or where there has been:

(A) a failure by the Service Provider to pay the Employer an amount due and payable by the Service Provider to the Employer under the Contract;

(B) a failure by the Service Provider to remedy a default under this Clause 4.2 within fifteen (15) days of receiving the Employer's notice requiring the default to be remedied; or

(C) circumstances which entitle the Employer to terminate under Clause 12.2 (Termination by Employer), irrespective of whether notice of termination has been given; and

(iii) if the relevant Performance Bond becomes invalid or the Employer has reasonable grounds for believing that the Performance Bond is about to become invalid, or an Insolvency Event has or is about to occur in relation to the financial institution providing the Performance Bond, or the long term unsecured credit rating of the financial institution providing the Performance Bond falls below the rating specified in Clause 4.2(e)(i), then the Service Provider shall, within twenty-eight (28) days of the relevant event above occurring, provide an alternative Performance Bond, to the Employer's satisfaction. If the Service Provider fails to provide an alternative Performance Bond to the Employer's satisfaction, the Employer shall be entitled to make a claim for the full value of the relevant Performance Bond.

(f) If required pursuant to the Contract Data, the Service Provider shall provide to the Employer a validly executed Parent Company Guarantee at the time, from the Guarantor and in the form referred to in Annexure 1 (Form of Parent Company Guarantee). The Service Provider shall also provide duly certified or notarised copies of all relevant documentation (including legal opinions) demonstrating to the Employer's reasonable satisfaction that such Parent Company Guarantee has been validly executed and is properly enforceable against the Guarantor.

4.3 Service Provider's Representative

(a) The Service Provider shall at all times have a Service Provider's Representative and the Service Provider shall give its Service Provider's Representative all authority necessary to act on the Service Provider's behalf under the Contract.

(b) Unless the Service Provider's Representative is named in the Contract, the Service Provider shall, prior to the Commencement Date, submit to the Employer's Representative for consent the name and particulars of the person the Service Provider proposes to appoint as Service Provider's Representative. If consent is withheld or subsequently revoked (which the Employer may do so in its sole discretion), or if the appointed person fails to act as Service Provider's Representative, the Service Provider shall similarly submit the name and particulars of another suitable person for such appointment.

(c) The Service Provider shall not, without the prior written consent of the Employer's Representative, revoke the appointment of the Service Provider's Representative or appoint a replacement. The Service Provider shall be entitled to request for a change in the Service Provider's Representative for the following reasons:

(i) serious illness or injury of the Service Provider's Representative or their immediate family;

(ii) definitive resignation of the Service Provider's Representative; or

(iii) other good and sufficient reasons accepted by the Employer, acting reasonably.

(d) If the Employer consents to the revocation of the appointment of the Service Provider's Representative, the Service Provider shall promptly propose to the Employer a replacement for the Service Provider's Representative. Any person proposed by the Service Provider as a replacement for the Service Provider's Representative shall be of suitable qualification and experience being as a minimum, hold the equivalent level of qualification and experience as the Service Provider's Representative being replaced. If the Employer does not consent to the proposed replacement, the Service Provider shall propose another suitable person satisfying the requirements of this Clause 4.3 for appointment.

(e) The entire time of the Service Provider's Representative shall be given to directing the Service Provider's performance of the Contract. If the Service Provider's Representative is to be temporarily absent from the Site during the performance of the Services, a suitable replacement person shall be appointed, subject to the Employer's Representative's prior consent, and the Employer's Representative shall be notified accordingly.

(f) The Service Provider's Representative shall, on behalf of the Service Provider, receive instructions under Clause 3.3 (Instructions to the Service Provider).

(g) The Service Provider's Representative may delegate any powers, functions and authority to any competent person, and may at any time revoke the delegation. Any delegation or revocation shall not take effect until the Employer's Representative has received prior notice signed by the Service Provider's Representative, naming the person and specifying the powers, functions and authority being delegated or revoked.

(h) The Service Provider's Representative and all these persons shall be fluent in the language for communications defined in Clause 1.4 (Language).

4.4 Co-operation

(a) The Service Provider shall, as specified in the Contract or as instructed by the Employer's Representative, allow appropriate opportunities for executing work to:

- (i) the Employer's Personnel;
- (ii) any Other Contractors employed by the Employer; and
- (iii) the personnel of any legally constituted public Authorities,

who may be employed in the execution on or near the Site of any work not included in the Contract.

(b) The Service Provider shall co-operate fully and pro-actively with, and co-ordinate its activities with, all contractors, service providers and suppliers employed by the Employer in relation to the Project so as not to obstruct, disrupt or delay work being performed by such Other Contractors.

(c) The Service Provider acknowledges that the Employer is undertaking significant construction and development work in relation to the Project and that such works may be undertaken in areas which are on, close or adjacent to the Site. The Service Provider acknowledges that the Employer may engage Other Contractors in the execution of works or services on or near the Site and that the Service Provider reasonably foresees the activities and/or works and services of those Other Contractors.

4.5 Safety Procedures

Without limiting Clause 6.6 (Health and Safety), the Service Provider shall develop, implement and enforce compliance with a safety plan in accordance with the health and safety requirements in the Contract, including the Employer's Procedures, so as to:

- (a) ensure compliance with all applicable safety Laws or instructions by the Employer;
- (b) take care for the safety of all persons entitled to be on the Site; and
- (c) keep the Site clear of unnecessary obstruction so as to avoid danger to these persons.

4.6 Sufficiency of the Services Fee

- (a) The Service Provider shall be deemed to have satisfied itself as to the correctness and sufficiency of the manner in which the Services Fee shall be calculated.
- (b) Unless otherwise stated in the Contract, Services Fee, including all of the rates and other prices, covers all the Service Provider's obligations under the Contract, all of the risks assumed by the Service Provider under this Contract and all things necessary for the proper performance of the Services in accordance with the Contract and the remedying of any defects.

4.7 EHSQ Plan

- (a) The Service Provider shall:
 - (i) within fourteen (14) days of an instruction to do so by the Employer's Representative, submit a fully detailed environmental, health and safety and quality assurance plan (the Draft EHSQ Plan) for the Employer's Representative's approval that demonstrates how the Service Provider will comply with the requirements of this Contract and the provision of quality assured services, including identifying:
 - (A) the procedures and timetables for internal inspections and audits the Service Provider will conduct on itself and its Subcontractors, to ensure its obligations under this Contract are satisfied;
 - (B) the procedures for recording compliance and non-compliance with its obligations under this Contract;
 - (C) the procedures for corrective actions; and
 - (D) any other information reasonably required by the Employer's Representative; and
 - (ii) throughout the performance of the Services, be quality assurance accredited in accordance with an internationally recognised authority for quality assurance accreditation and quality control.

- (b) The Employer's Representative may review the Draft EHSQ Plan and, if the Employer's Representative determines that amendments to it are required, provide a written notice to the Service Provider setting out the required amendments.
- (c) The Service Provider shall, upon receiving a notice from the Employer's Representative under Clause 4.7(b), promptly amend the Draft ESHQ Plan and re-submit it to the Employer's Representative for review by no later than seven (7) days after receipt of the notice from the Employer's Representative and the process shall be repeated until the Employer's Representative determines that the Draft EHSQ Plan is acceptable (the EHSQ Plan).
- (d) The Employer may, upon reasonable notice to the Service Provider, undertake audits of the Service Provider's compliance with the EHSQ Plan. The Service Provider shall provide access to all relevant documents and all other assistance as reasonably required by the Employer during these audits.
- (e) Where applicable, the Service Provider shall review all Service Provider Documents in accordance with the systems and procedures set out in the EHSQ Plan and ensure that the Service Provider Documents comply with the same.
- (f) Compliance with this Clause 4.7 will not relieve the Service Provider of any of its warranties, obligations or liabilities under or in connection with this Contract.
- (g) The Service Provider shall perform the Services in accordance with all applicable environmental health and safety and quality assurance and quality control policies, guidelines, standards, procedures and requirements of the Employer and all relevant Authorities (whether contained in the applicable Laws, protocols, plans, manuals or otherwise), the EHSQ Plan, the Employer's environmental management requirements and the Employer's Procedures and any other requirement which the Employer may notify to the Service Provider from time to time.
- (h) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims, damages, losses and expenses (including legal fees and expenses) resulting from the Service Provider's failure to comply with its obligations under this Clause 4.7.

4.8 Novation of Prior Services Contractors

- (a) The Service Provider consents to the novation from the Employer to the Service Provider, of each of the Prior Services Contracts specified in the Contract Data.
- (b) When requested by the Employer, the Service Provider must execute a novation agreement with the Employer and each Prior Services Contractor, each to be based on the form provided in Annexure 3 (Forms of Novation Agreement).

(c) The Service Provider has factored such obligations in this Clause 4.8 into the Services Fee and the Service Provider shall not be entitled to any additional Costs arising from or in relation to compliance with a request by the Employer under this Clause 4.8.

4.9 Employer's Requirements and Employer's Procedures

The Service Provider acknowledges that it has received copies of the Employer's Requirements and the Employer's Procedures on or before the Signature Date and that compliance with the Employer's Requirements and the Employer's Procedures has been factored into the Services Fee. In carrying out its obligations under the Contract, the Service Provider shall comply with the Employer's Requirements and the Employer's Procedures.

4.10 Prohibited Materials

The Service Provider shall not specify for use or permit the use in connection with the Services of any Prohibited Materials. The Service Provider shall promptly notify the Employer in writing if it becomes aware or has reason to suspect or believe that any Prohibited Materials have been or will be used in connection with the Services for any reason. The Service Provider shall, when requested and in any event prior to the completion of the Services, issue to the Employer and to such persons as the Employer may require a certificate that no Prohibited Materials have been specified for use or permitted to be used in the performance of the Services.

4.11 Registered or Licensed

The Service Provider shall at its cost:

- (a) at all times during the performance of the Services be; and
- (b) ensure that any person who performs any part of the Services is, registered and licensed as required by all applicable Laws to perform the Services.

4.12 Prohibited Acts

(a) Without limiting the Service Provider's general obligations under the Contract, the Service Provider must:

- (i) not commit any Prohibited Acts; and
- (ii) ensure that none of the Service Provider's Personnel or any Subcontractor commits any Prohibited Acts.

(b) The Service Provider represents that it has not committed any Prohibited Act in connection with its entry into the Contract and covenants that it will not commit any Prohibited Act in connection with the Contract.

4.13 Data Protection

The Service Provider shall, and shall procure that all Subcontractors or suppliers shall, at all times implement and maintain physical and digital security measures to protect information and data relating to the Project against unauthorised or unlawful processing, disclosure, use, accidental loss, destruction or damage. The Service Provider shall maintain data classification logs in accordance with the Employer's Procedures and as communicated to the Service Provider by the Employer from time to time.

4.14 Systems, Platform and Applications

Where the Service Provider intends to use digital or computerised systems, platforms, tools, technologies or applications (the IT/OT Systems and Platforms) in connection with the Services, it shall provide to the Employer evidence to confirm that appropriate levels of security testing and threat modelling have been deployed in the design, build and transportation of such IT/OT Systems and Platforms. No IT/OT Systems and Platforms shall be used by the Service Provider or a Subcontractor in connection with the Services without the Employer's prior written approval, such approval not to be unreasonably withheld.

4.15 Maintaining Cybersecurity Resilience

(a) The Service Provider shall, as requested by the Employer, submit evidence to the Employer of undertaking and passing, in each year from the first anniversary of the Signature Date until the completion of the Services, an annual independent security audit in compliance with such security standards as the Employer may direct from time to time.

(b) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents against and from all claims, damages, losses and expenses (including legal fees and expenses) to the extent arising out of or in connection with any breach of Clauses 4.13 to 4.15 (inclusive).

4.16 Environmental Attributes

(a) The Service Provider acknowledges that the Employer has all right, title and interest in and to all Environmental Attributes. To the extent the Service Provider has any right, title or interest in or to any Environmental Attributes, the Service Provider hereby assigns, transfers and relinquishes such right, title and interest to the Employer and the Service Provider releases all claims of any kind the Service Provider may now or hereafter have with respect to any Environmental Attributes. The Service Provider

shall not take any action inconsistent with the provisions of this Clause 4.16 or that would otherwise jeopardize the rights of the Employer in respect of any Environmental Attributes. The Service Provider shall in a prompt and diligent manner, at the Employer's cost, provide such cooperation as the Employer may reasonably require to enable the Employer to obtain, register, perfect or otherwise secure title to, or realise the benefit of any Environmental Attributes including, without limitation, providing information with respect to the Project and/or the Services, executing any documents and effecting any registrations required for such purpose.

(b) Notwithstanding any confidentiality obligations otherwise applicable under the Contract, the Employer may disclose to any third party any information with respect to the Project and/or the Services to obtain, register, perfect or otherwise realise the benefit of any Environmental Attributes.

(c) The Service Provider shall obtain an acknowledgement and agreement in favour of the Employer in a form substantially similar to Clauses 4.16(a) and 4.16(b) from each Subcontractor performing any relevant part of the Services for which Environmental Attributes may be available.

4.17 Local Content

The Service Provider shall comply with all Local Content Requirements as set out in Schedule 10 (Local Content).

5. Subcontracting

5.1 Subcontractors Generally

(a) The Service Provider shall not subcontract the whole of the Services. The Service Provider shall not subcontract any part of the Services to a Subcontractor (other than an Approved Subcontractor) without the prior written consent of the Employer, which may be withheld by the Employer in its absolute discretion.

(b) The Service Provider shall be responsible for the acts, omissions or defaults of any Subcontractor, its agents or employees, as if they were the acts, omissions or defaults of the Service Provider.

(c) If the Service Provider wishes to subcontract any part of the Services to a Subcontractor (other than an Approved Subcontractor), it shall provide the Employer with details of the proposed subcontract package, name of the proposed Subcontractor and any other information reasonably requested by the Employer.

(d) In the event that no response or request for further information is received from the Employer's Representative within fourteen (14) days of receipt of the information in Clause 5.1(c), the Service Provider may proceed with appointing the Subcontractor, but

the Employer's or the Employer's Representative's lack of response shall in no event relieve the Service Provider of its responsibility to comply with the requirements of this Contract.

(e) If requested by the Employer, the Service Provider shall also provide a draft of the proposed subcontract (and any tender documentation relevant to the proposed subcontract package) in sufficient time to enable the Employer to review the same to ensure that such subcontract contains the provisions required by the Contract and does not contain any provisions prohibited by the Contract.

(f) If the Employer gives notice to the Service Provider that the proposed subcontract does not contain any provision required by the Contract or contains any provision prohibited by the Contract, the Service Provider shall amend the subcontract and resubmit it to the Employer.

(g) The Service Provider shall not be entitled to any relief from its obligations under this Contract or any additional Cost arising from or in relation to the Employer's review (or lack of review) or from the Service Provider complying with its obligations under this Clause 5.1.

5.2 Nominated Subcontractors

(a) The Service Provider shall enter into a subcontract in accordance with the requirements of Clause 5.3 for the applicable part of the Services with each Nominated Subcontractor.

(b) The Service Provider shall not be under any obligation to employ a Nominated Subcontractor if the Nominated Subcontractor refuses to execute the subcontract in accordance with the relevant rates set out in Schedule 1 (Services Fee).

5.3 Content of all Subcontracts

(a) The Service Provider shall ensure that each subcontract includes the following provisions:

(i) a provision giving the advance consent of the Subcontractor to the Service Provider novating or transferring the subcontract to the Employer or its nominee pursuant to Clause 5.6 (if or when applicable) or in the event of termination under Clause 12.2 (Termination by Employer);

(ii) a provision requiring the Subcontractor to enter into a collateral warranty in favour of the Employer or any Beneficiary as may be directed by the Employer's Representative at the same time as execution of the relevant subcontract, in the form set out in Annexure 4 (Form of Subcontractor Collateral Warranty) or such other form and terms as the Employer may reasonably require;

- (iii) a provision similar mutatis mutandis to Clause 2.3 (Employer's Audit Rights) in favour of the Service Provider, the Employer, the Employer's Personnel and/or their nominated representatives;
- (iv) a provision acknowledging that the Subcontractor has received copies of the Employer's Requirements and the Employer's Procedures and that they shall comply with the Employer's Requirements and the Employer's Procedures;
- (v) a provision specifying that the laws of [KSA] shall be the governing law of the subcontract unless the Employer provides its prior written consent to another governing law; [change to laws of England if the Contract is governed by English Law]
- (vi) a provision entitling the Service Provider to terminate the subcontract for its convenience and entitling the Subcontractor to be compensated for such termination on terms similar mutatis mutandis to Clause 17.6 (Optional Termination, Payment and Release);
- (vii) the provision of representations and warranties from the Subcontractor to the Service Provider on terms mutatis mutandis to the representations and warranties given by the Service Provider to the Employer pursuant to Clause 19.2 (Warranties as to Solvency) (the Subcontractor Solvency Warranties);
- (viii) a provision requiring the Subcontractor to provide a written declaration signed by an authorised signatory of the Subcontractor having the content referred to in Clause 11.2(c)(iii) (Payment Applications and Certificates);
- (ix) a provision on terms mutatis mutandis to those set out in Clause 6.9 (Epidemics and Pandemics) concerning COVID-19, Epidemics and Pandemics; and
- (x) a provision entitling the Service Provider to remove and/or replace any employees of a Subcontractor on similar terms and with similar consequences mutatis mutandis to the Employer's rights under Clause 5.5.

(b) The Service Provider shall be prohibited from including within any subcontract a provision making payment to the Subcontractor under the subcontract conditional upon the Service Provider first receiving payment from any third person (including the Employer), unless such third person suffers what would otherwise be considered an Insolvency Event under this Contract.

5.4 Payments to Subcontractors

(a) The Service Provider is responsible for the payment of all amounts due to each Subcontractor pursuant to the terms of the relevant subcontracts and in addition to the requirements at Clauses 2.3 (Employer's Audit Rights) and 11.2(c)(ii) (Payment

Applications and Certificates) shall provide evidence of payment at the Employer's Representative's request.

(b) If the Employer becomes aware that a Subcontractor has not been paid any sum or sums due and owing to it from the Service Provider, is entitled to suspend work under a subcontract, or is entitled to terminate a subcontract (in either or all cases due to the Service Provider's failure to make payment to that Subcontractor in accordance with the terms of the relevant subcontract), and the Employer's Representative gives the Service Provider written notice seventy two (72) hours before it intends to pay the relevant Subcontractor, the Employer may pay that Subcontractor such money that the Employer determines is, or may be, owing to the Subcontractor for subcontracted work forming part of the Services. In such case, the Employer may set off from any amounts payable by the Employer to the Service Provider any such amount paid to the Subcontractor as a debt due and payable from the Service Provider to the Employer.

(c) If the Service Provider considers that it has a legitimate reason for non-payment of a sum or sums to a Subcontractor then it shall provide to the Employer full particulars of that reason (including copies of all supporting documentation) within the seventy two (72) hour notice period referred to in Clause 5.4(b). Upon receipt of such particulars and supporting documentation, the Employer shall be entitled to request further details as it considers necessary, including an entitlement to liaise directly with the applicable Subcontractor for that purpose. In determining whether to exercise its power to make payment directly to a Subcontractor, the Employer shall take into account the provided particulars and any further information ascertained.

5.5 Termination of Subcontracts

(a) The Service Provider shall, if requested by the Employer's Representative, terminate a subcontract under the Service Provider's termination for convenience right, and the Service Provider shall, if requested by the Employer's Representative, remove and/or replace any employees of a Subcontractor. If the Service Provider incurs Cost as a result of any such request by the Employer's Representative, the Service Provider shall be entitled to claim, subject to Clause 18.1 (Service Provider's Claims) payment of any such Cost to the extent permitted under Clause 10.5 (Adjustments to the Services Fee), which shall be included in the Services Fee.

(b) However, if a request to terminate a subcontract or remove and/or replace any employees of a Subcontractor was made due to the unsatisfactory performance and/or unsatisfactory conduct (including the committal of a Prohibited Act) by the relevant employee of the Subcontractor, the Service Provider shall not be entitled to any Costs resulting from such removal and/or replacement or request by the Employer's Representative.

(c) No subcontract shall be terminated by the Service Provider without the prior written consent of the Employer (which may be withheld by the Employer in its absolute discretion), except in the case where the Subcontractor has breached a provision of the relevant subcontract giving the Service Provider a clear and unequivocal right to terminate the subcontract, and in such case (and all other situations where the Service Provider intends to terminate a subcontract), the Service Provider shall provide prior written notice to the Employer of the Service Provider's intention to terminate the relevant subcontract.

(d) The Service Provider shall not be entitled to any additional Costs resulting from the Employer declining to approve any such termination.

(e) Notwithstanding Clause 5.5(c), where a Nominated Subcontractor is terminated, the Employer's Representative may, within thirty (30) days of termination, instruct the Service Provider at the Service Provider's cost to employ a replacement Nominated Subcontractor and the Service Provider shall subject to Clause 18.1 (Service Provider's Claims), be entitled to claim payment of any increase in the subcontract Cost charged by the replacement Nominated Subcontractor (when compared to the price of the original Nominated Subcontractor) to the extent permitted under Clause 10.5 (Adjustments to the Services Fee), which shall be included in the Services Fee.

(f) Nothing in this Clause 5.5 shall derogate from the Service Provider's obligations to perform the Services in accordance with the Contract.

5.6 Assignment of Benefit of Subcontract

(a) The Employer's Representative may upon termination of the Contract or in the event that the Services being performed by the relevant Subcontractor are no longer to be performed by the Service Provider in its sole discretion require that the Service Provider assign or novate to the Employer any subcontract, and the Service Provider shall (if required by the Employer's Representative) execute, and procure that any relevant Subcontractor shall execute, and provide to the Employer, within fourteen (14) days of being requested to do so, an agreement:

(i) on terms reasonably required by the Employer, giving effect to any such assignment; or

(ii) in the form set out in Annexure 3 (Forms of Novation Agreement) giving effect to any such novation.

(b) Save as set out in Clause 5.5(e), the Service Provider shall not, without the prior written consent of the Employer (which may be withheld in the Employer's sole discretion), assign or novate the whole or any part of any subcontract to any third party.

6. Staff and Labour

6.1 Engagement of Staff and Labour

Except as otherwise stated in the Employer's Requirements, the Employer's Procedures or the Scope of Work, the Service Provider shall make arrangements for the engagement of all staff and labour, local or otherwise, and for their payment, housing, feeding and transport.

6.2 Rates of Wages and Conditions of Labour

The Service Provider shall pay rates of wages, and observe conditions of labour, which are not lower than those established for the trade or industry where the work is carried out. If no established rates or conditions are applicable, the Service Provider shall pay rates of wages and observe conditions which are not lower than the general level of wages and conditions observed locally by employers whose trade or industry is similar to that of the Service Provider. The Employer reserves the right to audit compliance with this Clause 6.2.

6.3 Persons in the Service of Employer

The Service Provider shall not recruit, or attempt to recruit, staff and labour from amongst the Employer's Personnel.

6.4 Labour Laws

- (a) The Service Provider shall comply with all the relevant labour Laws applicable to the Service Provider's Personnel, including Laws relating to their employment, health, safety, welfare, immigration and emigration, and shall allow them all their legal rights.
- (b) The Service Provider shall require its employees to obey all applicable Laws, including those concerning safety at work and all Employer's Requirements and the Employer's Procedures relating to labour.

6.5 Facilities for Staff and Labour

- (a) The Service Provider shall provide and maintain all necessary on-Site and off-Site accommodation and welfare facilities for the Service Provider's Personnel in accordance with the Employer's Requirements and the Employer's Procedures. The Service Provider shall not permit any of the Service Provider's Personnel to maintain any temporary or permanent living quarters on the Site.
- (b) The Service Provider shall ensure that all the Service Provider's Personnel (except for Key Personnel and other personnel agreed with the Employer from time to time) are housed at any approved location listed in the Employer's Requirements and the Employer's Procedures. The Service Provider must enter into an Occupancy Agreement with one of the approved providers listed in the Employer's Requirements and the Employer's Procedures and deliver a copy of the executed Occupancy

Agreement to the Employer within five (5) days of executing such Occupancy Agreement. The Service Provider shall not, without the Employer's prior written consent, make or negotiate any changes to any Occupancy Agreement. [Drafting Note: Contact TECHCO Legal if Service Provider's employees will not be required to live in TECHCO-mandated accommodation]

6.6 Health and Safety

The Service Provider shall at all times take all precautions to maintain the health and safety of the Service Provider's Personnel in accordance with all applicable health and safety Laws, the EHSQ Plan and the Employer's Procedures.

6.7 Service Provider's Personnel

(a) The Service Provider's Personnel shall be appropriately qualified, skilled and experienced in their respective trades or occupations. The Employer's Representative may require the Service Provider to remove (or cause to be removed) any person employed on the Site, in the performance of the Services, including the Service Provider's Representative if applicable, who in the Employer's opinion:

- (i) persists in any misconduct or lack of care;
- (ii) carries out duties incompetently or negligently;
- (iii) fails to conform with any provisions of the Contract; or
- (iv) persists in any conduct which is prejudicial to safety, health, or the protection of the environment.

(b) If appropriate, the Service Provider shall then appoint (or cause to be appointed) a suitable replacement person, who in the case of Key Personnel must be approved by the Employer in accordance with Clause 6.7(g).

(c) The Service Provider shall ensure that the Service Provider's Personnel are provided with the required residence visas and work permits as required by all relevant Laws. The Service Provider shall be responsible for the return of all the Service Provider's Personnel to the place where they were recruited or to their domicile of import on the cessation of their employment in relation to the Services.

(d) The Service Provider shall ensure that the Key Personnel are employed in the performance of the Services and perform the roles required of their specified positions in Schedule 7 (Key Personnel) and are not removed from those positions without the prior approval of the Employer's Representative.

(e) The Key Personnel shall be assigned to the Services on a full-time basis or as otherwise agreed with the Employer.

(f) The Service Provider shall not, without the prior written consent of the Employer revoke the appointment of any of the Key Personnel or appoint a replacement. The Service Provider shall be entitled to request for a change in the Key Personnel for the following reasons:

- (i) serious illness or injury of such Key Personnel or their immediate family;
- (ii) definitive resignation of such Key Personnel; or
- (iii) other good and sufficient reasons accepted by the Employer, acting reasonably.

(g) If the Employer consents to the revocation of the appointment of any Key Personnel, the Service Provider shall promptly propose to the Employer a replacement for such Key Personnel. Any person proposed by the Service Provider as a replacement for any of the Key Personnel shall be of suitable qualification and experience being as a minimum, hold the equivalent level of qualification and experience as the Key Personnel being replaced. If the Employer does not consent to the proposed replacement, the Service Provider shall propose another suitable person satisfying the requirements of this Clause 6.7(g) for appointment.

6.8 Disorderly Conduct

(a) The Service Provider shall at all times take all reasonable precautions to prevent any unlawful, riotous or disorderly conduct by or amongst the Service Provider's Personnel, and to preserve peace and protection of persons and property on and near the Site.

(b) The Service Provider shall dismiss, or cause the dismissal of, any Service Provider's Personnel:

- (i) who is guilty of disorderly conduct;
- (ii) who is guilty of dishonesty or attempted dishonesty in relation to the Employer or any Employer's Personnel or commits a Prohibited Act;
- (iii) who disobeys applicable Laws; or
- (iv) who causes or attempts to cause trouble or unrest amongst the labour force.

6.9 Epidemics and Pandemics

In the event of any outbreak of illness of an Epidemic or Pandemic nature, the Service Provider shall comply with applicable Laws and carry out such regulations, reporting procedures, orders and requirements as may be made by any Authority for the purpose of dealing with and overcoming the same. Without limitation, the Service Provider undertakes:

- (a) to use all reasonable endeavours to prevent the spread of the applicable Epidemic or Pandemic (as applicable) at the Site and among the Service Provider's Personnel or any person at the Site, including ensuring availability of suitable personal protective equipment and the implementation and enforcement of social distancing rules and to pre-empt, avoid, and mitigate its impacts at the Site, on the Service Provider's Personnel and any other person at the Site;
- (b) that any person coming on the Site or otherwise performing the Services (other than employees or representatives of the Employer) shall have medical insurance in place for treatment related to the applicable Epidemic or Pandemic (as applicable) and the Employer shall make available appropriate medical support for any such person, and shall not allow any of the Service Provider's Personnel who have or may have symptoms of the Epidemic or Pandemic (as applicable) on the Site;
- (c) to comply and cause all persons coming onto the Site or otherwise performing the Services to comply at all times with the Laws of KSA related to the Epidemic or Pandemic (as applicable) and World Best Practice, including operational protocols, related to COVID-19;
- (d) to comply in good faith with all related reporting requirements, data gathering and information sharing requirements reasonably requested by the Employer;
- (e) to use such videoconferencing and similar remote working technology (such as Microsoft Teams) as the Employer may direct; and
- (f) to cause its Subcontractors at all levels to agree on a back-to-back basis with a clause in form and substance similar to that of this Clause 6.9.

7. The Facilities, Site and Access

7.1 Access Licence

The Employer grants to the Service Provider a non-exclusive licence, to enter, occupy and use the Facilities and the Site from the O&M Start Date (and if requested by the Service Provider and accepted by the Employer, from the start of the Mobilisation Period) until the end of the Term as may be reasonably necessary to perform the Services and otherwise fulfil its obligations under this Contract (the Access Licence).

7.2 Access Licence Terms

- (a) The Service Provider accepts the Access Licence subject to all restrictions and other rights benefiting or burdening the Site and the Facilities.
- (b) The Service Provider enters into this Contract with full knowledge of the matters affecting the ownership and title to the Site and the Facilities and is satisfied with the Employer's rights to the Site and the Facilities and the grant of the Access Licence.

(c) The Service Provider is responsible for all access to and from the Site and Facilities and shall be deemed to have been satisfied as to the suitability and availability of the same. The Service Provider shall use reasonable efforts to prevent any access routes from being damaged by the Service Provider's traffic or by the Service Provider's Personnel. These efforts shall include the proper use of appropriate vehicles, vessels and routes and any other steps which may be reasonably necessary to prevent damage by the Service Provider's traffic or by the Service Provider's Personnel. If any access route is damaged by the Service Provider, the Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from any losses, costs or damages arising out of such damage.

(d) In exercising its rights under the Access Licence, the Service Provider must take all reasonable steps to minimise any damage, inconvenience, disruption and disturbance to the Employer, Other Contractors (including during demobilisation during the Mobilisation Period) and to the owners, users and occupants of any land adjoining the Site and the Facilities and must make good any damage caused and indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from any losses, costs or damages arising from the exercise of such rights.

(e) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from any losses, costs or damages arising out of the exercise of its rights under the Access Licence and damage caused to any access route.

(f) The Service Provider must not claim any adjustment to the Services Fee nor will it claim to be exempted from the provisions of this Contract by reasons of complying with this Clause 7.2.

(g) The Service Provider has no right or claim with respect to any rights of ownership in relation to the Site or the Facilities. As between the Employer and the Service Provider, all chattels and non-fixtures comprising the Facilities, will be and remain the property of the Employer throughout the Term.

7.3 Other Land

The Service Provider acknowledges that identification of and access to any land not comprising the Site, to which access is required for the purposes of carrying out the Services or any part of it, is the sole responsibility and risk of the Service Provider, and the Service Provider may not claim, and the Employer will have no liability in respect of, any delay, additional Costs or losses or other effects on the ability of the Service Provider or its Subcontractors to comply with the Service Provider's obligations under this Contract caused by inability to obtain, or restrictions on, access to that land.

7.4 Facilities and Site Condition

- (a) The Service Provider is responsible for the Site and the Facilities during the Term and acknowledges that it has inspected the Site and the Facilities and their surroundings and all information, data and documents relating to the Site and the Facilities made available to it by the Company prior to the date of this Contract.
- (b) The Service Provider:
 - (i) accepts the Site, all buildings, improvements and other structures including the Facilities in their current state and physical condition; and
 - (ii) accepts entire responsibility for:
 - (A) the suitability or otherwise of the Site and the Facilities for the Services and any materials on the Site and the Facilities for use in the Services; and
 - (B) the existence, location and availability of all power, water, gas and other utility services.
- (c) The Employer makes no representation and gives no warranty to the Service Provider in relation to:
 - (i) the condition of the Site or any buildings, improvements and other structures including the Facilities;
 - (ii) the suitability or otherwise of the Site and the Facilities for the Services and any materials on the Site and the Facilities for use in the Services; or
 - (iii) the existence, location and availability of all power, water, gas and other utility services.

7.5 Electricity, Water and Gas

- (a) The Service Provider shall, except as stated below, be responsible for the provision of all power, water, gas and other services the Service Provider, the Service Provider's Personnel or Subcontractors may require.
- (b) The Service Provider shall be entitled to use for the purposes of the Services such supplies of electricity, water, gas, air-conditioning and other services as may be available on the Site at its cost, and of which details and prices are stated in Schedule 1 (Services Fee). The Service Provider shall, at its risk and cost, provide any apparatus necessary for its use of these services and for measuring the quantities consumed.
- (c) The quantities consumed and the amounts due and payable by the Service Provider (at the prices stated in Schedule 1 (Services Fee) for such services shall be

agreed or determined by the Employer's Representative in accordance with Clause 3.5 (Determinations). The Service Provider shall pay these amounts to the Employer.

7.6 Security of the Site

(a) The Service Provider shall comply with the security requirements of the Employer relating to access controls outside the Site, if any, specified in the Employer's Procedures and the Scope of Work.

(b) In relation to the Site:

(i) the Service Provider shall be responsible for keeping unauthorised persons off the Site;

(ii) authorised persons shall be limited to the Service Provider's Personnel and the Employer's Personnel and to any other personnel notified to the Service Provider, by the Employer or the Employer's Representative, as authorised personnel of the Employer's Other Contractors on the Site;

(iii) the Service Provider shall develop and submit to the Employer a Site security plan compliant with the requirements of the Contract within fourteen (14) days of the Commencement Date;

(iv) if the Employer gives the Service Provider notice that any person is not to be admitted to the Site, the Service Provider shall take all practicable steps to prevent that person being admitted;

(v) if requested by the Employer's Representative, the Service Provider shall give to the Employer's Representative a list of names and addresses of all persons who are or may be at any time concerned with the Services or any part thereof, specifying the capacities in which they are so concerned, and giving such other particulars as the Employer's Representative may reasonably require; and

(vi) where security passes are required for admission to the Site, the Service Provider shall issue, free of charge, to the Employer and the Employer's Representative the passes reasonably required by the Employer, the Employer's Representative and their respective nominees. The passes shall be returned at any time on the demand of the Employer's Representative and in any case on expiry of the Operations Phase.

7.7 Service Provider's Operations on Site

(a) The Service Provider shall confine its operations to the Site, and to any additional off the Site areas which may be obtained by the Service Provider and agreed by the Employer's Representative as working areas.

(b) The Service Provider shall not use any part of the Site for any purpose not connected with the performance of the Services without the prior approval of the Employer.

(c) During the performance of the Services, the Service Provider shall keep the Site free from all unnecessary obstruction and shall store or dispose of any Service Provider's Equipment or surplus materials. The Service Provider shall, on a daily basis, clear away and remove from the Site any wreckage and rubbish which are no longer required.

7.8 Security Interest

(a) The Service Provider shall not file, claim or register any Security Interest, and shall use its best efforts to prevent any Security Interest from being filed, claimed or registered by any Subcontractor or by any employee, servant or agent of the Service Provider or Subcontractor, against the Facilities or any real or other property of the Employer or the Service Provider, for any works done or any services rendered or Goods supplied under the Contract or any subcontract let by the Service Provider and shall procure that all subcontracts contain undertakings to the like effect.

(b) In the event that any such Security Interest should be filed, claimed or registered, the Service Provider shall immediately notify the Employer and shall promptly discharge, by bond or otherwise to the satisfaction of the Employer, such Security Interest.

(c) Until any Security Interest contemplated by Clause 7.8(b) is fully discharged, the Employer shall have the right to withhold one hundred and twenty five per cent (125%) of the full amount claimed giving rise to the Security Interest from any payments to be made to the Service Provider, and such withholding of payment shall not affect the other rights and obligations of the Parties under the Contract. Alternatively, the Employer may, at its discretion, discharge the Security Interest by paying the appropriate amount directly to the relevant person and deduct such amount from further payments to be made to the Service Provider pursuant to the Contract.

(d) If at any time the Service Provider shall allow indebtedness to accrue for labour, materials or Goods supplied under the Contract for which the Employer may become liable for payment or which may give rise to a Security Interest on or against any materials, Goods, the Facilities or any property of the Employer, the Employer may withhold payment in an amount equal to the amount of such indebtedness until the Service Provider has delivered satisfactory evidence that the said indebtedness has been fully and irrevocably discharged.

(e) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all

claims, damages, losses and expenses (including legal fees and expenses) to the extent arising out of or in connection with any Security Interest being filed, claimed or registered as referred to in Clause 7.8(b).

(f) On the first anniversary of the O&M Start Date and annually thereafter, the Service Provider shall certify to the Employer, by way of a certificate that it has no knowledge of any outstanding Security Interests or claims which may result in Security Interests affecting the Facilities or the Site.

(g) The Service Provider shall give written notice (and hereby also consents to the Employer giving written notice) to any landlord or land owner on which any materials or other property owned by the Employer are stored that such materials or property are owned by the Employer and shall otherwise ensure that such materials and property remain free from any and all Security Interests and Encumbrances.

8. Services

8.1 Service Standards

The Service Provider shall perform the Services to the standard of the Reasonable and Prudent Service Provider and in accordance with:

- (a) World Best Practice;
- (b) all applicable Laws and all Permits; and
- (c) the provisions of this Contract and direction of the Employer's Representative.

8.2 Design Review Services

(a) Unless the Contract Data provides that the Service Provider is not required to provide Design Review Services, on and from the Design Review Services Start Date, the Service Provider shall perform the Design Review Services in accordance with this Contract, including Schedule 2 (Scope of Work) and the Employer's Procedures, including making available one suitably qualified engineer as and when reasonably deemed necessary by the Service Provider, to review any drawings, data and other design materials provided to the Service Provider by or on behalf of the Employer that relate to the design, operation or maintenance of the Facilities.

(b) The Service Provider shall conduct the Design Review Services diligently and in accordance with Schedule 2 (Scope of Work), the Employer's Procedures, World Best Practice and the Contract and the Service Provider shall provide the Employer with written comments and observations on such drawings, data or other design materials, including any recommendations for modification to the design of any portion of the Facilities within [twenty five (25) days] after receipt or observation of the same by the

Service Provider (together with all other information reasonably requested by the Service Provider in order to provide such comments or observations).

(c) The scope of the Service Provider's review of such drawings, data or other design materials shall be limited to examining such materials for conformity with World Best Practice, potential improvements in Project reliability, availability and performance and potential measures to lower the cost of providing or operating and maintaining the Facilities and/or performing the Services.

(d) The Service Provider shall not assume any responsibility for any defects in such drawings, data or other design materials as a result of review, or failure to review, such documents pursuant to this Clause 8.1 and/or in no case be deemed or construed to be any form of confirmation or warranty of the adequacy or quality of engineering, design and/or construction of the Facilities.

8.3 Mobilisation Services

On and from the Mobilisation Services Start Date, the Service Provider shall perform the Mobilisation Services in accordance with this Contract, including the Mobilisation Plan. The Service Provider must co-operate with all Other Contractors (including the demobilisation of Other Contractors during the Mobilisation Period) and take all reasonable steps to minimise any damage, inconvenience, disruption and disturbance to the Employer, all Other Contractors (including during demobilisation during the Mobilisation Period). The Service Provider must not claim any adjustment to the Services Fee nor will it claim to be exempted from the provisions of this Contract by reasons of complying with this Clause 8.3.

8.4 O&M Services

(a) On and from the O&M Start Date, the Service Provider shall perform the O&M Services and in accordance with the Operation Management Requirements, the O&M Manuals and the Employer's Procedures.

(b) The Service Provider shall be responsible for the procurement, delivery and utilization of all materials, resources, consumables, spare parts, equipment and utilities required for the O&M Services.

(c) The Service Provider shall use reasonable endeavours to ensure that all materials, resources, consumables and spare parts are free from defects and that all materials, resources, consumables and spare parts and third party services conform in all respects with the O&M Manuals, the Employer's Procedures, World Best Practice and applicable Law.

8.5 Operating and Maintenance Procedures

(a) The Service Provider shall develop written operation and maintenance manuals for the Facilities (O&M Manuals). The O&M Manuals shall:

- (i) be based on and comply with the Operation Management Requirements;
- (ii) incorporate, to the extent required by World Best Practice, operating and maintenance procedures specified or recommended by the suppliers and manufacturers of equipment forming part of the Facilities in their operator's manuals;
- (iii) include an indicative schedule of routine maintenance activity which shall be designed to optimize the useful life of the Facilities and eliminate or minimize any adverse impact on the provision of the Services;
- (iv) be in accordance with applicable Laws; and
- (v) incorporate and provide comprehensive procedures for all operational interfaces between beneficiaries of the Services and the Service Provider.

(b) The Service Provider shall submit the O&M Manuals to the Employer's Representative no less than sixty (60) days prior to the O&M Start Date.

(c) If the Employer's Representative provides comments on the O&M Manuals within thirty (30) days following submission of the O&M Manuals to the Employer's Representative, the Service Provider shall, within twenty (20) days of its receipt of such comments, either incorporate requested changes to the O&M Manuals deemed appropriate by the Service Provider in its sole discretion and the final O&M Manuals will be delivered to the Employer's Representative. However, if such comments from the Employer's Representative reflect and reaffirm the requirements of the Operation Management Requirements, the Service Provider shall incorporate such comments into the O&M Manuals and deliver such final O&M Manuals to the Employer's Representative.

(d) The Service Provider acknowledges and agrees that:

- (i) the O&M Manuals are intended to provide a detailed description of how the Service Provider intends to comply with its obligations under this Contract; and
- (ii) the O&M Manuals will require ongoing development, amendment and updating throughout the Term to take into account:

(A) changes in Law;

(B) changes to the manner in which the Facilities are being used;

(C) deficiencies in or omissions from any O&M Manual, including any failure to meet any KPIs;

- (D) changes in World Best Practice;
 - (E) the continuous improvement obligations of the Service Provider under Clause 8.7; and
 - (F) Variations.
- (e) The Service Provider must:
- (i) continue to develop and promptly amend or update the O&M Manuals to take into account the occurrence of the events and circumstances referred to in Clause 8.5(c) above and, in any event, update the O&M Manuals and deliver a copy to the Employer's Representative within thirty (30) days of each anniversary of the O&M Start Date; and
 - (ii) promptly submit the O&M Manuals to the Employer's Representative as it is further developed, amended or replaced for review in accordance with this Clause 8.5(e).
- (f) Without limiting any other rights the Employer may have, if the Employer's Representative reasonably considers that:
- (i) operation in compliance with any O&M Manual has ceased to comply with the requirements of this Contract; or
 - (ii) the Service Provider has not further developed, updated or amended any O&M Manuals in accordance with the requirements of Clause 8.5(c),
- the Employer's Representative may by written notice direct the Service Provider to further develop, update or amend the O&M Manuals specifying:
- (iii) the reasons why such development, updating or amending is required; and
 - (iv) such reasonable time within which such development, updating or amending must occur,
- and the Service Provider must:
- (v) further develop, update or amend the relevant O&M Manuals as directed by the Employer's Representative; and
 - (vi) submit the further developed, updated or amended O&M Manuals to the Company's Representative for review in accordance with this Clause 8.4(b) within the time specified in the Employer's Representative's notice.
- (g) Any review undertaken for or on behalf of the Employer of any O&M Manuals submitted shall not relieve the Service Provider of its obligation to comply with the requirements of the Contract.

8.6 Quality Assurance

(a) The Service Provider shall institute a quality assurance system to demonstrate compliance with the requirements of the Contract, the Scope of Work, the O&M Manuals and the Employer's Procedures. The system shall be in accordance with the details stated in the Contract and be subject to the review and approval of the Employer's Representative. The Service Provider, the Service Provider's Personnel and Subcontractors shall adhere to the quality assurance system. The Employer's Representative shall be entitled to audit any aspect of the system.

(b) Compliance with the quality assurance system shall not relieve the Service Provider of any of its duties, obligations or responsibilities under the Contract.

8.7 Continuous Improvement

(a) The Service Provider must, acting as a Reasonable and Prudent Service Provider, effect continuous improvement, and increased cost efficiencies in the provision of the Services. In so doing the Service Provider will consider all appropriate areas of the Service delivery, including:

- (i) the scope and standards applicable for each part of the Services and the Services generally;
- (ii) the performance of the Service Provider;
- (iii) risk management issues;
- (iv) health and safety issues;
- (v) applicable Law;
- (vi) community impact and expectations;
- (vii) environmental issues;
- (viii) means of optimising useful life of the Facilities, fittings, fixtures and equipment;
- (ix) means of reducing whole of life costs or increasing cost efficiencies;
- (x) means of improving functional and operational performance and user satisfaction; and
- (xi) means of better monitoring and reporting performance.

(b) Without limiting its other obligations under this Contract, the Service Provider must develop proposed strategies, methodologies, and where necessary propose Variations in accordance with Clause 10.1 (Variations) to effect continuous improvement, and increased cost efficiencies in the delivery of the Services.

8.8 KPIs

(a) The Employer's Representative shall measure the performance of the Services according to the extent to which the Service Provider has achieved and is achieving the Performance Levels.

(b) The Service Provider shall monitor its performance of the Services against the Key Performance Indicators and shall provide a report (the KPI Report) with every invoice issued to the Employer under this Contract during the Operations Phase or as otherwise required by the Employer's Representative. Each KPI Report shall include:

(i) the nature and extent of any and all KPI Failures in respect of the relevant period to which the invoice applies;

(ii) the KPI Deduction in respect of the relevant period to which the invoice applies; and

(iii) such other information that is reasonably requested by the Employer's Representative.

(c) The Employer's Representative shall have the right to conduct inspections, monitoring, testing and spot checks at any time and without notice and to the extent required in order to assess the performance of the Services by the Service Provider.

(d) If the Employer's Representative considers that the Service Provider has failed to meet the Performance Level for a Key Performance Indicator, the Employer's Representative may make a KPI Deduction, however, the total amount of KPI Deductions due under this Clause 8.8 shall not exceed the KPI Deductions Cap.

(e) Notwithstanding the foregoing, if any KPI Deduction is found for any reason to be void, invalid or otherwise inoperative so as to disentitle the Employer from claiming the relevant KPI Deduction, the relevant provisions shall be deemed to be deleted from the Contract and the remainder of the Contract shall remain in full force and effect. For the avoidance of doubt, the Employer shall be entitled, to recover from the Service Provider under this Clause 8.8 the costs, losses, expenses and/or damages which the Employer sustains or will sustain as a result of any failure by the Service Provider to achieve the Performance Levels, provided always that the KPI Deductions Cap shall apply to the amount of such costs, losses, expenses and/or damages which may be claimed by the Employer.

(f) The Parties agree that:

(i) the Employer has legitimate commercial interests in requiring the Service Provider to perform the Services in accordance with the Key Performance Indicators and the Performance Levels; and

(ii) the KPI Deductions payable under this Clause 8.8 are proportionate to such legitimate interests and are in all respects a fair and genuine pre-estimate of the losses, damages and expenses likely to be sustained by the Employer as a result of the Service Provider's failure to achieve the Performance Levels.

8.9 Periodic and other Reports

(a) The Service Provider shall provide the Employer with periodic reports, as specified by the Employer's Representative, which shall include:

- (i) detailed information on the performance of the Services during the relevant period;
- (ii) details of all complaints received by the Service Provider from third parties in connection with the performance of the Services including the name and address of the complainant, the subject matter of the complaint and the date and time of the complaint;
- (iii) any information that this Contract requires to be supplied to the Employer or the Employer's Representative; and
- (iv) any other information that is reasonably required by the Employer or the Employer's Representative.

(b) The Service Provider shall immediately advise the Employer's Representative of any:

- (i) matter of significant importance requiring prompt notification to the Employer's Representative;
- (ii) act, omission or condition materially affecting the Services, the Project or the Service Provider's ability to perform any of its obligations under this Contract; and
- (iii) decision required by the Employer or the Employer's Representative and the deadline for providing it.

(c) The Service Provider shall provide the Employer's Representative with all such other occasional reports as may be reasonably required by:

- (i) World Best Practice; or
- (ii) the Employer's Representative acting reasonably,

and shall provide access to such other information as may be reasonably required by the Employer or the Employer's Representative.

8.10 Services Review Group

(a) The Services Review Group comprises:

- (i) the Employer's Representative;
 - (ii) the Service Provider's Representative;
 - (iii) senior executive management representatives from the Employer and the Service Provider; and
 - (iv) any other person the Employer requires.
- (b) At the request of the Employer's Representative, the Service Provider shall ensure that a representative of each Subcontractor attends meetings of the Services Review Group.
- (c) The functions of the Services Review Group include:
- (i) reviewing the performance of the Services by the Service Provider and the Subcontractors
 - (ii) reviewing the quality of the Services and any remedial measures required; and
 - (iii) discussing ways in which the Services can be improved.
- (d) The Services Review Group shall meet periodically, as specified by the Employer, and at all other times the Employer's Representative reasonably determines and on reasonable notice to the Service Provider's Representative.
- (e) The Service Provider shall implement all of the required remedial measures and/or any methods to improve the performance of the Services as agreed by the Services Review Group if so instructed by the Employer's Representative.

8.11 Coordination

The Service Provider shall:

- (a) regularly consult, interface, co-ordinate and co-operate with all Other Contractors and any other persons as directed by the Employer where this is reasonably necessary or desirable for the proper performance of the Services;
- (b) afford the Employer and Other Contractors and Service Providers undertaking work or services on behalf of the Employer or otherwise in connection with the Services reasonable unimpeded access to its staff and relevant project information and opportunity for the performance of their work or contracts and shall fully co-operate and co-ordinate with such Other Contractors and Service Providers; and
- (c) immediately, if at any time it identifies any potential inconsistency or interface problem between its Services and the work or services of Other Contractors or Service Providers engaged in relation to the Project, advise the Employer's Representative, who will determine whether an inconsistency or interface problem exists and, if it deems it

necessary, issue to the Service Provider an appropriate instruction to resolve the inconsistency or interface problem. The Service Provider shall comply with any instruction given to it by the Employer's Representative in accordance with this Clause 8.11.

8.12 Training

(a) The Service Provider shall carry out the training of Employer's Personnel in the operation and maintenance of the Facilities to the extent specified in the Scope of Work and the Employer's Procedures and the Scope of Work.

(b) The programme and scheduling of the training shall be agreed with the Employer, and the Service Provider shall provide experienced training staff, and all training materials as stated in the Employer's Procedures and the Scope of Work. The Employer shall be responsible for providing the training facilities (to the extent that training cannot be conducted at the Site) and nominating and selecting suitable personnel for training.

9. Employer Financing

(a) The Service Provider acknowledges that the Employer intends, or may at some point in the future intend, to obtain financing from Financing Parties in connection with the Project. The Service Provider hereby agrees to cooperate with the Employer and any Financing Parties in connection with such financing and to enter into any agreement, provide any information or document and undertake any action as may be reasonably required by the Employer in order to give effect to such financing.

(b) Without prejudice to Clause 1.7 (Assignment and Novation), the Employer shall be entitled to assign, charge, novate or transfer to any Financing Parties, without the consent of the Service Provider, all or any of its present or future rights, interests, benefits or obligations under or in respect of the Contract.

(c) In the event of default under any Financing Agreements, the Service Provider agrees to accept as substitute for the Employer under the Contract,

(i) the agent or any trustee for the Financing Parties, any designee or transferee of such agent or trustee; or

(ii) any Beneficiary or purchaser of the Facilities, and/or the Project or of the Employer or of the Employer's interest in the Facilities, and/or the Project,

in each case acting on behalf of the Financing Parties and, notwithstanding the provisions of any Clause of the Contract which entitles the Service Provider to terminate the Contract for the default of the Employer, to afford the Financing Parties a

reasonable opportunity to remedy any such default by the Employer under the Contract prior to exercising any right to terminate the Contract.

(d) Without prejudice to the Employer's rights under Clause 1.8 (Confidential Details), the Service Provider shall, promptly if requested by the Employer, enter into a Direct Agreement with the Financing Parties and their agent or trustee and the Employer in a form reasonably acceptable to the Financing Parties and the Employer for the purpose, amongst other things, of giving effect to the provisions of this Clause 9.

10. Variations and Adjustments

10.1 Variations

(a) Any time during the Term, either Party may give the other Party a notice requesting a Variation. A notice given by the Employer initiating a Variation shall be a Variation Notice. A notice given by the Service Provider initiating a Variation and a response by the Service Provider to a Variation Notice shall each be considered a Variation Proposal.

(b) Each Variation Notice issued by the Employer to the Service Provider initiating a Variation shall include details of the proposed Variation. Within fourteen (14) days (or such other time period agreed with the Employer) after receipt of the Variation Notice, the Service Provider shall give the Employer a Variation Proposal that responds to the Variation Notice (together with full supporting details) setting out:

(i) a detailed breakdown of any adjustment to this Contract that would be necessary in order to enable the Service Provider to perform its obligations under this Contract, including:

(A) a description of the proposed services to be performed to implement the proposed Variation, including any technical and performance related ramifications of the proposed Variation and any consequential amendments required to the Contract;

(B) the Service Provider's assessment of the likely Cost of implementing the proposed Variation broken down by reference to each operation and maintenance obligation, each calculated on rates and/or prices contained in the Contract, including anticipated quantities and unit prices, and the Service Provider's assessment of the adjustment to the Services Fee which ought to be made to reflect the Cost breakdown and analysis; and

(C) any other information reasonably requested by the Employer's Representative to support the Employer's Representative's assessment; and

(ii) the steps the Service Provider proposes to take to implement the proposed Variation.

If the information given by the Employer to the Service Provider pursuant to this Clause 10.1(b) is not sufficiently detailed to enable the Service Provider to develop a detailed Variation Proposal in accordance Clauses 10.1(b)(i) and 10.1(b)(ii), the Service Provider shall promptly request further information from the Employer.

(c) Each Variation Proposal issued by the Service Provider to the Employer initiating a Variation (and not responding to a Variation Notice) shall be submitted under this Clause 13.1(c) and not under Clause 18.1(a)(ii) (Service Provider's Claims) and shall set out:

(i) full supporting details of the proposed Variation; and

(ii) details of all of the matters referred to in Clauses 10.1(b)(i) and 10.1(b)(ii).

(d) Within fourteen (14) days (or other such time period notified by the Employer's Representative) after receipt of a Variation Proposal from the Service Provider (pursuant to Clauses 10.1(b) or 10.1(c), as applicable), the Employer shall give the Service Provider:

(i) a Variation Order accepting the Variation Proposal;

(ii) a notice setting out any objection the Employer has to the Variation Proposal; or

(iii) in respect of a Variation Proposal issued by the Contractor to the Employer initiating a Variation (and not responding to a Variation Notice), a notice rejecting the Variation Proposal (which it shall have the unilateral discretion to do).

(e) If the Employer issues a notice to the Service Provider pursuant to Clause 10.1(d)(ii) the Parties shall seek to promptly resolve the matters set out in such notice and agree the basis on which to proceed with the Variation Proposal. If agreement can be reached within fourteen (14) days, the Employer shall issue a Variation Order reflecting the agreed position.

(f) If, within fourteen (14) days of the date of the notice given by the Employer pursuant to Clause 10.1(d)(ii), the Parties fail to reach an agreement pursuant to Clause 10.1(e), the Employer may, acting reasonably, unilaterally determine the time and pricing basis on which the Parties will proceed with the Variation and issue a Unilateral Variation Order to the Service Provider requiring the Service Provider to implement the Variation. The Employer shall give full regard to Schedule 1 (Services Fee) when making such determination.

(g) Each Variation Order or Unilateral Variation Order, as the case may be, shall set out the terms of the relevant Variation. Within seven (7) days after receiving a Variation Order or Unilateral Variation Order, the Service Provider shall return to the Employer a copy of that Variation Order or Unilateral Variation Order signed on behalf of the Service

Provider and such order shall constitute a Variation Order Agreement. If requested by the Employer, the Parties shall also execute an amended and restated Contract reflecting such Variation Order Agreement, in compliance with the requirements of Clause 19.10 (No Variation), but failure by the Service Provider to sign a Variation Order Agreement and/or an amended and restated Contract reflecting such Variation Order Agreement shall not delay implementation of the Variation.

(h) A Variation may involve the removal of any part or parts of the Services and the Service Provider agrees that the Employer may engage others to perform the part or parts so omitted. The Service Provider acknowledges that any one or more removals shall not constitute a basis to allege that the Employer has repudiated this Contract despite the extent or timing of the omission.

(i) For the avoidance of doubt, each of the following may constitute a Variation (however, such changes do not necessarily constitute a Variation):

(i) changes to the quantities of any item of services included in the Contract;

(ii) changes to the quality and other characteristics of any services;

(iii) omission of any part of the Services, which the Employer may carry out itself or through third parties; or

(iv) any other circumstances expressly stated in the Contract to be a Variation.

To the extent the instruction to vary results from any negligence, default, breach of Contract by the Service Provider or its Subcontractors or failure to perform any of its obligations under the Contract by the Service Provider, none of the above shall constitute a Variation for the purposes of this Clause 10 and, notwithstanding any other provision of the Contract, the Service Provider shall have no entitlement to an increase in the Services Fee.

(j) Subject to Clause 3.3 (Instructions to the Service Provider), the Service Provider shall not implement any Variation unless and until the Employer's Representative instructs or approves a Variation pursuant to a Variation Order or a Unilateral Variation Order under this Clause 10. The Service Provider is not entitled to any extension of time for any obligation, or additional Cost or other payment in relation to any Variation unless and until the Employer's Representative instructs or approves a Variation pursuant to a Variation Order or a Unilateral Variation Order under this Clause 10.

(k) No Variation issued in accordance with this Contract will vitiate or invalidate this Contract.

(l) The Service Provider shall maintain a register listing all Variation Notices, Variation Proposals, Variation Orders and Unilateral Variation Orders issued under this

Contract. Such registers shall be provided to the Employer on a monthly basis or as otherwise requested by the Employer.

(m) The Service Provider shall not defer, delay or suspend any part of the Services whilst the Employer evaluates and/or the Parties discuss the Service Provider's Variation Proposal.

(n) Clause 18.1(l) (Service Provider's Claims) shall apply to claims submitted by the Service Provider as Variation Proposals under this Clause 10 and under Clause 18.1(a)(ii) (Service Provider's Claims).

10.2 Value Engineering

(a) The Service Provider may, at any time, submit to the Employer's Representative a written proposal which (in the Service Provider's opinion) will, if adopted:

- (i) reduce the cost to the Employer of maintaining or operating the Facilities;
- (ii) improve the efficiency or value to the Employer of the Facilities; or
- (iii) otherwise be of benefit to the Employer.

(b) The proposal shall be prepared at the cost of the Service Provider and shall include the items listed in Clause 10.1.

(c) If a proposal is approved by the Employer's Representative it shall issue a Variation Order in accordance with Clause 10.1.

10.3 Adjustments for Changes in Legislation

(a) Save in respect of the circumstances described in Clause 10.3(b) below and Clause 17.7 (Special COVID-19 and Epidemic/Pandemic Provisions), no:

- (i) adjustment to the Services Fee shall be made in respect of any increase or decrease in Cost; nor
- (ii) extension of time or relief from the Service Provider's obligations under this Contract shall be granted for delays,

resulting from any change in any Laws of KSA as they are applicable in KSA (including the introduction of new Laws and the repeal or modification of existing Laws) or in the judicial or official governmental interpretation of such Laws, made after the Signature Date.

(b) The two circumstances outlined above are:

- (i) a reasonable adjustment to the Services Fee shall be made in respect of any increase or decrease in Cost resulting directly from a change in the Laws of KSA as

they are applicable in KSA (including the introduction of new Laws and the repeal or modification of existing Laws) or in the judicial or official governmental interpretation of such Laws, made after the Signature Date. The Service Provider shall give the Employer a Variation Proposal complying with the requirements of Clauses 10.1(b)(i) and 10.1(b)(ii) and setting out details of any Variation which it proposes be made as a consequence of such events; and

(ii) within ten (10) days from the earlier of:

(A) the contents of the Founding Law, or any Law made pursuant to the Founding Law, being published in the Official Gazette; and

(B) the date on which the Founding Law (or any Law made pursuant to the Founding Law) comes into force (in whole or in part),

the Service Provider shall give the Employer a Variation Proposal complying with the requirements of Clauses 10.1(b)(i) and 10.1(b)(ii) and setting out details of any Variation which it proposes be made as a consequence of the enactment of the Founding Law or the Law made pursuant to the Founding Law.

(c) In respect of any Variation Proposal given by the Service Provider pursuant to Clause 10.3(b) above and subject to Clause 10.3(d) below, the provisions of Clauses 10.1(d) to 10.1(m) (inclusive) shall apply.

(d) If the Service Provider fails to submit a Variation Proposal pursuant to the requirements of Clause 10.3(b) above within the time period specified therein, no adjustment of the Services Fee shall be made and no extension of time shall be granted from any matter resulting from the enactment of the Founding Law or any Law made pursuant to the Founding Law.

(e) Clauses 10.3(b) to 10.3(d) (inclusive) above shall in no way limit the Employer's right, in its absolute discretion, to issue a Variation Notice of its own initiative pertaining to matters arising from the Founding Law and any Law made pursuant to the Founding Law.

10.4 Adjustments for Changes in Cost

No adjustment of the Services Fee shall be made nor any relief granted from the Service Providers' obligations under this Contract with respect to any rise or fall in the cost or the availability of Goods, labour or any other matters which affect the Service Provider's cost or time of performing the Services.

10.5 Adjustments to the Services Fee

(a) The Service Provider shall only have the right to payment of any Cost and an adjustment to the Services Fee in the event of one of the following occurrences

materially and adversely affecting the Service Provider's actual Cost of the performance of the Services, but only to the extent the Service Provider complies with the requirements of this Clause 10.5 and Clause 18 (Claim and Dispute Resolution):

- (i) a Variation (unless an adjustment to the Services Fee (as applicable) has been agreed under Clause 10.1;
 - (ii) acts of prevention whether by act or omission; breach of the Contract; or delay or failure to perform an obligation under the Contract, in each case by the Employer or the Employer's Representative; or
 - (iii) an event giving rise to an entitlement to additional Costs under Clause 3.3 (Instructions to the Service Provider), Clause 5.5 (Termination of Subcontracts), Clause 15.3 (Consequences of Employer's Risks) or Clause 17.7 (Special COVID-19 and Epidemic/Pandemic Provisions).
- (b) No other occurrences shall give the Service Provider a right to seek additional Costs or adjustment to the Services Fee.
- (c) The Service Provider shall not be entitled to any adjustment to the Services Fee or additional Costs unless the Service Provider provides all documentation necessary for the Employer or the Employer's Representative to determine the factors necessitating the additional Costs and substantiates the additional Cost, which substantiation may include detailed estimates showing the Service Provider's cost accounting (including an itemisation of the work items and associated resources and costs for each item), and detailed cost records, daily time sheets, invoices, receipts and any other documents relating to the performance or value of such work.
- (d) Where the Service Provider is entitled to additional payment under this Clause 10.5 for any delay or disruption to the performance of the Services, the entitlement of the Service Provider shall be calculated in accordance with Schedule 1 (Services Fee), taking into account any other factors that the Employer's Representative may (in its sole discretion) consider relevant. The entitlement of the Service Provider under this Clause 10.5 is the exclusive entitlement in respect of any cost, loss, or expense whatsoever.

11. Services Fee and Payment

11.1 The Services Fee

- (a) The Services Fee shall be calculated in accordance with Schedule 1 (Services Fee) and shall only be subject to adjustments in accordance with Clause 10.5 (Adjustments to the Services Fee) of the Contract.
- (b) The Service Provider shall be liable for and shall pay in a timely manner:

- (i) Subject to Clauses 11.1(c) and 11.1(e), all Taxes levied (whether directly or indirectly) in connection with this Contract;
- (ii) all payments relating to sponsorship arrangements or local partnerships undertaken by the Service Provider to establish and carry out its business in KSA;
- (iii) all national insurance, social security, and other such withholdings or contributions which are payable in connection with the Service Provider carrying out its business and performing its obligations under this Contract; and
- (iv) all other costs, fees, commissions and royalties incurred directly or indirectly in connection with this Contract,

and the Services Fee shall not be adjusted for any of these costs, except as stated in Clause 10.3 (Adjustments for Changes in Legislation).

(c) The Service Provider acknowledges that when the Employer is required under the law of KSA to deduct from the payment of each invoice an amount for payment of withholding tax equal to the withholding tax percentage prescribed by Law, the Employer shall deduct such amount and pay the deducted amount on behalf of the Service Provider to the General Authority of Zakat and Tax of KSA. For the avoidance of doubt, gross payment for withholding taxes purposes includes the reimbursement of out-of-pocket expenses, if any, billed by the Service Provider.

(d) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims, liabilities, damages, losses and expenses (including legal fees and expenses) arising in connection with any Taxes (including VAT) and fees including those referred to in this Clause 11.1.

(e) The Service Provider has taken into consideration its obligations under this Contract with respect to all Taxes (including VAT) and fees including those referred to in this Clause 11.1 and has accounted for such obligations in the Services Fee. The Services Fee shall be exclusive of any applicable VAT and, unless stated otherwise in the Contract, withholding tax. The Service Provider shall issue an invoice with the prevailing withholding tax and VAT rate as applicable (where appropriate the Service Provider shall apply any VAT exemption or a zero rate) and, where the Services Fee is exclusive of withholding tax, the prevailing amount of withholding tax to be deducted by the Employer in accordance with Clause 11.1(c). If requested by the Employer, the Service Provider must promptly provide the Employer with details of its VAT registration and such other information as is requested in connection with the Service Provider's VAT reporting requirements in relation to such Services or any part thereof. Where the Service Provider is required by this Contract to reimburse or indemnify the Employer for any actual cost or expense, the Service Provider will reimburse or indemnify (as the

case may be) the Employer for the full amount of the cost or expense, including any VAT on that amount.

11.2 Payment Applications and Certificates

(a) Not later than fourteen (14) days after the last day of the month to which the Payment Application relates (the Payment Period), the Service Provider shall submit to the Employer's Representative a Payment Application, including all information required pursuant to Schedule 1 (Services Fee), including:

(i) a detailed breakdown of the amount claimed for the Services performed during that Payment Period together with all supporting data required to enable the Employer to verify the amount claimed, in the format agreed between the Employer and the Service Provider;

(ii) the amount of VAT;

(iii) the amount of withholding tax; and

(iv) any other additions or deductions, including liquidated amounts specified in Schedule 8 (Key Performance Indicators), which may have become due under the Contract or otherwise.

(b) Within fourteen (14) days after receiving the Payment Application in accordance with Clause 11.2(a), the Employer's Representative shall issue to the Service Provider either:

(i) a Payment Certificate setting out the approved amount payable to the Service Provider in respect of the Payment Period together with an approval to submit an invoice for the value as shown in the Payment Certificate which may, if the Employer's Representative so determines, differ from the amount set out in the Payment Application; or

(ii) a rejection of the Payment Application.

(c) Within fourteen (14) days after receiving the Payment Certificate pursuant to Clause 11.2(b) above, the Service Provider shall give the Employer's Representative a correct and complete invoice in accordance with such approved Payment Certificate which shall:

(i) include the following details:

(A) the reference number for this Contract;

(B) the unique invoice number;

(C) the period covered by the invoice;

- (D) each specific element of the Services covered by the invoice;
 - (E) any applicable Taxes (including Zakat, VAT or withholding tax, as applicable), and any applicable VAT shall include all other information required under Article 53 of KSA's VAT Implementing Regulations;
 - (F) the basis for and calculation of the amount claimed; and
 - (G) all documents and information that the Employer reasonably determines are necessary to audit the invoice and as otherwise may reasonably be requested by the Employer,
- (ii) be accompanied by a written declaration signed on behalf of the Service Provider by its Chief Financial Officer or Chief Executive Officer stating, as at the relevant date:
- (A) a restatement of the Solvency Warranties in full;
 - (B) that all employees and other labour engaged by the Service Provider in performing the Services have received all wages, salaries, allowances, contributions, or other benefits or entitlements due to them and that all related taxes due have been paid;
 - (C) that the Service Provider has paid each of its Subcontractors all sums due and payable to them;
 - (D) the full amount(s) in dispute for each Subcontractor, where any dispute exists between the Service Provider and any Subcontractor as to any amounts due and owing; and
- (iii) be accompanied by a written declaration from each of its Subcontractors signed on behalf of a duly authorised representative of the applicable Subcontractor stating, as at the relevant date:
- (A) a restatement of the Subcontractor Solvency Warranties in full;
 - (B) that all employees and other labour engaged by the Subcontractor in performing the Services have received all wages, salaries, allowances, contributions, or other benefits or entitlements due to them and that all related taxes due have been paid;
 - (C) that the Subcontractor has paid each of its Subcontractors all sums due and payable to them; and
 - (D) the full amount(s) in dispute where any dispute exists between the Subcontractor and any of its subcontractors as to any amounts due and owing.
- (d) Invoices issued by the Service Provider shall not include any terms and conditions which are in any way inconsistent with this Contract. To the extent that an invoice does include such terms and conditions, the Employer's Representative's

acceptance or payment of such invoice shall not be taken or deemed to be an acceptance of them or an amendment to this Contract.

(e) If the Employer's Representative objects to any invoice (in whole or in part), it shall:

(i) notify the Service Provider within twenty-one (21) days after receiving such invoice of the objection and specify the reason for the Employer's Representative's objection; and

(ii) pay in accordance with Clause 11.4 any part of the invoice to which the Employer's Representative does not object provided that the Service Provider issues a new invoice in accordance with this Clause 11 for that part of the original invoice to which the Employer's Representative does not object.

(f) If the Service Provider receives an objection notice from the Employer's Representative in accordance with Clause 11.2(e)(i), the Service Provider shall amend and submit a revised invoice accordingly. If the Employer's Representative objects to a revised invoice (in whole or in part), then the above procedure shall be repeated until such time as the Employer's Representative receives an invoice to which it does not object. The Employer shall pay such invoice within the time period referred to in Clause 11.4.

(g) The Employer shall have no obligation to pay any invoice (in whole or in part) which it has not received from the Service Provider within six (6) months after the date on which the Service Provider performed the relevant part of the Services or incurred any cost to which such invoice relates.

(h) The Employer shall have no obligation to pay any invoice (in whole or in part) to which it has objected in accordance with Clause 11.2(e) if the Employer's Representative has not received a correct and complete revision of that invoice within six (6) months after the date on which the Employer's Representative notified the Service Provider of its objection to that invoice.

11.3 Issue of Payment Certificates

(a) No payment of any kind shall be made by the Employer to the Service Provider until the Employer's Representative has received:

(i) satisfactory evidence that the insurances required by Clause 16 (Insurance) are in full force and effect;

(ii) an approved Performance Bond in accordance with Clause 4.2 (Performance Bond);

- (iii) if required pursuant to the Contract Data, a Parent Company Guarantee in accordance with Clause 4.2(f) (Performance Bonds and PCG);
 - (iv) a valid invoice and all accompanying documents in conformance with all requirements of Clause 11.2 in relation to the payment to be made; and
 - (v) evidence of the Service Provider's compliance with the safety programme as required under the Employer's Requirements.
- (b) The Employer's Representative shall be entitled not to approve any Payment Application or issue any Payment Certificate if the Service Provider has failed to provide the necessary information required under Clause 11.2(a).
- (c) In addition to the Employer's right to withhold disputed amounts:
- (i) if the Service Provider was or is failing to perform any obligation in accordance with the Contract, and had been so notified by the Employer's Representative, the value of this work or obligation may be withheld until the work or obligation has been performed;
 - (ii) if the Service Provider fails to make payments to Subcontractors as required under their respective subcontracts and such non-payment by the Service Provider
 - (A) may result in a claim against the Employer or any of its assets;
 - (B) could result in a breach by the Employer of any of its obligations to third parties (such as creditors, counterparties to agreements and the like);
 - (C) could with the passage of time or giving of notice or both result in a breach under the Service Provider's agreements; or
 - (D) could adversely affect the performance of the Services,
- the Employer may withhold an amount as may be reasonably necessary to protect the Employer from loss it has or may incur due to such failure by the Service Provider, provided that the Employer has made payment of all undisputed amounts owed to the Service Provider under this Contract; and
- (iii) the Employer may withhold an amount as may be reasonably necessary to protect the Employer from loss it has or may incur due to:
 - (A) any breach by the Service Provider of any term or provision of this Contract;
 - (B) the assessment of any fines or penalties against the Employer as a result of the Service Provider's failure to comply with Laws;
 - (C) any other costs or liabilities which the Employer has incurred or will incur for which the Service Provider is responsible; or

(D) any other reason for which the Employer is entitled to withhold payment under this Contract.

11.4 Payment

(a) Subject to Clause 11.4(d), the Employer shall pay invoiced amounts to the Service Provider:

(i) within forty-five (45) days of receipt by the Employer's Representative of an invoice that complies with this Clause 11;

(ii) by cheque unless the Employer agrees to a direct transfer to a bank nominated by the Service Provider; and

(iii) in the currency named in Schedule 1 (Services Fee).

(b) Payments made by the Employer shall:

(i) be without prejudice to any of the Employer's rights;

(ii) not be construed as a waiver of its right to object to any invoice so paid; and

(iii) not indicate, or be deemed to indicate, the Employer's acceptance or approval of the Service Provider's performance of its obligations under this Contract to which the invoice relates.

(c) If the Employer makes any payment to the Service Provider in accordance with this Contract by direct transfer to a bank nominated by the Service Provider, the Service Provider shall bear all charges imposed in connection with such transfer including charges imposed by the Employer's bank, the bank nominated by the Service Provider and any intermediary.

(d) Prior to receiving the first payment under this Contract, the Service Provider shall notify the Employer of its nominated bank account details, such notification to be in writing, signed and stamped by the Service Provider's chief financial officer. Any change to the Service Provider's nominated bank shall be similarly notified to the Employer in accordance with this Clause 11.4(d).

11.5 Services Completion Certificates

(a) Once the Service Provider considers that it has completed the performance of any of the Mobilisation Services, the Design Review Services, the O&M Services or the Demobilisation Services, it shall give the Employer's Representative a notice requesting a review and inspection of the relevant Services.

(b) Once the Employer's Representative is satisfied that the relevant Services have been completed in accordance with this Contract it shall notify the Service Provider of the same and shall issue to the Service Provider a Services Completion Certificate.

(c) Within fourteen (14) days after issuance of a Services Completion Certificate for each of the Mobilisation Services, the Design Review Services, the O&M Services and the Demobilisation Services, the Service Provider shall submit to the Employer's Representative a Payment Application (and any further copies requested by the Employer) for the relevant Services with supporting documents, in accordance with Clause 11.2, showing in detail:

- (i) the value of all services performed in accordance with the Contract up to the completion date of the relevant Services (as applicable);
- (ii) any further sums which the Service Provider considers to be due;
- (iii) an estimate of any other amounts which the Service Provider considers will become due to it under the Contract. Estimated amounts shall be shown separately in this Payment Application; and
- (iv) evidence, to the Employer's Representative's reasonable satisfaction, that all Subcontractors have been paid in respect of payments made by the Employer to the Service Provider under previous Payment Certificates (and the Employer's Representative shall have the right to liaise with Subcontractors to verify such evidence).

(d) The Employer's Representative shall then certify in accordance with Clauses 11.2 and 11.3.

(e) The Employer shall be entitled to withhold from any payment to the Service Provider an amount equal to the Employer's reasonable estimated cost of rectifying Exception Items (Exception Items Withholding) until such Exception Items are completed.

(f) The Service Provider shall remedy the Exception Items as soon as reasonably practicable and no later than two (2) months after the issuance of the relevant Services Completion Certificate (subject to any other time period stated in the relevant Services Completion Certificate). If the Service Provider fails to remedy one or more Exception Items in accordance with this Clause 11.5, the Employer shall be entitled to remedy (or to procure that third parties remedy) such unremedied Exception Items. The Employer shall deduct the reasonable costs incurred by the Employer in remedying such Exception Items from the value of the Exception Items Withholding. Upon the final remedy of such Exception Items by the Service Provider in accordance with the terms of

this Contract (or the Employer procuring that third parties remedy such unremedied Exception Items), the Employer shall issue a statement confirming that all Exception Items have been remedied (Exception Items Statement) and, subject to the Service Provider providing a written discharge in accordance with Clause 11.6, pay to the Service Provider the value of the Exception Items Withholding (subject to any deduction that is made in respect of the Employer procuring that third parties remedy such unremedied Exception Items).

11.6 Discharge

(a) Upon the final remedy of Exception Items by the Service Provider in accordance with the terms of this Contract (or the Employer procuring that third parties remedy such unremedied Exception Items), the Service Provider shall submit a written discharge in a form approved by the Employer which confirms that the total of the Payment Certificate at completion of the Services plus the Exception Items Withholding represents full and final settlement of all moneys due to the Service Provider under or in connection with the Contract.

(b) This discharge may state that it becomes effective when the Service Provider has received the Performance Bond and the outstanding balance of the Exception Items Withholding, in which event the discharge shall be effective on such date.

11.7 Cessation of Employer's Liability

(a) Upon making payment of the amount agreed by the Employer and certified in the Payment Certificate at completion of the Services plus the Exception Items Withholding, the Employer shall not be liable to the Service Provider for any matter or thing under or in connection with the Contract, except to the extent that any such amount was expressly provided for in the Payment Certificate at completion of the Services issued pursuant to Clause 11.5(d).

(b) However, this Clause 11.7 shall not limit the Employer's liability under its indemnification obligations, or the Employer's liability in any case of fraud, deliberate default or reckless misconduct by the Employer.

11.8 Payments to Employer

(a) If the Parties agree or it is determined that the Employer has, for whatever reason, overpaid the Service Provider with respect to any invoice, the Service Provider shall, at its cost, refund the full amount of that overpayment within seven (7) days after that agreement or determination to a bank account nominated by the Employer.

(b) The Employer may separately recover from the Service Provider any amount owed by the Service Provider to the Employer as a debt due from the Service Provider.

(c) The Employer's right to recover overpayments and debts from the Service Provider shall survive the expiry or termination of this Contract for any reason and any acceptance or approval by the Employer of the Service Provider's performance of its obligations under this Contract.

11.9 Variations

The payment procedure referred to in this Clause 11 shall also apply to any payments to be made by the Employer to the Service Provider for any Variations.

11.10 Set-Off

Notwithstanding any other provision of this Contract, the Employer may set-off or deduct from any amounts due to the Service Provider:

- (a) any amount due, or which it is reasonably apparent may become due, from the Service Provider to the Employer under this Contract or any other contract the Service Provider (or an Affiliate of the Service Provider) has entered into with the Employer;
- (b) any amount paid by the Employer to a third party where the Service Provider was obliged to make such payment in accordance with this Contract but failed to do so; and
- (c) any amount due to the Employer from an insurer which is paid to the Service Provider rather than directly to the Employer.

12. Termination by Employer

12.1 Notice to Correct

- (a) If the Service Provider fails to carry out any obligation under the Contract, the Employer or Employer's Representative may by notice require the Service Provider to make good the failure and to remedy it within twenty-one (21) days or such longer period as the Employer may in its discretion determine and which shall be specified in such notice.
- (b) If the Service Provider fails to cure the breach, the Employer may take any action it considers appropriate to rectify that breach or mitigate the effects of that breach. In addition, the Employer may exercise its right under Clause 12.2.
- (c) If such breach causes the Employer to incur additional costs, the Service Provider must pay these costs to the Employer.

12.2 Termination by Employer

- (a) In addition to the Employer's termination rights stated in other provisions of this Contract, the Employer is entitled to terminate the Contract if the Service Provider:

- (i) fails to comply with Clause 4.2 (Performance Bond) or with a notice under Clause 12.1;
 - (ii) abandons the Services or otherwise plainly demonstrates the intention not to continue performance of its obligations under the Contract;
 - (iii) assigns or otherwise transfers (or seeks to assign or transfer) the Contract in breach of the Contract;
 - (iv) breaches a Solvency Warranty or an Insolvency Event occurs in relation to the Service Provider;
 - (v) fails to comply with Clause 4.12 (Prohibited Acts) or Clause 4.15 (Maintaining Cybersecurity Resilience);
 - (vi) subcontracts without the Employer's consent in breach of Clause 5 (Subcontracting);
 - (vii) suspends the Services;
 - (viii) fails to pay any sum due and payable to the Employer within the required time under the Contract;
 - (ix) fails to remedy a breach of this Contract within the timeframe provided under Clause 12.1(a);
 - (x) becomes liable to pay the maximum amount of KPI Deductions referred to in Clause 8.8 (KPIs) and as set out in the Contract Data; or
 - (xi) fails to maintain any of the insurances required pursuant to Clause 16 (Insurance) of this Contract.
- (b) If Clause 12.2(a) applies, the Employer may, upon giving fourteen (14) days' notice to the Service Provider, terminate the Contract without the need to first obtain an order from any court or tribunal and expel the Service Provider from the Site. However, in the case of Clauses 12.2(a)(iv), 12.2(a)(v) and 12.2(a)(x), the Employer may by notice terminate the Contract immediately.
- (c) The Employer's election to terminate the Contract shall not prejudice any other rights of the Employer, under the Contract or otherwise.
- (d) After a notice of termination under this Clause 12.2 has taken effect, the Service Provider shall promptly:
- (i) cease all further work, except for such work as may have been instructed by the Employer for the protection of life or property or for the safety of the Facilities, and vacate the Site;

- (ii) deliver to the Employer all O&M Manuals and all Permits (which shall be transferred into the name of the Employer or its nominee);
- (iii) deliver to the Employer any required Goods and remove all other Goods from the Site, except as may be necessary for safety and leave the Site or as may be otherwise instructed by the Employer; and
- (iv) if requested by the Employer, novate or transfer any subcontract to the Employer.

12.3 Valuation at Date of Termination

As soon as practicable after a notice of termination under Clause 12.2 has taken effect, the Employer's Representative shall proceed in accordance with 3.5 (Determinations) to determine the value of the Services and any other sums due to the Service Provider through the date of termination.

12.4 Payment after Termination

After a notice of termination under Clause 12.2 has taken effect, the Employer can recover from the Service Provider all reasonable costs incurred by the Employer in connection with such termination, including the appointment of a replacement operator to carry out the Services until the end of the Term, including increases to the cost of performing the remaining Services over and above the Services Fee.

12.5 Employer's Termination for Convenience

(a) The Employer shall be entitled to terminate the Contract immediately, at any time for the Employer's convenience (and at its sole and absolute discretion, and whether or not it is intended for any remaining Services to be performed by the Employer or by another contractor), by giving notice of such termination to the Service Provider. The termination shall take effect seven (7) days after the date on which the Service Provider receives the notice.

(b) After this termination, the Service Provider shall proceed in accordance with Clause 13.2 (Cessation of Work) and the Employer's Representative shall determine the value of the work done and issue a Payment Certificate which shall include:

- (i) the amounts due and payable for any of the Services carried out in accordance with the Contract as at the date of termination;
- (ii) any other reasonable and verifiable costs properly incurred by the Service Provider or liability which in the circumstances was reasonably incurred by the Service Provider in the expectation of completing the Services; and

(iii) the reasonable and verifiable costs properly incurred by the Service Provider of repatriation of the Service Provider's staff and labour employed in KSA wholly in connection with the Services at the date of termination.

13. Termination by Service Provider

13.1 Termination by Service Provider

(a) Subject to Clauses 13.1(b) and 13.1(c), the Service Provider shall be entitled to terminate the Contract if:

(i) the Employer's Representative fails to certify in accordance with Clause 11.2 or the Employer fails to comply with Clause 11.4 (Payment) and such failure persists for more than sixty (60) days; or

(ii) the Employer becomes bankrupt or insolvent, goes into liquidation, has a receiving or administration order made against it, compounds with its creditors, or carries on business under a receiver, trustee or manager for the benefit of its creditors, or if any act is done or event occurs which (under applicable Laws) has a similar effect to any of these acts or events.

(b) If Clause 13.1(a) applies, the Service Provider may give notice to the Employer (addressed to the Employer with a copy to the "Chief Legal Officer" within the Employer's organisation) of its intention to terminate the Contract specifying the reason for such termination.

(c) If the event or circumstance described in the notice is still subsisting on the twenty-second (22nd) day after the date of such notice, the Service Provider may, upon giving a further twenty-one (21) days' notice to the Employer, terminate the Contract. However, in the case of Clause 13.1(a)(ii), the Service Provider may by notice terminate the Contract immediately.

(d) The Service Provider's election to terminate the Contract shall not prejudice any other rights of the Service Provider, under the Contract or otherwise.

13.2 Cessation of Work

After a notice of termination under Clause 12.5(b) (Employer's Termination for Convenience), Clause 13.1 or Clause 17.6 (Optional Termination, Payment and Release) has taken effect, the Service Provider shall promptly:

(a) cease all further work, except for such work as may have been instructed by the Employer's Representative for the protection of life or property or for the safety of the Facilities;

- (b) hand over Service Provider's Documents, all Permits (which shall be transferred into the name of the Employer or its nominee) and other design documents, plant, materials and other work, for which the Service Provider has received payment;
- (c) remove all other goods and equipment belonging to the Service Provider from the Site; and
- (d) if requested by the Employer, novate or transfer any subcontract to the Employer.

13.3 Payment on Termination

Save where there are any outstanding claims, after a notice of termination under Clause 13.1 has taken effect, the Employer shall promptly:

- (a) return the Performance Bond to the Service Provider; and
- (b) the Employer's Representative shall determine the value of the work done and issue a Payment Certificate which shall include:
 - (i) the amounts due and payable for any of the Services carried out in accordance with the Contract as at the date of termination;
 - (ii) any other reasonable and verifiable costs properly incurred by the Service Provider or liability which in the circumstances was reasonably incurred by the Service Provider in the expectation of completing the Services; and
 - (iii) the reasonable and verifiable costs properly incurred by the Service Provider of repatriation of the Service Provider's staff and labour employed in KSA wholly in connection with the Services at the date of termination.

14. Demobilisation Services

14.1 Demobilisation Services

The Service Provider shall provide the Demobilisation Services in accordance with this Clause 14 and Schedule 3 (Mobilisation Plan) including any demobilisation schedule set out therein.

14.2 Duty to Co-operate

Unless an alternative period of time is stated in the Contract Data, during the final six (6) months of the Term (where this expires by effluxion of time) or during the period after any termination notice has been given by the Employer under Clause 12 (Termination by Employer), and in all cases for a period of twelve (12) months thereafter, the Service Provider must co-operate fully with the transfer of responsibility for the Services (or any part thereof) to the Employer or any new contractor of such services the same or similar to the Services (New Service Provider), including:

- (a) liaising with the Employer's Representative and/or any New Service Provider, and providing reasonable assistance and advice concerning the Services and their transfer to the Employer or to such New Service Provider;
- (b) allowing such New Service Provider access (at reasonable times and on reasonable notice) to the Facilities and/or the Site, but not so as to interfere with or impede the provision of the Services; and
- (c) providing to the Employer's Representative and/or to any New Service Provider all and any information concerning the Services which is required for the efficient transfer of responsibility for their performance.

14.3 Transfer of responsibility

The Service Provider must facilitate the smooth transfer of responsibility for the Services to a New Service Provider or to the Employer, as the case may be, and the Service Provider must take no action at any time during or after the Term which is calculated or intended, directly or indirectly, to prejudice or frustrate or make more difficult such transfer.

14.4 Handover Audit

- (a) Without limiting the Service Provider's other obligations under this Contract, the Service Provider shall ensure that the Facilities meet or exceed the Handover Conditions on the Term Expiry Date or date of termination of the Contract (as applicable).
- (b) Without prejudice to any other provision of the Contract, during the period set out in the Contract Data, the Employer's Representative shall inspect the Facilities to assess to assess whether they have been and are being maintained by the Service Provider in accordance with its obligations under the Contract (the Handover Audit) and to determine the aggregate of the amount (if any) required to be expended or reserved against during or for the balance of the period up until the scheduled Term Expiry Date to ensure that the Facilities meet the Handover Conditions on the scheduled Term Expiry Date and the amount (if any) for making good or rectifying any breaches by the Service Provider of the Employer's Requirements in Schedule 4 (Employer's Requirements) and the Scope of Work in Schedule 2 (Scope of Work).
- (c) If the Handover Audit reveals work required to rectify breaches of the Service Provider's obligations under the Contract or to ensure the Facilities are in accordance with the Handover Conditions on the termination or expiry of the Contract (as applicable), the Employer's Representative:

- (i) must notify the Service Provider of the required rectification (including repair and/or replacement) and/or other work; and
- (ii) must specify a reasonable period within which the Service Provider must carry out such work.
- (d) The Service Provider must carry out the required rectification and/or maintenance work notified pursuant to Clause 14.4(c) within the period specified and any costs it incurs in carrying out such rectification and/or maintenance work will be at its own expense.
- (e) If and to the extent that the Service Provider fails to carry out the necessary rectification and/or maintenance works within the time period as notified pursuant to Clause 14.4(c), the Employer will be entitled to carry out itself, or procure, such rectification and/or maintenance works at the Service Provider's expense. The Service Provider will indemnify and pay the Employer on demand any costs or expenses incurred by the Employer in carrying out such rectification and/or maintenance works and the Employer will be entitled to draw on the Performance Bond for the whole, or part, of any such amount.
- (f) The Service Provider shall permit the Employer's Representative to make such further inspections and carry out any tests to verify that the Facilities meet or exceed the Handover Conditions on the Term Expiry Date or date of termination of the Contract (as applicable).

15. Risk and Responsibility

15.1 Indemnities

- (a) The Service Provider shall indemnify and hold harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims, damages, losses and expenses (including legal fees and expenses) in respect of:
 - (i) bodily injury, sickness, disease or death, of any person whatsoever arising out of or in the course of or by reason of the Service Provider's performance of the Services except to the extent attributable to a wilful act or breach of the Contract by the Employer, its Affiliates, the Employer's Personnel or any of their respective agents; and
 - (ii) damage to or loss of any property, real or personal (including of the Employer) arising out of or in the course of or by reason of the Service Provider's performance of the Services except to the extent attributable to a wilful act or breach of the Contract by the Employer, its Affiliates, the Employer's Personnel, or any of their respective agents.

(b) The Employer shall indemnify and hold harmless the Service Provider, the Service Provider's Personnel, and their respective agents, against and from all claims, damages, losses and expenses (including legal fees and expenses) in respect of bodily injury, sickness, disease or death, which is attributable to any negligence, wilful act or breach of the Contract by the Employer, the Employer's Personnel, or any of their respective agents, except to the extent attributable to a wilful act or breach of the Contract by the Service Provider, its Affiliates, the Service Provider's Personnel or any of their respective agents.

15.2 Employer's Risks

The risks referred to in Clause 15.3 are:

- (a) war, hostilities (whether war be declared or not), invasion, act of foreign enemies within KSA;
- (b) rebellion, terrorism, revolution, insurrection, military or usurped power, or civil war, within KSA;
- (c) riot, commotion or disorder within KSA by persons other than the Service Provider's Personnel and other employees of the Service Provider and Subcontractors;
- (d) munitions of war, explosive materials, ionising radiation or contamination by radioactivity, within KSA, except as may be attributable to the Service Provider's use of such munitions, explosives, radiation or radioactivity; and
- (e) pressure waves caused by aircraft or other aerial devices travelling at sonic or supersonic speeds.

15.3 Consequences of Employer's Risks

- (a) If and to the extent that any of the risks listed in Clause 15.2(a) results in loss or damage to the Facilities, the Service Provider shall promptly give notice to the Employer's Representative and shall rectify this loss or damage to the extent required by the Employer's Representative.
- (b) If the Service Provider incurs Cost from rectifying this loss or damage, the Service Provider shall give a further notice to the Employer's Representative and shall be entitled to claim, subject to Clause 18.1 (Service Provider's Claims), payment of any such Cost to the extent permitted under Clause 10.5 (Adjustments to the Services Fee), which shall be included in the Services Fee.

15.4 Intellectual and Industrial Property Rights

- (a) All Intellectual Property Rights:

(i) belonging to a Party (or which it uses under a licence from a third party) prior to the date of this Contract; or

(ii) developed by a Party independently of this Contract,

shall remain vested in that Party (or the relevant third-party licensor).

(b) As between the Parties, the Employer shall retain the copyright and other Intellectual Property Rights in the Employer's Requirements, the Operation Management Requirements and other documents made by or on behalf of the Employer. The Service Provider may at its cost, copy, use, and obtain communication of these documents for the sole purpose of performing its obligations under the Contract. The Employer's Requirements, the Operation Management Requirements and other documents made by or on behalf of the Employer shall not, without the Employer's consent, be copied, used or communicated to a third party by the Service Provider, except as necessary for the sole purpose of performing its obligations under the Contract.

(c) Immediately upon creation or performance, all rights, title, interest, property and Intellectual Property Rights in:

(i) any services (including the O&M Manuals);

(ii) all documents, data, records, logs, drawings, specifications, processes, schedules, computer programs, object code, source code, network designs, notes, sketches, findings, interim and final reports, inventions, improvements, modifications, discoveries, tools, scripts and all other related documents (whether machine readable or not); and

(iii) any items arising from or created, produced or developed by the Service Provider (whether alone or jointly with others) under or in connection with this Contract,

(collectively, the IP Materials) shall vest in and remain the exclusive property of the Employer.

(d) The Service Provider irrevocably and unconditionally assigns and transfers to the Employer, and shall procure that its Affiliates, officers, directors, employees, agents, contractors and Subcontractors assign and transfer to the Employer, all rights, title, interest, property and Intellectual Property Rights in and to the IP Materials.

(e) The Service Provider unconditionally waives (and shall procure its Affiliates, officers, directors, employees, agents, contractors and Subcontractors to waive) in favour of the Employer any Intellectual Property Rights it has or may have at Law or otherwise to the IP Materials.

(f) If any Intellectual Property Rights in the IP Materials do not vest in the Employer under Clause 15.4(b) or Clause 15.4(d), the Service Provider shall (and shall procure that its Affiliates, officers, directors, employees, agents, contractors and Subcontractors shall):

(i) do everything reasonably necessary or requested by the Employer either during the Term, or after the expiry or termination of this Contract, to enable the Employer to own the Intellectual Property Rights in the IP Materials including:

(A) formally assigning those rights to the Employer;

(B) assisting the Employer to obtain those rights; and/or

(C) transferring (as applicable) registration of those rights to the Employer; and

(ii) not, and not purport to, encumber, sell, license, or do anything which would otherwise be contrary to the Employer's ownership of such Intellectual Property Rights.

(g) Until such time as the Intellectual Property Rights in the IP Materials have fully vested in the Employer in accordance with this Clause 15.4, the Service Provider grants (and shall procure that its Affiliates, officers, directors, employees, agents, contractors and Subcontractors grant) to the Employer an exclusive, irrevocable, royalty-free and otherwise unrestricted licence to use such Intellectual Property Rights including the right for the Employer to sub-license such licence.

(h) The Service Provider acknowledges and agrees that if the Intellectual Property Rights in the IP Materials have not vested in the Employer prior to the date upon which the Employer pays the Services Fee relating to the services that led to the creation of the IP Materials, upon payment of such Services Fee by the Employer, ownership and full legal and beneficial title to that IP Material shall automatically vest in or transfer to the Employer.

(i) After the Intellectual Property Rights in the IP Materials are owned by the Employer, the Service Provider shall have the non-exclusive, non-transferable, irrevocable, non-sublicenseable and royalty-free right during the Term to use the IP Materials solely in connection with its performance of its obligations under this Contract.

(j) The Service Provider shall not use any of the Employer's trademarks, brands or logos for any purpose without the Employer's prior consent.

(k) Where the Employer has given its consent to use the Employer's trademarks, brands or logos, the Service Provider shall use those trademarks, brands and logos strictly in accordance with the Employer's consent and its applicable policies, guidance and instructions.

(l) The Service Provider indemnifies and holds harmless the Employer, its Affiliates, the Employer's Personnel, and their respective agents, against and from all claims, alleging an infringement which arises out of or in relation to the Employer's ownership and/or use of the IP Materials and/or this Contract.

(m) If the Employer is entitled to be indemnified under this Clause 15.4, the Service Provider may (at its cost) conduct negotiations for the settlement of the claim, and any litigation or arbitration which may arise from it. The Employer, at the request and cost of the Service Provider, may assist in contesting the claim. The Employer shall not make any admission which might be prejudicial to the Service Provider, unless the Service Provider failed to take over the conduct of any negotiations, litigation or arbitration upon being requested to do so by the Employer.

(n) The Service Provider shall:

(i) promptly do all further acts and execute and deliver all further documents (in form and content reasonably satisfactory to the Employer) required by Law or reasonably requested by the Employer in order to give effect to this Clause 15.4; and

(ii) not do or fail to do any act which would or might prejudice the Employer's rights under this Clause 15.4.

(o) The foregoing shall not apply to the Service Provider's pre-existing proprietary models, techniques or analytic methods, or enhancements thereof developed during the provision of the Services. These shall continue to be the property of the Service Provider and may be used by the Employer under a non-exclusive, transferable, irrevocable, sublicensable, and royalty-free right for use granted by the Service Provider to the Employer for such pre-existing proprietary models, techniques or analytic methods, or enhancements thereof developed during the provision of the Services. For the avoidance of doubt, if the Service Provider creates proprietary models, techniques or analytic methods during the provision of the Services, these shall be the property of the Employer, and the Service Provider shall have a non-exclusive, transferable, irrevocable, sublicensable, and royalty-free right for use of such proprietary models, techniques or analytic methods within its business.

(p) The obligations in this Clause 15.4 shall survive the expiry or termination of this Contract for any reason.

15.5 Limitation of Liability

(a) Neither Party shall be liable to the other Party for loss of use of any Facilities, loss of profit, loss of any contract or for any indirect or consequential loss or damage which may be suffered by the other Party in connection with the Contract, except in the case of fraud, deliberate default or reckless misconduct. Further, amounts payable

under Clauses 15.5(c)(i) to 15.5(c)(iv) (inclusive and including the Clauses referred to therein) shall not be considered loss of profit, loss of any contract or indirect or consequential loss or damage in the previous sentence.

(b) Subject to Clause 15.5(c), and to the maximum extent permitted by Law, the total liability of the Service Provider to the Employer, under or in connection with the Contract shall not exceed the amount stated in the Contract Data.

(c) This Clause 15.5 shall not limit liability or responsibility:

(i) in any case of fraud, deliberate default or reckless misconduct by the defaulting Party;

(ii) in respect of any amount which is recovered under any insurance required to be maintained pursuant to Clause 16 (Insurance) (or which would have been recoverable but for the Service Provider's vitiating act or omission);

(iii) for the cost of executing and performing the Services in accordance with the requirements of the Contract; and

(iv) under any of the following Clauses:

(A) arising from a breach of Clause 1.8 (Confidential Details);

(B) in the case of the indemnity in Clause 4.7(h) (EHSQ Plan);

(C) arising from a breach of Clause 4.12 (Prohibited Acts);

(D) in the case of the indemnity in Clause 4.15 (Maintaining Cybersecurity Resilience);

(E) Clause 11.1(a) (The Services Fee);

(F) in the case of the indemnity in Clause 15.1(a)(i); and

(G) in the case of the indemnity in Clause 15.4(l).

(d) For the avoidance of doubt, the limitation on the Service Provider's liability under Clause 15.5(b) will not relieve the Contractor in any way of its obligation to execute the Works.

15.6 Employer's Step-in Rights and Additional Remedies

(a) If the Service Provider fails to carry out any obligation under the Contract and fails to make good the failure and remedy it despite being required to do so by the Employer by notice under Clause 12.1 (Notice to Correct) (within the specified reasonable time), the Employer, without prejudice to its other rights, powers and remedies under the Contract or in law, shall be entitled to make good the failure and

remedy it either themselves or via other persons, and the reasonable costs of doing so shall be for the account of the Service Provider.

(b) The Service Provider shall co-operate with the Employer and facilitate and permit the use of all required information, materials and other matter (including O&M Manuals and all other models, plans, designs, diagrams, evaluations, details, specifications, schedules, reports, calculation results, manuals or other documents or recorded information (electronic or otherwise) which have been or are at any time prepared by or on behalf of the Service Provider under the Contract or otherwise for and/or in connection with the Services) and shall generally do all things required by the Employer to achieve this end.

(c) Any information, materials and other matter made available by the Service Provider under this Clause 15.6 shall be used solely and exclusively for the purpose of making good and remedying the Service Provider's failure and shall thereafter be returned to the Service Provider. Any such information, materials and other matter which is made available by the Employer to other persons as contemplated in this Clause 15.6 shall be made available strictly in accordance with the foregoing and subject to a confidentiality undertaking mutatis mutandis in accordance with the Service Provider's confidentiality undertaking under Clause 1.8 (Confidential Details). The Employer shall not, and shall ensure that such other persons do not (save only to the extent that he or they may be entitled thereto by virtue of any other provision of the Contract), retain any records, copies or reproductions of any such information, materials and/or other matter.

16. Insurance

16.1 Service Provider's Insurances

The Service Provider shall effect and maintain, as a minimum and at its own cost, insurance policies compliant with Schedule 9 (Insurance) and this Clause 16 and the following shall apply:

(a) each insurance shall be effected with licensed insurers approved by the Employer;

(b) the Service Provider shall procure that each policy effected pursuant to this Clause 16.1 shall, where achievable, provide:

(i) that the protection which is granted to the insured under the policies is not to be invalidated by any act or failure to act on the part of the other insured including any failure by any such insured, to disclose any material fact, circumstance or occurrence, any misrepresentation by any such insured, any breach or non-fulfilment by any such insured of any condition, warranty or provision implied or contained in the policy;

- (ii) that a notice of the occurrence of an event out of which the particular insured giving the notice alleges he has suffered, or could suffer, loss or damage or incur a liability shall be accepted by the insurer as a notice of the occurrence given by all the insureds;
- (iii) that the Employer shall not be responsible to the insurers or reinsurers for the payment of insurance premiums or any other obligations of the Service Provider;
- (c) the Service Provider shall require that its insurer(s) waive their right of subrogation with respect to the Employer, its officers and representatives;
- (d) coverage provided by the Service Provider's insurance policies (including the those effected pursuant to this Clause 16.1), shall be primary and any other insurance coverage maintained by the Employer shall be in excess of the coverage provided by the Service Provider's insurance policies;
- (e) no later than fifteen (15) days after the date any of the insurance policies required to be in effect in accordance with this Clause 16.1 are issued, or renewed in accordance with the terms of the relevant insurance policies, the Service Provider shall cause its insurers or agents to provide the Employer's Representative with certificates of insurance evidencing such policies and coverage;
- (f) except where Subcontractors are covered by the Service Provider's insurances, the Service Provider shall require its Subcontractors to take out and maintain insurance policies in compliance with Schedule 9 (Insurance) as may be consistent with applicable Laws and World Best Practice and shall require that their insurer(s) waive their right of subrogation with respect to the Employer, its officers and representatives. If requested by the Employer's Representative, the Service Provider shall procure that its Subcontractors provide the Employer's Representative with certificates of insurance evidencing such policies and coverage;
- (g) the Service Provider shall not cancel or make any material alteration to the terms of any insurance specified in Schedule 9 (Insurance) without the prior written approval of the Employer;
- (h) the Service Provider shall require each of its insurance providers to provide the Employer with at least thirty (30) days' prior notice of any material change, cancellation or non-renewal of the insurances as required under Schedule 9 (Insurance); and
- (i) if the Service Provider fails to take out and/or maintain in effect the insurances specified in Schedule 9 (Insurance), or fails to ensure that Subcontractors take out and/or maintain insurances as required under any subcontract, the Employer may take out and maintain any such insurances and may from time to time deduct from any

amount due to the Service Provider any premium which the Employer shall have paid to the insurer(s) or otherwise recover such amount as a debt due and payable from the Service Provider.

16.2 General Requirements

(a) If a claim is made under any of the insurances required to be maintained under this Contract with respect to any loss or damage for which the Service Provider is responsible, the Service Provider shall be liable for the full amount of any applicable deductible.

(b) The Service Provider shall comply with the conditions stipulated in each of the insurance policies described in Schedule 9 (Insurance) and/or in any claims manual which may be issued pursuant to such policies. The Service Provider shall keep its insurers informed of any relevant changes to the execution of the Services and ensure that insurance is maintained in accordance with this Clause 16.2.

(c) Nothing in this Clause 16.2 limits the obligations, liabilities or responsibilities of either Party, under the other terms of this Contract or otherwise.

16.3 Disclosure and Compliance

(a) Where requested by the Employer or as required by the Service Provider's insurers, the Service Provider shall provide, in a timely manner, to the Employer:

(i) all information which insurers request to be disclosed;

(ii) all information which is of a type which insurance brokers in relation to the relevant insurance policy advise should be disclosed to insurers;

(iii) all technical information which may be material in any way to any insurance policy;

(iv) details of any significant problems encountered in relation to the Services and details of any design, manufacturing or operational problems encountered anywhere in the world with Materials, Plant, Goods, Equipment and spare parts, which may be material in any way to any insurance policy; and

(v) all other information which the Service Provider, acting in accordance with Good Industry Practice, could reasonably consider to be material in any insurance policy.

(b) The Service Provider shall put in place appropriate internal reporting procedures to ensure that full disclosure as described in Clause 16.3(a) is made by the Service Provider in a timely manner.

17. Force Majeure

17.1 Definition of Force Majeure

(a) In this Clause 17, Force Majeure means an exceptional event or circumstance and includes the risks identified as “Employer’s Risks” referred to in Clauses 15.2(a) to 15.2(e) (Employer’s Risks) (inclusive), natural catastrophic storms or floods, earthquake, hurricane, tornadoes, cyclones, typhoon, volcanic activity, lightning, Epidemics and Pandemics, New Epidemic/Pandemic Laws (subject to Clause 17.7), fires and explosions and unforeseeable delay in the issue of Permits by any Authorities in KSA, provided that such event or circumstance, in each case:

- (i) could not reasonably have been provided against by the affected Party;
- (ii) is beyond the affected Party’s control and not due to its acts or omissions (or those for whom it is responsible); and
- (iii) could not have been prevented, avoided or overcome by the affected Party through the exercise of due diligence and World Best Practice.

(b) Despite Clause 17.1(a) above, Force Majeure shall not include:

- (i) failure to make payment of money, other than as to any specified means, currency or place of payment;
- (ii) weather conditions reasonably to be expected in the geographic areas where the Services are being performed;
- (iii) financial hardship (including an Insolvency Event) or the inability of the affected Party to make a profit or achieve a satisfactory rate of return in relation to or in connection with the Contract;
- (iv) any shortage or late delivery of Materials or consumables which the Service Provider is obliged to supply under the Contract and/or in connection with the Services;
- (v) any shortage of staff and labour;
- (vi) any act of an Authority in relation to work Permits and immigration approvals for the Service Provider’s staff and labour;
- (vii) events or circumstances arising from or connected with the requirements of or compliance with any Existing COVID-19 Laws;
- (viii) changes in market conditions;
- (ix) lack or unavailability of funds; or
- (x) an Insolvency Event occurring in relation to any Subcontractor.

17.2 Notice of Force Majeure

(a) If a Party is or will be prevented or delayed from performing any of its obligations under the Contract by Force Majeure, then it shall, within fourteen (14) days after the Party became aware, (or should have become aware), of the relevant event or circumstance constituting Force Majeure, give notice to the other Party, which notice shall include:

- (i) full particulars of the event or circumstances constituting the Force Majeure;
- (ii) identification of the obligations which are or will be prevented or delayed from being performed and all necessary evidence of the same;
- (iii) an estimate of the likely duration of the prevention or delay;
- (iv) details of the measures already taken or to be undertaken by the affected Party to mitigate or minimise the effects of the Force Majeure; and
- (v) a statement that such notice is given in accordance with this Clause 17.2(a).

(b) The affected Party shall, having given notice, be excused performance of such obligations prevented or delayed by the Force Majeure for so long as such Force Majeure prevents or delays it from performing them or is in default of its obligations under Clause 17.3, whichever occurs first.

(c) Notwithstanding any other provision of this Clause 17.2, Force Majeure shall not apply to obligations of either Party to make payments to the other Party under the Contract, and Service Provider's right to any adjustments to the Contract requirements shall be limited to those rights specified in Clause 17.4.

17.3 Duty to Minimise Delay

(a) Following the issue of the written notice referred to in Clause 17.2(a), the affected Party must keep the other Party informed, at reasonable intervals and upon the request of the other Party, of:

- (i) the likely duration of the Force Majeure and of its effect on the affected Party's ability to perform its obligations under the Contract; and
- (ii) the actions undertaken or to be undertaken by the affected Party to mitigate or minimise the effects of the Force Majeure.

(b) The affected Party shall at all times use all reasonable endeavours to minimise any delay in the performance of the Contract as a result of Force Majeure and to remove the effect of the Force Majeure as soon as possible

(c) The affected Party shall immediately:

- (i) give notice to the other Party when it ceases to be affected by the Force Majeure; and
- (ii) recommence performance of its obligations which were otherwise affected by the Force Majeure.
- (d) In relation to any exceptional event or circumstance identified in Clause 17.1(a) that could have (or ought to have been) reasonably foreseen as at the Signature Date, the Service Provider acknowledges and agrees that such event or circumstance was considered by the Service Provider, is fully reflected in the Services Fee.
- (e) The Employer shall have the right, in its sole discretion to omit or suspend any part or parts of the Services affected by the Force Majeure, which the Employer may then carry out itself or through third parties and the Service Provider shall co-operate in good faith with, and provide reasonable assistance and information to, the Employer and persons nominated by it to perform such omitted obligations.

17.4 Consequences of Force Majeure

If the Service Provider is prevented from performing all of its obligations under the Contract by Force Majeure of which notice has been given under Clause 17.2, and suffers Critical Delay and/or incurs Cost by reason of such Force Majeure, the Service Provider shall, subject to Clause 17.3, Clause 18.1 (Service Provider's Claims) and the provisions of the Clauses referred to below:

- (a) Be entitled to claim an equitable adjustment to the O&M Start Date or the Term having regard to the nature of the Force Majeure event and its impact; and
- (b) not be entitled to recover any Cost or increase in the Services Fee, save if allowed pursuant to Clause 15.3(b) (Consequences of Employer's Risks) and Clause 10.5 (Adjustments to the Services Fee) or Clause 17.3(e).

17.5 Force Majeure Affecting Subcontractor

If any Subcontractor is entitled under any contract or agreement relating to the Services to relief from force majeure on terms additional to or broader than those specified in this Clause 17, such additional or broader force majeure events or circumstances shall not excuse the Service Provider's non-performance or entitle it to relief under this Clause 17.

17.6 Optional Termination, Payment and Release

- (a) If the performance of substantially all of the Services is prevented for a continuous period of one hundred and twenty (120) days by reason of Force Majeure of which notice has been given under Clause 17.2, or for multiple periods which total more than one hundred and eighty (180) days due to the same notified Force Majeure, then

either Party may give to the other Party a notice of termination of the Contract. In this event, the termination shall take effect seven (7) days after the notice is given, and the Service Provider shall proceed in accordance with Clause 13.2 (Cessation of Work).

(b) Upon such termination, the Employer's Representative shall determine the value of the work done and issue a Payment Certificate which shall include:

(i) the amounts due and payable for any of the Services carried out in accordance with the Contract as at the date of termination;

(ii) any other reasonable and verifiable costs properly incurred by the Service Provider or liability which in the circumstances was reasonably incurred by the Service Provider in the expectation of completing the Services; and

(iii) the reasonable and verifiable costs properly incurred by the Service Provider of repatriation of the Service Provider's staff and labour employed in KSA wholly in connection with the Services at the date of termination.

17.7 Special COVID-19 and Epidemic/Pandemic Provisions

(a) Notwithstanding anything to the contrary in the Contract:

(i) the Service Provider agrees that all Laws, and all official decisions and directives of any Authority related to COVID-19, published or in force, as the case may be, as of the Signature Date (the Existing COVID-19 Laws) were fully considered by it, are fully reflected in the Services Fee and its obligations under the Contract shall be performed notwithstanding the adverse effect of the Existing COVID-19 Laws and without any recourse to any provisions or headings in this Contract dealing with Adjustment for Changes in Legislation, Force Majeure or any other remedy available to it under the Laws; and

(ii) if any Laws related to an Epidemic or Pandemic become effective after the Signature Date (the New Epidemic/Pandemic Laws), the same shall also be capable of constituting an event of Force Majeure under this Contract to the extent that such Laws do or will prevent or delay a Party from performing any of its obligations under the Contract, provided that all other requirements in Clause 17.1 and 17.2 are satisfied (in the context of a claim relating to New Epidemic/Pandemic Laws, notice of the same pursuant to Clause 17.2 shall be referred to as an Epidemic/Pandemic FM Notice). Clause 17.3 shall also apply and in furtherance of the affected Party's obligations thereunder, the Parties shall, acting reasonably and in good faith, determine whether and to what extent a technological substitution or other alternative measures can be used to minimise or remove the effect of the Force Majeure created by the New Epidemic/Pandemic Laws on the performance by a Party of its affected obligations;

(b) In addition to the Employer's rights in Clause 17.3(e), the Parties agree that if the performance of the Services (or any part) in progress is prevented by reason of Force Majeure of which an Epidemic/Pandemic FM Notice has been given, then notwithstanding anything to the contrary in the Contract:

(i) for the first thirty (30) days after the date the event of Force Majeure first occurs, the Service Provider is not entitled to any extension of time or any additional Costs arising from or in relation to the event of Force Majeure;

(ii) at any time on and from the date which is thirty one (31) days after the date the event of Force Majeure first occurs, provided the event of Force Majeure is still occurring, the Service Provider shall be entitled to claim, subject to Clause 18.1 (Service Provider's Claims):

(A) an equitable adjustment to the O&M Start Date or the Term having regard to the nature of the Force Majeure event and its impact; and

(B) payment of any such Cost to the extent permitted under Clause 10.5 (Adjustments to the Services Fee) shall be calculated on the basis of standby rates as set out in Schedule 1 (Services Fee); which shall be included in the Services Fee; and

(iii) notwithstanding Clause 17.7(b)(ii), the Employer may at any time on and from the date which is thirty one (31) days after the date the event of Force Majeure first occurs, give to the Service Provider a notice of termination of the Contract. In this event, the termination shall take effect seven (7) days after the notice is given, and the Service Provider shall proceed in accordance with Clause 13.2 (Cessation of Work) and the Employer shall pay the Service Provider in accordance with Clause 17.6.

(c) The Parties agree that the relief specified in this Clause 17.7 shall constitute the sole and exclusive remedy related to a claim of Force Majeure concerning any New Epidemic/Pandemic Laws. Any adverse impact from New Epidemic/Pandemic Laws shall not, except as expressly stated in this Clause 17.7, entitle a Party to relief under any provisions or Contract headings hereunder dealing with any extension under under Clause 10.3 (Adjustments for Changes in Legislation) or under Clause 10.5 (Adjustments to the Services Fee) or any other remedy available to it under the Laws.

18. Claim and Dispute Resolution

18.1 Service Provider's Claims

(a) If the Service Provider considers itself to be entitled to any extension of time and/or any additional payment, under any Clause of this Contract or otherwise in connection with the Contract, the Service Provider shall:

(i) if the entitlement relates to a claim for a Variation, submit a Variation Proposal in accordance with Clause 10.1(c) (Variations) and not under this Clause 18.1; or

(ii) if the entitlement does not relate to a claim for a Variation, give notice to the Employer's Representative in accordance with the applicable Clause (but not Clause 10.1(c) (Variations)), describing the event or circumstance giving rise to the claim and the following Clauses 18.1(b) to 18.1(k) shall apply.

(b) The notice submitted pursuant to Clause 18.1(a)(ii) shall be given as soon as practicable, and in any event, within seven (7) days of when the Service Provider became aware, or should have become aware, of the event or circumstance giving rise to the entitlement.

(c) If the Service Provider fails to give notice of a claim under any Clause of this Contract within such period of seven (7) days, or if a notice of claim is submitted, but the Contract or Employer requires a further notice including further documents or particulars and the Service Provider fails to supply such further notice, documents and/or particulars as required by the Contract within the time prescribed by the Contract, extension of time shall not be granted, the Service Provider shall not be entitled to additional payment, and the Employer shall be discharged from all liability in connection with the claim to the extent accruing prior to the date of the Service Provider's notice.

(d) The Service Provider shall also submit any other notices which are required by the Contract, and supporting particulars for the claim, all as relevant to such event or circumstance within the time period specified by the Employer, acting reasonably.

(e) Within twenty-eight (28) days after the Service Provider became aware (or should have become aware) of the event or circumstance giving rise to the claim, or within such other period as may be proposed by the Service Provider and approved by the Employer's Representative, the Service Provider shall send to the Employer's Representative a fully detailed claim which includes full supporting particulars of the basis of the claim and of any extension of time and/or any additional payment. If the event or circumstance giving rise to the claim has a continuing effect:

(i) this fully detailed claim shall be considered as interim;

(ii) the Service Provider shall send further interim claims at monthly intervals, giving the accumulated delay and/or amount claimed, and such further particulars as the Employer's Representative may reasonably require; and

(iii) the Service Provider shall send a final claim within twenty-eight (28) days after the end of the effects resulting from the event or circumstance, or within such other period as may be proposed by the Service Provider and approved by the Employer's Representative.

- (f) If the Service Provider fails to:
- (i) give notice within such period of twenty-eight (28) days described in Clause 18.1(e), no extension of time shall be granted, the Service Provider shall not be entitled to additional payment, and the Employer shall be discharged from all liability in connection with the claim; or
 - (ii) substantiate its claims then, to the extent that it has so failed to substantiate its claims, extension of time shall not be granted, the Service Provider shall not be entitled to additional payment, and the Employer shall be discharged from all liability in connection with the unsubstantiated part of the claim.
- (g) After receiving a claim or any further particulars supporting a claim, the Employer's Representative shall thereafter proceed in accordance with Clause 3.5 (Determinations) to determine the matters the subject of the claim.
- (h) Provided that where the Service Provider complies with the provisions of this Clause 18.1 in respect of any claim which it seeks to make, its entitlement to payment in respect thereof or to an extension of time shall not exceed such amount as the Employer's Representative who is assessing the claim, after due consultation with the Employer and the Service Provider, considers to be verified by contemporary records.
- (i) The Employer's Representative shall proceed in accordance with Clause 3.5 (Determinations) to determine:
- (i) the extension of time (if any); and/or
 - (ii) the additional payment (if any) to which the Service Provider is entitled under Clause 10.5 (Adjustments to the Services Fee) of the Contract.
- (j) Notwithstanding the requirements of this Clause 18.1, the Service Provider shall have no entitlement to an adjustment to the Services Fee, any additional Costs or to an extension of time, as may be agreed or determined in accordance with this Contract, until it enters into an amendment agreement with the Employer to document any such agreement or determination.
- (k) The requirements of this Clause 18.1 are in addition to those of any other Clause which may apply to a claim. If the Service Provider fails to comply with any of the provisions of this Clause 18.1 in relation to any claim for an extension of time and/or additional Costs, its entitlement to an extension of time or payment in respect thereof shall not exceed such amount as the Employer's Representative assessing the claim considers to be verified by contemporary records.

(l) The following provisions of this Clause 18.1(l) shall apply to claims submitted by the Service Provider as Variation Proposals under Clause 10.1(c) (Variations) and for claims submitted by the Service Provider pursuant to Clause 18.1(a)(ii):

(i) in the event that the Service Provider has any right or entitlement to any extension of time and/or any additional Cost or payment pursuant to this Clause 18.1 or otherwise in connection with the Contract, the Service Provider shall in all cases take such steps (if any) which can reasonably be taken to eliminate or mitigate any such events or circumstances giving rise to the entitlement; and

(ii) in the event that mitigation measures are available to the Service Provider but require the Service Provider to incur additional Cost, the Service Provider shall consult with the Employer's Representative, and the Employer's Representative shall issue such instructions as the Employer's Representative considers appropriate and shall proceed in accordance with Clause 3.5 (Determinations) to determine the entitlement of the Service Provider to any additional cost incurred by the Service Provider in complying with such instructions; and

(iii) the Service Provider shall keep such contemporary records as may be necessary to substantiate any claim for an extension of time and/or any additional Cost or payment, either on the Site or at another location acceptable to the Employer's Representative. The Service Provider shall permit the Employer's Representative to inspect all these records and shall (if instructed) submit copies to the Employer's Representative.

18.2 Employer's Claims

(a) Except as provided in Clause 18.2(a), if the Employer considers itself to be entitled to any additional payment under any Clause of this Contract or otherwise in connection with the Contract, the Employer or the Employer's Representative shall give notice and particulars to the Service Provider.

(b) Notice is not required for payments due under Clause 7.5 (Electricity, Water and Gas) or for any other services requested by the Service Provider.

18.3 Amicable Settlement

(a) If a dispute or difference arises between the Parties in connection with, or arising out of, the Contract (including in respect of any breach, termination, validity or invalidity thereof) or the performance of the Services, including any dispute or difference as to any certificate, determination, instruction, opinion or valuation of the Employer's Representative (a Dispute), either Party may give notice of the dispute to the other Party in writing (a Notice of Dispute).

(b) A senior representative from each Party (who has authority to settle the Dispute) shall meet within fourteen (14) days of the date of such Notice of Dispute as many times as those representatives may consider necessary thereafter, in an effort to resolve the Dispute. Each Party shall use reasonable endeavours to:

- (i) agree on the times and venues for such meetings;
- (ii) procure that the senior representative of that Party attends the meetings; and
- (iii) resolve the Dispute amicably by way of the process prescribed in this Clause 18.3.

(c) In the event that the Parties are unable to amicably resolve the Dispute within forty (40) days (or as otherwise agreed by the Parties) from the date of the Notice of Dispute, the Dispute shall be resolved by arbitration pursuant to Clause 18.4.

18.4 Arbitration

[OPTION A: SCCA arbitration]

(a) [In the event the Dispute is not settled amicably within forty (40) days of the Notice of Dispute under Clause 18.3(a), the Dispute shall be referred to and finally resolved by arbitration administered by the Saudi Centre for Commercial Arbitration (the SCCA) pursuant to the SCCA Arbitration Rules then in force.

(b) The Parties agree that:

(i) the arbitral tribunal shall be constituted by three (3) arbitrators appointed as follows:

(A) the Party referring the Dispute to arbitration shall nominate one (1) arbitrator for appointment in the Notice of Arbitration;

(B) the responding Party shall nominate one (1) arbitrator for appointment in the response to the Notice of Arbitration;

(C) in the event of a Party failing to nominate an arbitrator in the manner identified in Clauses 18.4(b)(i)(A) and 18.4(b)(i)(B) above, the SCCA Administrator shall appoint an arbitrator on behalf of the Party who has failed to do so;

(D) subject to Clause 18.4(b)(v), the two (2) arbitrators nominated by the Parties for appointment in the manner identified in Clauses 18.4(b)(i)(A) and 18.4(b)(i)(B) above (or by the SCCA Administrator in the circumstances identified in Clause 18.4(b)(i)(C) above) shall agree the presiding arbitrator within twenty-one (21) days of the second arbitrator's appointment, failing which the SCCA Administrator shall appoint the presiding arbitrator in accordance with the SCCA Arbitration Rules.

- (ii) the seat or legal place of the arbitration shall be Riyadh, KSA;
- (iii) the proceedings shall be conducted in English;
- (iv) each arbitrator nominated, whether by the Parties, the SCCA Administrator or the Party-nominated arbitrators, shall, as a minimum, be:
 - (A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or
 - (B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction or operation and maintenance disputes for at least the previous ten (10) years; and
- (v) if:
 - (C) any one or more of the arbitrators nominated by the Parties, or by the SCCA Administrator in accordance with Clause 18.4(b)(i) above, is either a KSA qualified lawyer or person holding a degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with Clause 18.4(b)(i)(D) above shall, as a minimum, be a person meeting the criteria identified in Clause 18.4(b)(iv)(A) or Clause 18.4(b)(iv)(B) above; or
 - (D) neither of the arbitrators nominated by the Parties, or by the SCCA Administrator in accordance with Clause 18.4(b)(i) above, is a KSA qualified lawyer or person holding a degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with Clause 18.4(b)(i)(D) above shall, as a minimum, be a KSA qualified lawyer or person holding a degree in Shariah issued in KSA.]

[Note: please contact TECHCO Legal to finalise the above clauses where the contract will be governed by KSA law]

OR

[OPTION B: LCIA arbitration] [Drafting note: where an international contractor is being engaged, this Clause is to be replaced with the below Clause. Please consult TECHCO Legal.]

- (a) [In the event the Dispute is not settled amicably within forty (40) days of the Notice of Dispute under Clause 18.3(a), the Dispute shall be referred to and finally

resolved by arbitration administered by the London Court of International Arbitration (LCIA) under the arbitration rules of the LCIA in force from time to time.

(b) The Parties agree that:

(i) the arbitral tribunal shall be constituted by three (3) arbitrators. The Party referring the Dispute to arbitration shall nominate an arbitrator in the Request for Arbitration, the other Party shall nominate an arbitrator in the response and the third arbitrator, who shall act as the presiding arbitrator, shall be jointly nominated by the other two (2) arbitrators;

(ii) if an arbitrator is not nominated as described above, the LCIA Court shall appoint such arbitrator;

(iii) the seat, or legal place, of arbitration shall be London, England;

(iv) the arbitration shall be conducted in English;

(v) each arbitrator nominated, whether by the Parties, the LCIA Court or the Party-nominated arbitrators, shall, as a minimum, be:

(A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or

(B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction or operation and maintenance disputes for at least the previous ten (10) years.]

18.5 Miscellaneous

(a) Nothing in this Clause 18 gives the Service Provider any entitlement to any other relief from its obligations under this Contract.

(b) Nothing in this Clause 18 shall prevent a Party from applying to a court of competent jurisdiction to seek urgent interlocutory relief.

(c) Notwithstanding the submission by the Service Provider of a claim and despite any activation of the dispute resolution procedures set out in this Clause 18, the Service Provider shall continue to perform its obligations under this Contract pending resolution of any such claim and/or Dispute.

(d) The Service Provider shall not raise any claim, proceeding or action in connection with the formation, performance, interpretation, nullification, termination or invalidation of this Contract against any:

(i) part of the Government of KSA than the Employer;

(ii) Affiliate of the Employer; or

- (iii) officer, director or employee of the Employer.
- (e) The Service Provider shall not raise any claim, proceeding or action against the Employer for any loss, damage, cost or additional payment under this Contract or at law to the extent that such claim, proceeding or action is based on any act or omission by any third party.
- (f) The obligations in this Clause 18 shall survive the expiry or termination of this Contract for any reason.

19. Miscellaneous Provisions

19.1 Warranties as to Capacity

- (a) The Employer warrants that it has the power to execute, deliver and perform its obligations under the Contract and all necessary corporate and other action has been taken to authorise that execution, delivery and performance.
- (b) The Service Provider warrants that:
 - (i) it has the power to execute, deliver and perform its obligations under the Contract and all necessary corporate and other action has been taken to authorise that execution, delivery and performance;
 - (ii) it has obtained (or will obtain) from all relevant Authorities all licences, permissions and consents required in order for it to perform the Services and to otherwise perform all of its obligations under the Contract; and
 - (iii) it has the information technology, capability, experience, management expertise, financial resources, equipment, staff and other facilities necessarily required to perform the Services in a competent and expeditious manner and otherwise in accordance with the Contract.

19.2 Warranties as to Solvency

The Service Provider represents and warrants that:

- (a) it is able to discharge its debts in full as and when they fall due;
- (b) its assets exceed its liabilities (taking into account its actual, contingent and prospective liabilities);
- (c) no execution or other process issued on a judgment, decree or order of any court in favour of a creditor of the Service Provider remains unsatisfied in whole or in part and no statutory demand for payment (or similar in any applicable jurisdiction) has been served on the Service Provider;

(d) it has not commenced negotiations with one or more of its creditors with a view to rescheduling any of its indebtedness;

(e) no action, steps nor legal proceedings have been taken or are pending, commenced or threatened against it in relation to any Insolvency Events in any jurisdiction; and

(f) no action, litigation, arbitration claim, dispute or administrative or other proceeding has been taken, or are pending, commenced or threatened against it which is likely to have an adverse effect on its ability to perform its financial and other obligations under the Contract,

(collectively the Solvency Warranties).

19.3 Severability

The subject matter of the Contract comprises separately specified parts and provisions, and any provision (or part thereof) or provisions within the Contract which is (or are) determined by a court or other competent Authority to be illegal, invalid or unenforceable is (or are) severed to the extent of the illegality, invalidity or unenforceability, without affecting the remaining provision (or part thereof) or provisions of the Contract.

19.4 Counterparts and Electronic Signatures

(a) This Contract may be executed in any number of counterparts, all of which when taken together constitute the one and the same instrument.

(b) The Parties agree that this Contract and any other document or notice required by this Contract to be signed by any person may be signed using an electronic signature of the authorised signatory which shall have the same force and effect as a manuscript signature of the authorised signatory.

19.5 Independent Contractor

The Service Provider is an independent contractor performing the Contract. The Contract does not create any partnership, joint venture or other joint relationship between the Employer and the Service Provider. Neither Party has the right, power or authority to enter into any agreement or commitment or act on behalf of or otherwise bind the other Party.

19.6 Privity

Except as expressly stated to the contrary in this Contract, no provision of the Contract is intended to or does confer upon any third party (including any Subcontractor) any

implied benefit or legally enforceable rights enforceable at the option of the third party against the Employer. [Note: use this if the contract is governed by KSA law]

Except as expressly stated to the contrary in this Contract, this Contract is not intended to confer any legally enforceable rights on any person other than the Parties, their successors in title and their assignees, whether pursuant to the Contracts (Rights of Third Parties) Act 1999 or otherwise. [Note: use this if the contract is governed by English law]

19.7 Waiver

(a) None of the terms, provisions or conditions of the Contract are considered waived by the Employer unless a waiver is given in writing by the Employer.

(b) Any waiver of the Employer's rights, powers or remedies under the Contract must be dated and signed by an authorised representative of the Employer granting such waiver and must specify the right and the extent to which it is being waived.

19.8 Imports and Customs

In connection with the performance of the Contract, the Service Provider acknowledges that the imports and applicable customs Law apply to the furnishings and shipments of any products and components thereof to KSA. The Service Provider specifically acknowledges that the aforementioned import and applicable custom Laws of KSA prohibit, among other things, the importation into KSA of certain products and components.

19.9 Rights Cumulative

The rights, remedies and powers of each Party under or in connection with the Contract are in addition to any rights, remedies and powers provided by Law.

19.10 No Variation

The Contract may not be varied except in writing signed by a duly authorised representative of each of the Parties.

19.11 Costs

Save as otherwise expressly provided under this Contract, each Party shall pay its own costs and expenses (including the fees and expenses of its agents, representatives, advisers, counsel and accountants) necessary for the negotiation, preparation, execution, delivery, performance of and compliance with this Contract.

19.12 Further Documentation

The Parties agree to execute any documents and to take any further steps as may be reasonably necessary in order to implement and give full effect to the Contract.

19.13 Obligations Continuing

The warranty obligations, confidentiality obligations and other obligations or liabilities, which by their own terms survive the expiration or termination of this Contract, do not cease on the completion, expiry or termination of this Contract.

SCHEDULE 1 Services Fee

[Drafting Note: To be completed by Employer commercial team and to include Services Fee including frequency of payment and methodology for calculating any variable component of the Services Fee (for all stages of the Services, including Design Review Services, Mobilisation Services, O&M Services and Demobilisation Services)

Note the requirement in Clause 17.7(b)(ii) regarding special standby rates for Force Majeure and Epidemics/Pandemics]

SCHEDULE 2 Scope of Work

This Schedule contains a brief description of the Services to be performed by the Service Provider and an overview of the Service Provider's obligations in designing, executing and completing the Services.

A. Brief Description of the Services

B. Overview of the Service Provider's Obligations

SCHEDULE 3 Mobilisation Plan

This Schedule contains the Service Provider's Mobilisation Services obligations during the Mobilisation Period prior to the O&M Start Date.

[Drafting Note: To be completed by Employer. Where relevant, this should include:

- Review of any manuals and other deliverables

- Cooperation with any testing and commissioning procedures
- Preparation and training of staff and Site visits prior to the O&M Start Date
- Obligations with respect to demobilisation and handover at the end of the Contract
- A timetable for the commencement and completion of each task]

SCHEDULE 4 Employer's Requirements

This Schedule contains the Employer's requirements with respect to cashflow, planning and scheduling

SCHEDULE 5 Employer's Procedures

This Schedule contains the Employer's policies and procedures for the Services, including with respect to:

- Systems of electronic transmission
- Document storage, handling and confidentiality
- Environmental protection and management requirements
- Health and safety
- Prohibited Materials
- Data protection and data classification logs
- Quality assurance
- Site security requirements
- Exceptions to the Service Provider's obligation to make arrangements for the engagement of all staff and labour, local or otherwise, and for their payment, housing, feeding and transport
- Service Provider's labour, including working hours
- Approved location for Service Provider's Personnel housing
- Sanitary facilities at the Site

- Design Review Services
- Training of Employer's Personnel
- Operation Management Requirements
- Handover Conditions for the Facilities

SCHEDULE 6 Subcontracting

2. Approved Subcontractors

[Drafting note: Parties to include list of Approved Subcontractors (approved as part of the tender process).]

3. Nominated Subcontractors

[Drafting note: Employer to include list of Nominated Contractors.]

SCHEDULE 7 Key Personnel

[Drafting Note: Parties to include list of Key Personnel (agreed as part of the tender process).]

The Service Provider's Key Personnel are:

No.	Position Description Name
-----	---------------------------

SCHEDULE 8 Key Performance Indicators

The Service Provider's performance of the Services shall be evaluated using the following Key Performance Indicators and Performance Levels.

KPI Deductions, to be made in accordance with this Contract, shall be calculated as follows:

Activity	Key Performance Indicator	Performance Level	KPI Deduction
----------	---------------------------	-------------------	---------------

Note: e.g. Planned Maintenance]	Note: e.g. the actual number of planned maintenance activities undertaken against the number of planned maintenance activities that were scheduled to be undertaken]	Note: e.g. no instances of failure to undertake a planned maintenance activity]	Note: e.g. [●] per missed planned maintenance activity]
---------------------------------	--	---	---

The Key Performance Indicators regime is a self-assessment system, subject to the right of the Employer to engage a third party to conduct the assessments. In any event, the Employer and the Employer's Representative shall have the right to conduct inspections, monitoring, testing and spot checks at any time and without notice and to the extent required in order to assess the performance of the Services by the Service Provider.

If, as a result of any such inspections, monitoring, testing or spot checks, the Employer's Representative, acting reasonably, determines that the KPI Deductions included in the KPI Report by the Service Provider are inaccurate, then the Employer's Representative may issue a notice to the Service Provider certifying the level of KPI Deductions and shall be entitled to deduct such amounts forthwith from any sums otherwise due to the Service Provider, or recover such sums from the Service Provider as a debt.

SCHEDULE 9 Insurance

[Drafting Note: please contact TECHCO Legal for the appropriate Schedule]

1. THIRD PARTY LIABILITY INSURANCE

Period Insured: At all times during the Term.

Coverage: Covering legal liability for injury, illness or death to persons or for loss of or damage to property, including in each case all claimant(s) and defendant(s) costs and the costs of the Service Provider obtaining all legal advice resulting from or incurred in connection with the Service Provider carrying out the Services and obligations under the Contract.

Insureds: The Service Provider and Employer
each for their respective rights and interests.

Limit of Liability: SAR [INSERT] for any one occurrence or, in the case of sudden and accidental pollution only, in the aggregate.

Main Extensions: (a) Cross liability clause substantially as follows: 'For the purpose of this policy, any parties named as the insured shall be deemed to be separate entities as if a separate policy had been issued to each of them. In the event of claims being made by reason of personal/bodily injury by any employee of one of the insured for which another insured is or may be liable or damage to property belonging to any insured for which another insured is or may be liable then this policy shall cover the insured against whom the claim is made. For the avoidance of doubt the total liability of insurers shall not exceed the limit of indemnity';

(b) liability assumed under contract or agreement;

(c) indemnity for loss or damage arising out of sudden and accidental pollution;

(d) indemnity to principals clause; and

(e) a multiple insured clause

Territorial Limits: Kingdom of Saudi Arabia but extended worldwide for non-manual business trips in connection with the Contract

Jurisdiction: Kingdom of Saudi Arabia

2. WORKMEN'S COMPENSATION INSURANCE

Coverage: Workmen's Compensation coverage against liabilities under all Applicable Laws including the Labour Law of the Kingdom of Saudi Arabia and subsequent amendments in respect of insured's employees.

Insureds: Service Provider and all applicable Subcontractors.

Period Insured: At all times during the Term.

3. EMPLOYER'S LIABILITY INSURANCE

Coverage: Indemnification for all the sums that the Insured is legally liable to pay in respect of Insured's employees

Insureds: Service Provider and its Subcontractors.

Period Insured: At all times during the Term.

Insured Value: No less than SAR 3,750,000 per occurrence.

Main Extension: To include:

(a) A waiver of subrogation in favour of the Employer and/or any other parties as may be agreed upon by the Parties; and

(b) An indemnity to principal clause substantially as follows:

"Insurers will indemnify any principal for whom the insured is carrying out work under a contract arising out of or in connection with the Services against liability arising out of the performance of such work by the insured and in respect of which the insured would have been entitled to indemnity under this policy if the claim had been made against the insured but only to the extent required by the terms and conditions of such contract provided always that Insurers' aggregate liability to all parties comprising the insured and the said principal shall not exceed the limit of indemnity."

4. OTHER INSURANCES:

Such other insurances as are required by Applicable Law and/or by the project documents in a form suitable and with sufficient limits to satisfy the relevant legal requirements and/or as would be effected by a Reasonable and Prudent Service Provider.

SCHEDULE 10 Local Content

Annexure 1 Form of Performance Bond

[On letterhead of Issuing Bank]

Date: [INSERT]

Performance Bond No: [INSERT]

Contract [insert contract number] [insert project name] – Performance Bond

To : TECHCO COMPANY

102030405060

TECHCO Building 1234 - MAKKAH 21232,

Re: [INSERT NAME OF CONTRACTOR]

[INSERT ADDRESS]

(the Service Provider)

Since you have awarded our clients, the Service Provider, a contract for [INSERT NAME OF CONTRACT], dated [insert Date] (the Contract), we, [INSERT NAME OF THE ISSUING BANK] hereby unconditionally and irrevocably undertake to pay you the sum of [INSERT AMOUNT IN NUMBERS AND WORDS] (the Guaranteed Amount) which represents [INSERT]% of the Services Fee and accordingly we covenant and agree as follows:

(1) We shall pay you immediately upon your written demand in the form appended to this Performance Bond, irrespective of any objection by the Service Provider such amount or amounts as you may demand, not exceeding in the aggregate the Guaranteed Amount to your account at any bank in the Kingdom of Saudi Arabia, or in any other manner acceptable to you.

(2) All payments made based on your demand shall be free and clear of, and without any present or future deduction for payment of, any taxes, levies, duties, charges, fees deductions or withholding of any nature whatsoever and by whomsoever imposed.

(3) The undertakings contained in this Performance Bond constitute unconditional and irrevocable direct primary obligations of ours. No alteration in the terms of the Contract and no modification or extension of the Contract or the extent or nature of the work to be performed thereunder and no indulgence, allowance of time by you or other forbearance or concession, or any other act or omission by you which but for this provision might exonerate or discharge us shall in any way release us from any liability hereunder.

(4) This Performance Bond shall take effect on the date of its issuance and shall remain valid and in full force and effect up to the end of the [INSERT] day of the [INSERT] month of year [INSERT] [insert date which is no earlier than 12 months from the O&M Start Date or expiry date of the previous PB , as applicable] (the Expiry Date) pursuant to the conditions of this Performance Bond. The Expiry Date shall not affect or discharge our liability to accept demands made by you prior to the Expiry Date.

(5) If you provide us with a written and signed notice on or before the Expiry Date (or any subsequent extensions pursuant to the conditions hereof) that we should extend the Performance Bond, we shall:

(i) automatically extend this Performance Bond for the required period (provided that it does not exceed three hundred and sixty-five (365) days) from the original Expiry Date or from the expiration date of any subsequent extensions, as specified in the extension request, or

(ii) pay you the value of the Performance Bond.

(6) We represent and confirm that the amount of this guarantee does not exceed twenty percent (20%) of the total paid-up capital and reserves of the bank.

(7) You may assign (including, without limitation, by way of security) charge or transfer your rights and benefits under this Performance Bond, with the prior written consent of the Bank (such consent not to be unreasonably withheld or delayed).

(8) This Performance Bond shall be governed by and construed in accordance with the Laws applicable in the Kingdom of Saudi Arabia.

(9) Any dispute with respect to this Performance Bond shall be resolved exclusively by the competent authorities in the Kingdom of Saudi Arabia and according to the Saudi regulations, decisions, rules and instructions.

Capitalised terms not defined have the same meaning given to them in the Contract.

IN WITNESS of which the [insert name of bank or financial institution] has duly executed this Performance Bond on the date stated above.

SIGNED by [insert] as attorney for [insert] under power of attorney dated [insert] in the presence of

.....

Signature of witness

.....

Name of witness (block letters)

.....

Address of witness

.....

Occupation of witness

By executing this agreement, the attorney states that the attorney has received no notice of revocation of the power of attorney

Appendix 1 – Form of Payment Demand

Date:

[insert name and address of issuing bank] Performance Bond No.

1. Reference is made to the above-referenced Performance Bond. Capitalised terms used herein shall have the respective meanings given such terms in the Performance Bond.
2. Demand is hereby made for payment under the Performance Bond in the amount of SAR [insert amount] to the Employer in immediately available funds in full and without set-off or deduction to the following account:

[insert account information]

Signed

For and on behalf of

TECHCO Company

Annexure 2 Form of Parent Company Guarantee

[Drafting note: Please see TECHCO Legal to determine the appropriate governing law and dispute resolution forum for this Parent Company Guarantee. If the PCG is to be governed by English law additional drafting regarding subrogation, reinstatement and an indemnity should be included.]

This Parent Company Guarantee (the Guarantee) is dated [insert] and made between:

(1) TECHCO Company, a single-shareholder closed joint stock company incorporated under the laws of the Kingdom of Saudi Arabia, pursuant to commercial registration number 102030405060 and having its registered address at TECHCO Building 1234 - MAKKAH 21232, Kingdom of Saudi Arabia (the “Employer”, which expression shall include its successors in title and permitted assignees); and

(2) [Insert Guarantor name], duly licensed under the laws of [insert], pursuant to licence number [●] and whose address is [●] (the “Guarantor”).

The Employer entered into a contract dated [insert date] with [insert name of Service Provider] (the Service Provider) entitled [insert contract number and title] for certain services (Services) to be undertaken by the Service Provider (the Contract).

The Service Provider has agreed to procure the provision of a parent company guarantee from Guarantor.

The Guarantor hereby irrevocably and unconditionally guarantees to the Employer that the Service Provider will perform, carry out, execute and discharge the duties, responsibilities, liabilities and obligations (including contingent obligations and obligations to pay money) of the Service Provider under, in connection with and in accordance with the Contract.

In the event that the Service Provider fails to perform, carry out, execute and discharge any of the duties, responsibilities, liabilities or obligations (including any contingent obligations and any obligations to pay money) and liabilities of the Service Provider under, in connection with and in accordance with the Contract (Default), the Guarantor must:

(a) on demand from the Employer, perform, carry out, execute and discharge in accordance with the Contract and in the place of the Service Provider, the duties, responsibilities and obligations (including contingent obligations and obligations to pay money) that are the subject of the Default; and

(b) as a separate and independent obligation and liability from its obligations under the paragraph above, indemnify and hold the Employer harmless from and against any and all damages, losses, liabilities, debts, claims, costs, charges, proceedings and expenses which the Employer may suffer or incur by reason of the Default, save that the Guarantor's liability in respect of this paragraph (b) shall be limited to the extent that the Service Provider would have been liable under or in connection with the Contract for such Default.

The Employer is not required to pursue any remedy against the Service Provider before proceeding against the Guarantor under this Guarantee.

The Guarantor agrees that all sums payable by the Guarantor under this Guarantee shall be paid to the Employer in full without set-off or counterclaim and free of any present or future taxes, levies, duties, charges, fees, withholdings or deductions (together referred to as Deductions) which would not have been imposed if such payments had been made by the Service Provider, and if the Guarantor is compelled by Law to make any Deductions the Guarantor will gross up the payment so that the net sum received by the Employer is equal to the full amount which the Employer would have received had no such Deductions been made.

The provisions of this Guarantee will remain in full force and effect, even if:

- (a) the Contract is varied, modified, changed or prematurely terminated;
- (b) the Service Provider and/or the Employer is or may be in breach of the Contract;
- (c) any composition, discharge, release, waiver concession or other variation of liability entered into with, or granted to, the Service Provider;
- (d) any allowance of time, waiver, forbearance, delay, forgiveness, indulgence, compromise or other dealing under or in connection with the Contract or in respect of any right or remedy arising under the Contract;
- (e) the Contract or any provisions thereof being or becoming illegal, invalid, void, voidable or unenforceable;
- (f) the Contract or the Service Provider's employment under the Contract being terminated;
- (g) the Service Provider becoming bankrupt or insolvent, going into liquidation, having a receiving or administration order made against it, compounding with its creditors or carrying on business under a receiver, trustee or manager for the benefit of its creditors or if any act is done or event occurs which (under Laws) has a similar effect to any of these acts or events;

- (h) any forbearance or delay by or on the part of the Employer in asserting any of its rights against the Service Provider; or
- (i) any other act, omission or default which in the absence of this provision would or might have operated to discharge, reduce, exonerate or otherwise affect the liability of the Guarantor under the terms of this Guarantee.

The Guarantor warrants that it has the power to execute, deliver and perform its obligations under the Guarantee and all necessary corporate and other action has been taken to authorise that execution, delivery and performance.

This Guarantee will expire on the date upon when all obligations (including contingent obligations and obligations to pay money) and liabilities (including contingent liabilities) of the Service Provider under the Contract have been carried out, completed and discharged in accordance with the Contract.

For such period as any Default guaranteed by the Guarantor remains unsatisfied, the Guarantor shall not in respect of any payment made or liability incurred under this Guarantee, effect or seek to effect any recovery from the Service Provider, whether by receipt of money, set-off, proof of debt, enforcement of security or otherwise.

The Employer may assign and the Guarantor hereby consents to the assignment of the whole or any part of the Employer's benefit, right or interest in this Guarantee to any third party to whom the Employer is entitled to assign all or any part of the Contract pursuant to the terms thereof. The Guarantor shall not be entitled to assign or otherwise transfer the whole or any part of this Guarantee.

No terms of this Guarantee shall be considered waived by either the Employer or the Guarantor unless such waiver is expressly given in writing.

This Guarantee may not be varied except in writing signed by a duly authorised representative of the Employer and the Guarantor.

Any notice or Demand to be served by the Employer or the Guarantor on the other under this Guarantee shall be in writing and sent to the address of the recipient as set out below by hand (in which case it shall have been deemed to have been received on signature of a delivery receipt or at the time it is left at the address) or by registered mail (in which case it shall have been deemed to have been received on the third working day after postage):

Employer: The address of the Employer as first stated above.

Guarantor: The address of the Guarantor as first stated above.

This Guarantee is governed by and construed in accordance with the laws of the Kingdom of Saudi Arabia.

Any dispute or difference between the parties arising out of or in connection with or relating to this Guarantee may be referred to the courts in Kingdom of Saudi Arabia which shall have the exclusive jurisdiction to resolve and determine such dispute or difference.

The Guarantor shall undertake to keep confidential all decisions in connection with any court proceedings, save and to the extent such decision is publicly available or the disclosure is required pursuant to applicable Law.

This Guarantee neither forms part of the Contract nor affects the provisions of the Contract.

The Guarantor acknowledges that the Employer is acting in reliance on the Guarantor incurring obligations and giving rights under this Guarantee.

This Guarantee may be executed in any number of counterparts, each of which shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement.

Each person executing this Guarantee states that he or she has authority to represent and bind the Guarantor.

IN WITNESS of which the parties have duly executed this Guarantee on the date stated above.

SIGNED by [insert] as attorney for [insert name of Guarantor] under power of attorney dated [insert] in the presence of

.....

Signature of witness

.....

Name of witness (block letters)

.....

Address of witness

.....

Occupation of witness

By executing this agreement the attorney states that the attorney has received no notice of revocation of the power of attorney.

SIGNED by [insert] as attorney for TECHCO Company under power of attorney dated [insert] in the presence of

.....

Signature of witness

.....

Name of witness (block letters)

.....

Address of witness

.....

Occupation of witness

By executing this agreement, the attorney states that the attorney has received no notice of revocation of the power of attorney.

Form of Legal Opinion

[On letterhead]

[insert name of company]

("Company")

Documents

[insert name of documents]

("Documents")

Form of opinion text

On the basis of the assumptions and subject to the qualifications set out in this opinion, we are of the opinion that:

- (a) the Company is incorporated and validly existing under the laws of [insert country of incorporation] and is capable of suing and being sued in its corporate name;
- (b) the Company has:
 - (i) the corporate power to enter into each Document and to observe its obligations under them; and
 - (ii) taken all corporate action required on its part to authorise the execution, delivery and observance of each Document;
- (c) the obligations of the Company under each Document are valid, binding and enforceable in accordance with its terms;
- (d) the execution and delivery by or on behalf of the Company of each Document and the observance by the Company of its obligations under them has not violated and will not contravene:
 - (i) any law in force in [insert relevant opinion country] applicable to companies or transactions generally; or
 - (ii) any stock exchange rules and regulations of [insert relevant opinion country]; or
 - (iii) its constitution;
- (e) each authorisation necessary under the laws in force in [insert relevant opinion country] applicable to companies generally for the Company to enter into each Document and observe obligations under them has been obtained;
- (f) the Documents are in proper form for enforcement in the appropriate courts of [insert relevant opinion country];
- (g) claims against the Company under each Document will rank at least equally with the claims of all its unsecured and unsubordinated creditors (other than creditors mandatorily preferred by law);

(h) each party to the Document will be entitled to bring an action in the appropriate courts of [insert relevant opinion country] to enforce the documents, except to the extent such action is contrary to public policy. In this respect, we are not aware of any such public policy which would affect the parties' ability to bring such actions;

(i) the Company does not enjoy any immunity from suit in [insert relevant opinion country] nor are its assets exempt from execution;

(j) the courts of [insert relevant opinion country] will recognise as a valid judgment and will enforce a conclusive and unsatisfied judgment which is enforceable by execution in [insert relevant opinion country] and obtained in relation to the documents in a superior court of [insert relevant opinion country] having jurisdiction to give that judgment without any re-examination of its merits provided:

[please set out requirements]; and

(k) the courts of [insert relevant opinion country] will give effect to:

(i) the choice of the laws of KSA as applicable to KSA to govern the Documents;

(ii) the submission to the jurisdiction of the courts of KSA by the Company; and

(iii) the appointment by the Company of an agent for service of process contained in the Documents.

Annexure 3 Forms of Novation Agreement

Annexure 3A - Form of Novation Agreement (Subcontractors)

Annexure 3B - Form of Novation Agreement (Beneficiaries)

Annexure 3 A - Form of Novation Agreement (Subcontractors)

[insert]

("Employer")

and

[insert]

("Subcontractor")

and

[insert]

("Service Provider")

(the Employer, Subcontractor and the Service Provider shall be collectively referred to as the "Parties" and individually as a "Party")

Recitals

- (A) The Employer and the Service Provider are parties to the Services Contract.
- (B) The Service Provider and the Subcontractor are parties to the Subcontract.
- (C) The Parties have agreed to novate the Subcontract on the terms and conditions set out in this Novation Agreement.

1. Agreed Terms

1.1 Terms defined in the Services Contract that are not defined in this Agreement shall, where the context permits, have the same meaning in this Agreement. In this Agreement:

"Claim" means any allegation, debt, cause of action, liability, claim, proceeding, suit or demand of any nature howsoever arising and whether present or future, fixed or unascertained, actual or contingent whether at law, in equity, under statute or otherwise.

"Novation Date" means the [insert date].

"Services Contract" means the agreement between the Employer and the Service Provider dated [insert date].

"Subcontract" means the agreement between the Service Provider and the Subcontractor dated [insert date] for the Subcontract Works as the same may have been amended pursuant to its terms.

"Subcontract Works" means the works described in the Subcontract.

1.2 With effect from and including the Novation Date, the Parties agree that the Subcontract is novated from the Service Provider and the Subcontractor to the Employer and the Subcontractor.

1.3 Save as identified in Clause 1.9 below, the novated Subcontract shall be on the same terms as the Subcontract and shall take effect (subject to Clauses 1.4 and 1.6 below) as if:

- (a) the Employer had, from the outset, been named as a party to the Subcontract in place of the Service Provider; and
- (b) the Subcontractor had owed all its obligations and liabilities from the outset to the Employer and not to the Service Provider.

1.4 The novated Subcontract shall be amended to include the name and address of the “Service Provider” and the address for service of notices shall be [insert] and any notice to the “Service Provider” shall be marked to the attention of [insert].

1.5 Subject to the Service Provider’s payment in full of any monies due to the Subcontractor under the Subcontract as at the Novation Date, the Subcontractor releases and forever discharges the Service Provider from all and any liabilities and obligations under the Subcontract and from all Claims and demands arising out of or in relation to the Subcontract. The Subcontractor has no entitlement to make any Claim against the Service Provider and the Service Provider has no liability to the Subcontractor arising out of or in connection with the Subcontract whether occurring on, before or after the Novation Date.

1.6 The Subcontractor shall have no entitlement to make any Claim against the Employer and the Employer has no liability to the Subcontractor for any such Claim in respect of any matter arising out of or in connection with the Subcontract prior to the Novation Date.

1.7 All Claims and remedies which exist or accrue on or after the Novation Date and to which the Service Provider is, was or may be entitled against the Subcontractor under or in relation to the Subcontract shall, as from the Novation Date, vest in the Employer, it being agreed and acknowledged that this Clause 1.7 shall not limit or restrict the Employer from bringing any Claim or seeking any remedy against the Service Provider under or in connection with the Services Contract in relation to all or any part of the Subcontract Works or otherwise.

1.8 All Claims and remedies which exist or accrue on or after the Novation Date to which the Subcontractor is, was or may be entitled as against the Service Provider under or in relation to the Subcontract shall, as from the Novation Date, lie against the Employer.

1.9 The Subcontractor warrants to the Employer that it has complied with and will continue to comply with all of its obligations under the Subcontract. The Employer shall not be precluded from bringing any Claim against the Subcontractor under or in relation to the Subcontract if a breach of the Subcontract or the above warranty occurred prior to the Novation Date, or because the Service Provider has or will not incur loss or damage as a result of entering into this Novation Agreement.

1.10 Subject to the terms of this Novation Agreement, the Subcontract shall remain in full force and effect.

1.11 This Agreement is governed by the laws of [insert]. [Drafting Note: Please refer to TECHCO Legal]

1.12 If a dispute or difference arises between two or more of the Parties in connection with, or arising out of, this Novation Agreement (whether of a contractual or non-contractual nature) (a “Dispute”), any Party may give notice of the Dispute to the other concerned Party or Parties in writing (the “Notice of Dispute”).

1.13 A senior representative from each concerned Party (who has authority to settle the Dispute) shall meet within fourteen (14) days of the date of such Notice of Dispute and as many times as those representatives may consider necessary thereafter, in an effort to resolve the Dispute. Each Party shall use reasonable endeavours to:

- (a) agree on the times and venues for such meetings;
- (b) procure that the senior representative of that Party attends the meetings; and
- (c) resolve the Dispute amicably by way of the process prescribed in this Clause 1.13.

[Option A: SCCA Arbitration]

1.14 [In the event that the Parties are unable to amicably resolve the Dispute within forty (40) days (or as otherwise agreed by the Parties) from the date of the Notice of Dispute, the Dispute shall be referred to and finally resolved by arbitration administered by the Saudi Centre for Commercial Arbitration (the “SCCA”) pursuant to the SCCA Arbitration Rules then in force.

1.15 The Parties agree that:

- (a) the arbitral tribunal shall be constituted by three (3) arbitrators appointed as follows:
 - (A) the Party referring the Dispute to arbitration shall nominate one (1) arbitrator for appointment in the Notice of Arbitration;
 - (B) the responding Party shall nominate one (1) arbitrator for appointment in the response to the Notice of Arbitration;
 - (C) in the event of a Party failing to nominate an arbitrator in the manner identified in clauses 1.15(a)(A) and (B) above, the SCCA Administrator shall appoint an arbitrator on behalf of the Party who has failed to do so; and
 - (D) subject to clause 1.15(e) below, the two (2) arbitrators nominated by the Parties for appointment identified in clauses 1.15(a)(A) and (B) above (or by the SCCA Administrator in the circumstances identified above) shall agree the presiding arbitrator within twenty-one (21) days of the second arbitrator’s appointment, failing which the SCCA Administrator shall appoint the presiding arbitrator in accordance with the SCCA Arbitration Rules.

- (b) the seat or legal place of the arbitration shall be Riyadh, KSA;
- (c) the proceedings shall be conducted in English;
- (d) each arbitrator nominated, whether by the Parties or the SCCA Administrator in accordance with clause 1.15(a) above, shall, as a minimum, be:
 - (A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or
 - (B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction disputes for at least the previous ten (10) years; and
- (e) if:
 - (A) any one or more of the arbitrators nominated by the Parties or by the SCCA Administrator in accordance with clause 1.15(a) above, is either a KSA qualified lawyer or person holding a degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with clause 1.15(a)(D) above shall, as a minimum, be a person meeting the criteria identified in clause 1.15(d)(A) or (B) above; or
 - (B) neither of the arbitrators nominated by the Parties, or by the SCCA Administrator in accordance with clause 1.15(a) above, is a KSA qualified lawyer or person holding a degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with clause 1.15(a)(D) above shall, as a minimum, be a KSA qualified lawyer or person holding a degree in Shariah issued in KSA.]

[Note: please contact TECHCO Legal to finalise the above clauses where the contract will be governed by KSA law]

[OPTION B: LCIA arbitration]

1.16 [In the event that the Parties are unable to amicably resolve the Dispute within forty (40) days (or as otherwise agreed by the Parties) from the date of the Notice of Dispute, the Dispute shall be referred to and finally resolved by arbitration administered by the London Court of International Arbitration (the "LCIA") under the arbitration rules of the LCIA in force from time to time].

1.17 The Parties agree that:

- (a) the arbitral tribunal shall be constituted by three (3) arbitrators. The Party referring the Dispute to arbitration shall nominate an arbitrator in the Request for Arbitration, the other Party shall nominate an arbitrator in the response and the third

arbitrator, who shall act as the presiding arbitrator, shall be jointly nominated by the other two (2) arbitrators;

(b) if an arbitrator is not nominated as described above, the LCIA Court shall appoint such arbitrator;

(c) the seat, or legal place, of arbitration shall be London, England;

(d) the arbitration shall be conducted in English; and

(e) each arbitrator nominated, whether by the Parties, the LCIA Court or the Party-nominated arbitrators, shall, as a minimum, be:

(A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or

(B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction disputes for at least the previous ten (10) years.]

1.18 All Parties undertake to keep confidential all decisions in connection with any such proceedings, save and to the extent that such decision is publicly available or such disclosure is required pursuant to applicable law.

[execution page to follow]

Annexure 3B - Form of Novation Agreement (Beneficiaries)

[insert]

("Employer")

and

[insert]

("New Employer")

and

[insert]

("Service Provider")

(the Employer, New Employer and the Service Provider shall be collectively referred to as the "Parties" and individually as a "Party")

Recitals

- (A) The Employer and the Service Provider are parties to the Services Contract.
- (B) The Parties have agreed to novate the Services Contract on the terms and conditions set out in this Novation Agreement.

1. Agreed Terms

1.1 Terms defined in the Services Contract that are not defined in this Agreement shall, where the context permits, have the same meaning in this Agreement. In this Agreement:

"Claim" means any allegation, debt, cause of action, liability, claim, proceeding, suit or demand of any nature howsoever arising and whether present or future, fixed or unascertained, actual or contingent whether at law, in equity, under statute or otherwise.

"Novation Date" means [insert date].

"Services Contract" means the agreement between the Employer and the Service Provider dated [insert date] as the same may have been amended pursuant to its terms.

1.2 With effect from and including the Novation Date, the Parties agree that the Services Contract is novated from the Employer and the Service Provider to the New Employer and the Service Provider.

1.3 Save as identified in clause 1.8 below, the novated Services Contract shall be on the same terms as the Services Contract and shall take effect as if:

- (a) the New Employer had, from the outset, been named as a party to the Services Contract in place of the Employer; and
- (b) the Service Provider had owed all its obligations and liabilities from the outset to the Service Provider.

1.4 The novated Services Contract shall be amended to include the name and address of the "Employer" and the address for service of notices shall be [insert] and any notice to the "Employer" shall be marked to the attention of [insert].

1.5 The Service Provider releases and forever discharges the Employer from all and any liabilities and obligations under the Services Contract and from all Claims and demands arising out of or in relation to the Services Contract. Neither the New Employer nor the Service Provider has any entitlement to make any Claim against the Employer and the Employer has no liability to either the New Employer or the Service Provider arising out of or in connection with the Services Contract whether occurring on, before or after the Novation Date.

1.6 All Claims and remedies to which the Employer is, was or may be entitled against the Service Provider under or in relation to the Services Contract shall, as from the Novation Date, vest in the New Employer.

1.7 All Claims and remedies to which the Service Provider is, was or may be entitled against the Employer under or in relation to the Services Contract shall, as from the Novation Date, lie only against the New Employer and not against the Employer.

1.8 The Service Provider warrants to the New Employer that it has complied with all of its obligations under the Services Contract before the Novation Date. The New Employer shall not be precluded from bringing any Claim against the Service Provider under or in relation to the Services Contract if a breach of the Services Contract or the above warranty occurred prior to the Novation Date, or because the Employer has or will not incur loss or damage as a result of entering into this Novation Agreement.

1.9 Subject to the terms of this Novation Agreement, the Services Contract shall remain in full force and effect.

1.10 This Agreement is governed by the laws of [insert]. [Drafting Note: Please refer to TECHCO Legal]

1.11 If a dispute or difference arises between two or more of the Parties in connection with, or arising out of, this Novation Agreement (whether of a contractual or non-contractual nature) (a "Dispute"), any Party may give notice of the Dispute to the other concerned Party or Parties in writing (the "Notice of Dispute").

1.12 A senior representative from each concerned Party (who has authority to settle the Dispute) shall meet within fourteen (14) days of the date of such Notice of Dispute and as many times as those representatives may consider necessary thereafter, in an effort to resolve the Dispute. Each Party shall use reasonable endeavours to:

- (a) agree on the times and venues for such meetings;
- (b) procure that the senior representative of that Party attends the meetings; and
- (c) resolve the Dispute amicably by way of the process prescribed in this Clause 1.13.

[Option A: SCCA Arbitration]

1.13 [In the event that the Parties are unable to amicably resolve the Dispute within forty (40) days (or as otherwise agreed by the Parties) from the date of the Notice of Dispute, the Dispute shall be referred to and finally resolved by arbitration administered by the Saudi Centre for Commercial Arbitration (the "SCCA") pursuant to the SCCA Arbitration Rules then in force.

1.14 The Parties agree that:

(a) the arbitral tribunal shall be constituted by three (3) arbitrators appointed as follows:

(A) the Party referring the Dispute to arbitration shall nominate one (1) arbitrator for appointment in the Notice of Arbitration;

(B) the responding Party shall nominate one (1) arbitrator for appointment in the response to the Notice of Arbitration;

(C) in the event of a Party failing to nominate an arbitrator in the manner identified in clauses 1.14(a)(A) and (B) above, the SCCA Administrator shall appoint an arbitrator on behalf of the Party who has failed to do so; and

(D) subject to clause 1.14(e) below, the two (2) arbitrators nominated by the Parties for appointment identified in clauses 1.14(a)(A) and (B) above (or by the SCCA Administrator in the circumstances identified above) shall agree the presiding arbitrator within twenty-one (21) days of the second arbitrator's appointment, failing which the SCCA Administrator shall appoint the presiding arbitrator in accordance with the SCCA Arbitration Rules.

(b) the seat or legal place of the arbitration shall be Riyadh, KSA;

(c) the proceedings shall be conducted in English;

(d) each arbitrator nominated, whether by the Parties or the SCCA Administrator in accordance with clause 1.14(a) above, shall, as a minimum, be:

(A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or

(B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction disputes for at least the previous ten (10) years; and

(e) if:

(A) any one or more of the arbitrators nominated by the Parties or by the SCCA Administrator in accordance with clause 1.14(a) above, is either a KSA qualified lawyer or person holding a degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with clause 1.14(a)(D) above shall, as a minimum, be a person meeting the criteria identified in clause 1.14(d)(A) or (B) above; or

(B) neither of the arbitrators nominated by the Parties, or by the SCCA Administrator in accordance with clause 1.14(a) above, is a KSA qualified lawyer or person holding a

degree in Shariah issued in KSA, then the presiding arbitrator appointed by the Party-nominated arbitrators or the SCCA Administrator in accordance with clause 1.14(a)(D) above shall, as a minimum, be a KSA qualified lawyer or person holding a degree in Shariah issued in KSA.]

[Note: please contact TECHCO Legal to finalise the above clauses where the contract will be governed by KSA law]

[OPTION B: LCIA arbitration]

1.15 [In the event that the Parties are unable to amicably resolve the Dispute within forty (40) days (or as otherwise agreed by the Parties) from the date of the Notice of Dispute, the Dispute shall be referred to and finally resolved by arbitration administered by the London Court of International Arbitration (the "LCIA") under the arbitration rules of the LCIA in force from time to time].

1.16 The Parties agree that:

- (a) the arbitral tribunal shall be constituted by three (3) arbitrators. The Party referring the Dispute to arbitration shall nominate an arbitrator in the Request for Arbitration, the other Party shall nominate an arbitrator in the response and the third arbitrator, who shall act as the presiding arbitrator, shall be jointly nominated by the other two (2) arbitrators;
- (b) if an arbitrator is not nominated as described above, the LCIA Court shall appoint such arbitrator;
- (c) the seat, or legal place, of arbitration shall be London, England;
- (d) the arbitration shall be conducted in English; and
- (e) each arbitrator nominated, whether by the Parties, the LCIA Court or the Party-nominated arbitrators, shall, as a minimum, be:
 - (A) a retired judge of the English High Court (or above), or Commonwealth equivalent; or
 - (B) an English or Commonwealth qualified lawyer, whose practice (as advocate or arbitrator) has been predominantly in construction disputes for at least the previous ten (10) years.]

1.17 All Parties undertake to keep confidential all decisions in connection with any such proceedings, save and to the extent that such decision is publicly available or such disclosure is required pursuant to applicable law.

[execution page to follow]

Annexure 4 Form of Subcontractor Collateral Warranty

THIS AGREEMENT is made on 20[insert]

BETWEEN:

- (1) The Beneficiary [insert name of Beneficiary] (which expression shall include any person to whom the benefit of this Agreement has been assigned); and
- (2) The Subcontractor [insert name of Subcontractor].

WHEREAS:

- (A) The Service Provider entered into the Contract with the Beneficiary for the Services forming part of the Project.
- (B) The Subcontractor contracted with the Service Provider for a portion of the Services under the Subcontract.
- (C) The Service Provider agreed under the Contract to procure that the Subcontractor executes this warranty in favour of the Beneficiary.
- (D) The Subcontractor agreed under the Subcontract to execute this warranty in favour of the Beneficiary.

NOW IT IS AGREED as follows:

1. Warranty

The Subcontractor warrants and undertakes to the Beneficiary that it has complied and will continue to comply with the Subcontract and, without prejudice to the generality of the foregoing, the Subcontractor further warrants and undertakes to the Beneficiary that all work and services performed and all materials or parts supplied by the Subcontractor in the course of the Subcontract will be:

- (a) at least of the quality and to the standard required by both the Contract and the Subcontract;
- (b) to the extent that the level of quality or standard are not stipulated in the Contract or the Subcontract, of good workmanship and merchantable quality; and
- (c) fit for the purpose or purposes for which they are required.

2. Manufacturer's warranty

This warranty is in addition to and does not derogate from any manufacturer's warranty or warranty implied by any law, attaching to any materials or goods provided under the Subcontract.

3. Rectification

The Subcontractor agrees to, at its own expense, replace and make good to the reasonable satisfaction of the Beneficiary so much of the Services that:

- (a) the Beneficiary reasonably considers are of a lower quality or standard than that referred to in Clause 1; or
- (b) show deterioration to an extent that the Beneficiary reasonably considers that the Services, or the goods supplied by the Subcontractor, ought to be made good or replaced in order to satisfy the performance requirements and specifications for which the Services were performed or supplied and otherwise achieve compliance with the requirements of the Contract and Subcontract.

4. Time for rectification

Within a reasonable time after written notification to the Subcontractor of a decision of the Beneficiary as to work required by Clause 3, the Subcontractor will replace and/or make good the Services at its cost whether or not any dispute or difference exists between the parties. The Subcontractor indemnifies the Beneficiary against any direct, indirect or consequential loss or damage of any nature whatsoever, directly or indirectly arising out of any breach of the warranties, covenants or other conditions given by the Subcontractor.

5. Rectification at Subcontractor's cost

If within the time stated in a notice provided under Clause 4 the Subcontractor does not carry out the services stated in the notice, the Beneficiary may carry out the services, or cause it to be carried out. The Subcontractor indemnifies the Beneficiary against all costs and expenses of, and incidental to, the execution and completion of the services and also against any direct, indirect or consequential loss or damage sustained by it as a result of the Subcontractor's failure to comply with the notice under Clause 4.

6. Assignment

- (a) The Beneficiary may assign all of its rights under this agreement by written notice to the Subcontractor.
- (b) The Subcontractor may not assign, charge, novate or otherwise transfer any right or obligation under this agreement to any other person.

7. Relevance of execution

This warranty operates in favour of the Beneficiary even if it has not been executed by the Beneficiary.

8. Definitions

(a) Service Provider means [insert].

(b) Contract means the contract between the Beneficiary and the Service Provider dated [insert] for the Services.

(c) Project means the performance of Services with respect to [insert Project title] Project.

(d) Subcontract means the contract between the Service Provider and the Subcontractor dated [insert] for part of the Works.

(e) Services means the works undertaken by the Subcontractor under the Subcontract.

The parties have executed this Agreement on the date hereof.

EXECUTED for and on behalf of

[BENEFICIARY]

By:

Name:

Title:

EXECUTED for and on behalf of

[SUBCONTRACTOR]

By:

Name:

Title:

Annexure 5 Form of Occupancy Agreement

[INSERT]

and

[INSERT]

AGREEMENT

for the use of

Units at TECHCO Construction Village Residential Camp

TABLE OF CONTENTS

Clause
Page

1.	INTERPRETATION	134
2.	SERVICES PROVIDED	135
3.	USER'S OBLIGATIONS	135
4.	MUTUAL Representations and warranties	138
5.	USE PERIOD AND TERMINATION	139
6.	SERVICE OF NOTICES	139
7.	LAW AND JURISDICTION	140
8.	MISCELLANEOUS	140
	Schedule 1 - SITE	141
	Schedule 2 - SERVICES	142
	Schedule 3 - PROJECT FACILITIES	143
	Schedule 4 - UNIT TYPE	144
	Schedule 5 – OCCUPANCY Plan	145
	Schedule 6 – DEVELOPER’S REGULATIONS	146

This AGREEMENT is dated
Agreement Date) BY AND BETWEEN

20[] (the

(i) Developer (ii) [] whose registered office is at/of []
[(Co. Registration. No.)]

(iii) E-mail address(es) for service of notices (one of which must be a general e-mail address (e.g. info@gmail.com):

(iv) [Insert email address]

(v) USER (vi) [] whose registered office is at/of [] [(Co. Registration. No.) being a party with a contract with TECHCO.

(vii) E-mail address(es) for service of notices (one of which must be a general e-mail address (e.g. info@gmail.com):

(viii) [Insert email address]

PARTICULARS

(ix) FEE (x) [] Riyals (SAR) per [Insert] exclusive of any value added tax.

(xi) OCCUPANCY (xii) The space allocated to an Occupant in a Unit as identified on the plan attached as Schedule 5, or such other space as the Developer shall notify to the User pursuant to Clause 2.1.

(xiii) OCCUPANT (xiv) Any person being an employee of the User who occupies a Unit in the Project Facilities for any amount of time, throughout the Use Period (but excluding that person's dependents).

(xv) PROJECT FACILITIES (xvi) The structures, improvements and associated developments, forming the common areas on the Site including those as more particularly set out in Schedule 3.

(xvii) PERMITTED USE (xviii) Use for accommodation only of the User's employees only (excluding their dependents, if any).

(xix) SERVICES (xx) The provision by the Developer of accommodation services to the User and each Occupant within each Unit and catering (three cooked meals a Day), laundry, janitorial, recreation, maintenance and housekeeping services, together with access to, and the enjoyment of, the Project Facilities at Site, in each case as detailed in Schedule 2

(xxi) SITE (xxii) The land on which the Project Facilities are constructed and operated by the Developer being known as TECHCO Construction Village and as further set out in Schedule 1.

(xxiii) UNIT (xxiv) Any premises constituting a Unit Type within the Project Facilities.

(xxv) UNIT TYPE (xxvi) Any of Unit A, B, C, or D, as applicable, as described in Schedule 4.

(xxvii) USE PERIOD (xxviii) As defined in Clause 5.

1. INTERPRETATION

1.1 In this Agreement the expressions set out in the section headed 'Particulars' above have the meanings specified. The following words and expressions have the following meanings unless the context otherwise requires:

Agreement for Construction Village means the agreement so entitled made between TECHCO and the Developer on or about September 2019 in relation to the Project Facilities including the Units, among other things, and includes all amendments to such agreement.

Agreement Date is defined at the start of this Agreement.

Authorisations includes:

(a) any consent, registration, filing, agreement, notice of non-objection, notarisation, certificate, licence, approval, permit, authority or exemption from, by or with a Government Authority; and

(b) in relation to anything which a Government Authority may prohibit or restrict within a specific period, the expiry of that period without prohibition or restriction or intended prohibition or restriction.

Day means a calendar day, consisting of 24 hours from midnight to 11.59.59 pm.

Developer's Regulations means those rules and regulations set out in Schedule 6, as amended, supplemented or replaced from time to time.

Government Authority means any government or any governmental, semi or local governmental, statutory, public, administrative, fiscal or judicial body, department, commission, authority, tribunal, agency, municipality or entity, or approved representative of the Kingdom of Saudi Arabia.

Law means any decree, resolution, law, statute, act, ordinance, rule, directive order, treaty, code or regulation or any interpretation of the foregoing, to the extent having the force of law in the Kingdom of Saudi Arabia, as enacted, issued or determined by any Government Authority from time to time and including:

- (a) any Authorisations;
- (b) any injunction or final non-appealable judgment directly applicable to the relevant party of any Government Authority having jurisdiction over the matter in question; and
- (c) any environmental Law.

TECHCO a company incorporated under the laws of the Kingdom of Saudi Arabia, pursuant to commercial registration number 102030405060 and having its registered address at TECHCO Building 1234 - MAKKAH 21232, , Kingdom of Saudi Arabia (and shall include its successors in title and permitted assignees).

Security Deposit has the meaning given to it in Clause 3.2.1.

Vehicles means all of the User's and Occupant's vehicles that will be accessing the Site.

1.2 The following rules of construction and interpretation apply to this Agreement:

1.2.1 Clause and paragraph headings are for convenience only and do not affect interpretation or construction of the provisions of this Agreement; and

1.2.2 an obligation not to do anything is also an obligation not to permit it being done.

2. SERVICES PROVIDED

2.1 On and from the Agreement Date, the Developer provides the Services to the User to use the Occupancy for the Use Period only.

2.2 Without prejudice to its rights under Clause 4, the Developer shall be entitled at any time on giving not less than seven (7) Days' notice to instruct the User to move its Occupants to an alternative area within the Project Facilities which is reasonably suitable for the Permitted Use and is of a similar Unit Type, capacity and functionality to the Occupancy and the User shall comply with such requirement.

2.3 The User must not exclude, or impede, the Developer, its employees, or its agents, or any one or more of them, in exercising possession, or control, of the Occupancy under, or by virtue of, this Agreement.

2.4 This Agreement is personal to the User only and the User is not entitled to, and must not, assign, transfer, mortgage, charge, or otherwise part with, or share possession of, or share use of, the whole, or any part of the Occupancy, nor agree or undertake to do so.

2.5 The use permitted may only be enjoyed by the User's Occupants, excluding any of their dependents.

2.6 The Developer shall procure and maintain at its cost an adequate and safe supply of all utilities required for the Occupancy, including gas, electricity, water and sewerage services, telephone and internet. The Developer shall bear the cost of all usage and consumption charges for the User's use of such utilities.

3. USER'S OBLIGATIONS

3.1 Payments

The User, who shall at all times during the term of this Agreement have a contract with TECHCO, shall pay to the Developer:

3.1.1 the Fee, monthly in advance on the first Day of each month and proportionately reduced for any period of less than a month, the first such payment being for the period from the Agreement Date to the end of the month. If the parties agree for shorter periods this is permitted. All fees are payable by certified check or by bank transfer to:

[INSERT PAYMENT DETAILS]

Invoices will be issued for payment within thirty (30) days

3.1.2 amounts arising from or in relation to any and all damage to the Units, the Project Facilities, the Site, or any part thereof, caused by the User or any of its Occupants or Vehicles; and

3.1.3 all value added tax for which the Developer is liable on any supply to the User in connection with this Agreement, payable at the same time as the sum to which it relates.

3.2 Security Deposit

3.2.1 The User shall on the Agreement Date, provide the Developer with a security deposit for SAR [insert], being forty-five (45) days occupancy (the Security Deposit).

3.2.2 If the User fails to pay any amounts due under this Agreement, the Developer shall issue a notice to the User. If such amounts remain unpaid fourteen (14) Days following issuance of such notice, the Developer shall be entitled to draw on the Security Deposit.

3.2.3 If the Developer draws upon the Security Deposit in accordance with Clause 3.2.2, the User shall, within seven (7) Days after the Developer serves notice on the User requesting the User to provide a replacement or additional Security Deposit, provide such replacement or additional Security Deposit so that the amount held by the Developer is the full amount stated in Clause 3.2.1.

3.2.4 Subject to any deductions the Developer is entitled to make pursuant to this Clause 3.2, the Developer shall return the Security Deposit to the User within fourteen (14) Days of the expiry or termination of this Agreement.

3.3 Occupants and Vehicles

3.3.1 The User shall on the Agreement Date, provide the Developer with a detailed list containing:

(A) the names, pictures and passport/ National ID/ Iqama, medical examination report certifying that the Occupants are healthy and do not have any diseases, illnesses, sickness, infection or maladies (either physically and mentally), certificate of orientation issued by the User certifying that the Occupants are familiar with and will abide by the Developer's Regulations, approved by TECHCO (acting reasonably); and

(B) the model type (i.e. maker, year, colour), registration number and a copy of the registration license of all Vehicles that will be accessing the Site.

3.3.2 The User shall ensure that all Vehicles are parked within the areas designated by the Developer for such purposes and removed from such areas at least once every seven (7) Days.

3.4 Relocation and amendments

3.4.1 The User shall provide to the Developer a letter that amends the list of Occupants and/or Vehicles at any time throughout the Use Period no later than seven (7) Days prior to any such amendment.

3.4.2 On any exercise of the Developer's right to relocate the Occupancy pursuant to Clause 2.2, the User shall leave the Occupancy clean, tidy and clear of rubbish, and to remove all of the User's and the Occupant's fittings, personal effects, chattels and equipment upon vacating the Occupancy.

3.5 Hand Over

On the expiry, or earlier termination, of this Agreement, the User shall leave the Occupancy clean, tidy and clear of rubbish, and to remove all of the User's and the Occupants fittings, personal effects, chattels and equipment. Leave all fixtures and fittings in good working condition (fair wear and tear excepted) and handover all keys and locks that have been issued to the Occupier for those units.

3.6 Enactments

The User shall comply with all Laws relating to the use and occupation of the Site, the Project Facilities, a Unit or the Occupancy for the Permitted Use and not to do, or omit to do, anything which imposes a liability on the Developer. The Developer shall comply with all Laws relating to the use and occupation of the Site, the Project Facilities, a Unit or the Occupancy for the Permitted Use and not to do, or omit to do, anything which imposes a liability on the User.

3.7 Official Communications

The User shall give to the Developer any official communication about the Occupancy received from any Government Authority, without delay.

3.8 Alterations prohibited

The User undertakes not make any alteration to the Occupancy or any Unit.

3.9 Use

The User shall not use the Occupancy:

- a) except for the Permitted Use;
- b) for any immoral or improper purpose, or in a way which causes a nuisance, disturbance, damage, interference or other intrusive effect.

3.10 Insurers' requirements

The User shall comply with all requirements of the Developer's insurers concerning the Occupancy and not to do or omit to do anything by which any insurance policy relating to the Occupancy or the Project Facilities (of which the User has been provided with particulars) is vitiated;

3.11 Compensation

The User shall indemnify, compensate defend and hold the Developer harmless against any liability, loss, damage, claim, cost, or expense (including any penalty and any reasonable legal fees and costs but excluding any indirect or consequential losses) incurred by the Developer arising out of or due to:

(A) any breach of the User's obligations in this Agreement (including all costs reasonably incurred in an attempt to mitigate the breach).

(B) any misuse or damage to the Occupancy and the Project Facilities,

except to the extent that such breach, misuse or damage is attributable to the negligence or misconduct of the Developer, or breach of this Agreement by the Developer, or the failure of the Developer to take reasonable steps in mitigation of the foregoing.

3.12 Regulations

The User shall comply with the Developer's Regulations which the User acknowledges are required for the good management of the Units, the Project Facilities or the Site.

The User shall procure the compliance by the Occupants as occupiers of the Occupancy and users of the common areas of the Project Facilities and the Site with the Developer's Regulations.

3.13 Inspections and Audit Rights

The User shall permit the Developer, TECHCO or and its agents, licensees and invitees, or the representatives or designees of any Government Authority (pursuant to the requirement of any Law or Authorisation) to enter upon the whole or any part of the Occupancy at any reasonable time to inspect the whole or any part of the Occupancy to ensure compliance with the terms of the Agreement for Construction Village, this Agreement, the Law or any Authorisations.

The User will allow the Developer access at all reasonable times on notice for maintenance and repair and will not impede that access, and allow the Developer access on reasonable notice within thirty (30) days of the termination of this Agreement to inspect and show to interested parties.

3.14 Occupants

The User shall procure that the Occupants as occupiers of the Occupancy and users of the common areas of the Project Facilities are made aware of, and comply with, the obligations contained in Clauses 3.1 to 3.13, to the extent applicable.

The User will not allow any dangerous materials to be brought within the curtilage of the Construction Village accommodation camp. The user will not allow any electrical overloading by use of extension cables in the unit accommodation.

4. MUTUAL REPRESENTATIONS AND WARRANTIES

4.1 Each party represents and warrants that as of the Agreement Date:

4.1.1 it has full power and authority to enter into and perform its obligations under this Agreement;

4.1.2 it has taken all necessary action to authorise the execution, delivery and performance of this Agreement in accordance with its terms; and

4.1.3 this Agreement constitutes legal, valid and binding obligations and, subject to any necessary stamping and registration, is enforceable in accordance with its terms.

4.2 The User represents and warrants to the Developer that, as at the Agreement Date, and on each and every date of any exercise, if any, by the User to amend the occupation of an Occupancy as contemplated by Clause 3.4, the User has procured the Occupant's agreement that:

4.2.1 the Occupant cannot assign, transfer or otherwise deal with the Occupant's rights, if any, to receive the Services; and

4.2.2 the Occupant shall not breach any of the User's obligations under this Agreement;

4.2.3 the Occupant shall upon the termination of their employment with the User, immediately vacate the Occupancy:

(A) leaving the Occupancy clean, tidy and clear of rubbish;

(B) removing all of the Occupant's fittings, personal effects, chattels and equipment; and

(C) leave the Site removing any relevant Vehicle from the Site.

5. USE PERIOD AND TERMINATION

5.1 Unless terminated in accordance with this Agreement, this Agreement shall have a term (Use Period) of one (1) year from the Agreement Date and shall be automatically extended for a further period of up to one (1) year, unless either party gives written notice of its election to end the Agreement at least (30) days' prior to the end of the Use Period. The User may otherwise terminate this Agreement at any time on thirty (30) days' written notice.

5.2 The Developer may end this Agreement on thirty (30) days' written notice if the User, or any of the Occupants:

5.2.1 failure to pay the Fee after such Fee is due and payable for a period of three (3) days provided the Developer has exhausted the Security Deposit;

5.2.2 is in breach of any of its other obligations in this Agreement;

5.2.3 repeatedly breaches any of the terms of this Agreement in such a manner as to reasonably justify the opinion that its conduct is inconsistent with it having the intention or ability to observe, comply with or give effect to the terms of this Agreement;

5.2.4 if the User ceases to have a contract with TECHCO during the course of this Agreement;

5.2.5 in the case of the User only, the User has entered into administration or has committed any act of bankruptcy or insolvency; or

5.2.6 in the event of damage or destruction which renders the Occupancy substantially incapable of use or occupation.

5.3 Termination of this Agreement:

5.3.1 does not affect the rights of either party in respect of any prior breach of the obligations in this Agreement; and

5.3.2 requires the User to pay immediately to the Developer, all payments due, but unpaid, by the User to the Developer, including any Fee outstanding.

6. SERVICE OF NOTICES

6.1 Any notice under this Agreement must be in writing, addressed to the relevant party at the correct address and may be served by:

6.1.1 e-mail or personal delivery;

6.1.2 an agent of the serving party but not on an agent of the party to be served.

6.2 An addressee's correct address is any of:

6.2.1 the e-mail address(es) of a party to this Agreement, as set out in the Particulars;

6.2.2 the Occupancy, if the addressee is the User; and

6.2.3 the registered office of a corporate addressee.

6.3 A notice is served:

6.3.1 by e-mail, on the date when the notice is e-mailed; and

6.3.2 by personal delivery, on the date when the notice is delivered.

7. LAW AND JURISDICTION

7.1 The parties agree that:

7.1.1 this Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Saudi Arabia; and

7.1.2 any dispute, difference, claim, controversy or question among the parties, directly or indirectly, arising at any time under, out of, in connection with or in relation to this Agreement (or the subject matter of this Agreement) or any term, condition or provision hereof, including without limitation any of the same relating to the existence, validity, interpretation, construction, performance, enforcement and termination of this Agreement shall be settled before the relevant courts in the Kingdom of Saudi Arabia.

8. MISCELLANEOUS

8.1 Neither party may sell, assign, novate or transfer its interest under this Agreement or any land access rights procured from TECHCO to any other person without TECHCO's prior written consent. Such consent shall be at TECHCO's sole discretion.

8.2 Each party confirms that no term of this Agreement is enforceable by a person who is not a party to it.

8.3 A variation of any term of this Agreement must be in writing and signed by the parties.

8.4 Other than in the case of rights granted to and conferred upon TECHCO, this Agreement is not binding on any party unless it or the counterpart has been signed by, or on behalf of, each person named as a party to it.

8.5 This Agreement supersedes all previous agreements in respect of its subject matter and embody the entire agreement between the parties in respect of its subject matter.

8.6 Each party must do all things and execute all further documents necessary to give full effect to this Agreement.

8.7 Waiver of any right arising from a breach of this Agreement or of any power arising upon default under this Agreement must be in writing and signed by the party granting the waiver.

8.8 A failure or delay in exercise, or partial exercise, of:

8.8.1 a right arising from a breach of this Agreement or the occurrence of a default; or

8.8.2 a power created or arising upon default under this Agreement,
does not result in a waiver of that right or power.

8.9 A party is not entitled to rely on a delay in the exercise or non-exercise of a right or power arising from a breach of this Agreement or on a default under this Agreement as constituting a waiver of that right or power.

8.10 A party may not rely on any conduct of another party as a defence to exercise of a right or power by that other party.

8.11 This Clause 8 may not itself be waived except in writing.

[Rest of this page left intentionally blank] SCHEDULE 1- SITE

SCHEDULE 2- SERVICES

SCHEDULE 3- PROJECT FACILITIES

SCHEDULE 4- UNIT TYPE

SCHEDULE 5– OCCUPANCY PLAN SCHEDULE 6– DEVELOPER’S REGULATIONS

The parties have signed an original and counterpart of this Agreement.

On one part

SIGNED by []

.....

For and on behalf of the [DEVELOPER]

Authorised Signatory

On other part

SIGNED by []

.....

For and on behalf of the [USER]

Authorised Signatory

Annexure 6 Form of Services Completion Certificate

Contract Title: [insert] Contract Number: [insert]

Service Provider Name: [insert] Date: [insert]

Services Completion – [Mobilisation][Design Review][O&M][Demobilisation] Services

The [Mobilisation][Design Review][O&M][Demobilisation] Services have been completed and have been finally accepted by us in apparent good order, save for the Exception Items detailed under Schedule 1 which the Service Provider undertakes to remedy within timeframe set out in Schedule 1, with effect from the date of this Services Completion Certificate.

For and on behalf of TECHCO Company

Signature:

Name/Title:

Date:

Schedule 1

List of Exception Items

Exception Items to be completed by the Service Provider on or before the date referenced below and in accordance with the requirements of the Contract.

No.	Description/Identification of Exception Items	Reason	Planned Close-Out
-----	---	--------	-------------------